Y ORDER OF THE
SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE
INSTRUCTION 91-204

10 MARCH 2021

AIR NATIONAL GUARD
Supplement

22 SEPTEMBER 2023

Safety

SAFETY INVESTIGATIONS AND REPORTS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at www.e-publishing.af.mil for downloading or ordering.

RELEASABILITY: There are no releasability restrictions on this publication.

OPR: AFSEC/SEFO

Certified by: AFSEC/CV
(Colonel Richard Carrell)

Supersedes: AFI 91-204, 27 April 2018

Pages: 111

(ANG)

OPR: NGB/SE

Certified by: NGB/SE
(Colonel Christopher Corliss)

Supersedes: AFI91-204_ANGSUP, 9 November 2018

Pages: 111

This instruction implements Air Force Policy Directive (AFPD) 91-2, *Safety Programs*, and Department of Defense Instruction (DoDI) 6055.07, *Mishap Notification, Investigation, Reporting, and Record Keeping*. It provides guidance that is common to investigating and reporting of all Department of the Air Force (DAF) safety events. It applies to all Regular Air Force (AF), US Space Force (USSF), Air Force Reserve (AFR), and Air National Guard (ANG) military and civilian personnel. This DAF Instruction (DAFI) applies to commanders, managers, supervisors, and safety staffs at all levels, all persons who investigate and report DAF safety events, and those persons who handle such reports. This instruction also provides guidance regarding the control and use of privileged safety reports and information. Failure to observe the prohibitions and mandatory provisions in **paragraph 4.4**. by Regular AF members, USSF members, AFR members in an active or inactive duty for training status, and ANG members in federal Title 10 status is a violation of Article 92, Uniform Code of Military Justice (UCMJ). ANG members in a Title 32 status may be subject to an equivalent article under a state military justice

code. Violations by civilian and State (Title 5) employees may result in administrative disciplinary actions without regard to otherwise applicable criminal or civil sanctions for violations of related laws. The authorities to waive wing/delta/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, or T-3") number following the compliance statement. See DAFI 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver authority, or alternately, to the requestor's commander for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with the AF Records Disposition Schedule, which is located in the AF Records Information Management System. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all supplements must be routed to AF Safety (**usaf.pentagon.af-se.mbx.af-se-workflow@mail.mil**) for coordination prior to certification and approval. All previous supplements are cancelled/obsolete. This instruction requires the collection and or maintenance of information protected by the Privacy Act of 1974 in accordance with DoDI 5400.11, *DoD Privacy and Civil Liberties Programs*. The applicable System of Records Notices for F011 AF XO A Aviation Resource Management System (ARMS) and F021 AF IL A Core Automated Maintenance System (CAMS) are available at **https://dpcld.defense.gov/privacy/SORNS.aspx**. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the DAF.

(ANG) This supplement implements and extends the guidance of DAFI 91-204, *Safety Investigations and Reports*, 10 March 2021. It applies to all Air National Guard (ANG) personnel. This DAFI may be supplemented at any level, but all supplements must be routed to National Guard Bureau Safety (NGB/SE) for coordination prior to certification and approval. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the DAF Form 847, Recommendation for Change of Publication. Route DAF Forms 847 through NGB/SE. For waivers to this supplement, submit a DAF Form 679 to the Commanders Action Group organizational email box (**ngb.cc.angrc.commanders.action.group.org@us.af.mil**). Ensure that all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with Air Force Records Schedule, which is located in the AF Records Information Management System (AFRIMS).

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Major changes include revisions to align guidance with the new investigating reporting requirements in the AF Safety Automated System (AFSAS) (**https://afsas.safety.af.mil**). Common core investigation requirements have been revised. All references to the terms "formal report(s), formal safety report(s), and safety investigation report(s)" have been replaced with the term "safety report(s)". The use of "tab(s)" in safety investigation reporting have been replaced with "exhibit(s)".

(ANG) This supplement has been updated in its entirety.

Chapter 1—PURPOSE AND OVERVIEW 7

1.1. Purpose of Investigations and Reports. 7
1.2. Overview. 7
1.3. Types of Safety Investigations. 7
1.4. Mishaps. 7
1.5. Nuclear Surety. 12
1.6. Incident. 12
1.7. Hazard. 12
1.8. Safety Study. 13
1.9. On-Duty and Off-Duty Mishap Determination. 13
1.10. Exceptions to mandatory reporting requirements for this DAFI. 15

Chapter 2—ROLES AND RESPONSIBILITIES 17

2.1. General Information. 17
2.2. The AF/SE will: 17
2.3. MAJCOM/FC Commanders will: 17
2.4. Acquisition and Sustainment Program Commanders (in addition to MAJCOM/FC commander requirements) will: 18
2.5. The Convening Authority chosen in accordance with Paragraph 5.2 will: 18
2.6. The Commander of the Regular AF installation nearest a mishap. 19
2.7. The ISB President or Investigating Officer will: 23
2.8. The ISB will: 23
2.9. The SIB President or SIO will: 23
2.10. The SIB will: 24
2.11. The Commander of the mishap unit. 24
2.12. Director/Chief of Safety or Equivalent at all levels will: 24
2.13. Deployed Unit Safety Office. 26
2.14. The Responsible Contracting Office will: 27
2.15. The Program Offices will: 27
2.16. The Installation Fire Chief will: 27
2.17. The Security Forces Commander or AF Office of Special Investigations will: 27
2.18. The Installation Medical Commander will: 27

Chapter 3—GENERAL INFORMATION 28

3.1. Accounting for Losses and Occupational Illness/Injury. 28
3.2. Mishap Costs. 29
3.3. Recording Occupational Injuries and Illnesses. 30
3.4. Obtaining and Using Health Information. 31

Chapter 4—PRIVILEGED SAFETY INFORMATION 33

4.1. General Information. 33
4.2. Reports that Contain Safety Privilege. 33
4.3. Identifying Privileged Safety Information. 33
4.4. Prohibited Uses of Privileged Safety Reports and Information. 34
4.5. Promise of Confidentiality. 35
4.6. Marking and Documenting Safety Information. 36
4.7. Transmitting Safety Information. 36
4.8. Authorized Use and Release of Privileged Safety Reports and Information. 37
4.9. Authorized Use and Release of Non-Privileged Safety Reports and Information. . 42
4.10. Accessing, Handling, & Distributing the Safety Report. 43
4.11. Handling and Disclosing Reports on Ground and Industrial, and Explosives and Chemical Agents mishaps that occurred before 3 October 2000. 43
4.12. Technical Orders and Time Compliance Technical Orders. 43
4.13. Actual or Potential Compromise of Privileged Safety Information. 44
4.14. Protection of Privileged Safety Information from Use in Court Proceedings. 44

Chapter 5—DETERMINING INVESTIGATIVE RESPONSIBILITY 45

5.1. General Information. 45
5.2. Convening Authority Determination. 45
5.3. Events Involving Multiple Commands. 45
5.4. Events Involving Multiple Services. 46
5.5. Events Involving ARC Assets. 46
5.6. Events Involving NATO Systems or Personnel. 46
5.7. Events Involving Non-NATO Foreign Military Equipment or Personnel in the Continental US. 46
5.8. Events Involving Civil Aviation, Commercial Spacelift, Civil Air Patrol, AF Aero Clubs, and AF Initial Flight Training Students. 47
5.9. Mishaps Involving Contractors. 48

5.10. Civilian Occupational Events. 48
5.11. Special Circumstances. 48
Chapter 6—SAFETY INVESTIGATIONS **50**
6.1. General Information. 50
6.2. Investigation Funding. 50
6.3. SIB Membership. 51
6.4. Releasing Investigative Information During an Active Safety Investigation. 52
Chapter 7—INTERIM SAFETY BOARD **54**
7.1. ISB Duties. 54
7.2. Evidence Collection and Preservation. 54
7.3. Written and Verbal Testimony 57
7.4. ISB Handover to SIB. 59
Chapter 8—SAFETY INVESTIGATION BOARD **61**
8.1. SIB Duties. 61
8.2. Evidence Collection and Preservation. 61
8.3. Written and Verbal Testimony 63
8.4. Obtaining and Using Technical Assistance and Laboratory Analysis. 65
8.5. Determining and Documenting Factors. 66
8.6. Determining and Documenting Causes. 68
8.7. Determining and Documenting Findings. 69
8.8. Causal Findings 70
8.9. Determining and Documenting Recommendations. 71
8.10. Other Findings of Significance and Other Recommendations of Significance. 74
8.11. Safety Reports. 74
Table 8.1. Exhibit Groups. 74
8.12. Safety Messages. 80
8.13. Quality Control, Out-briefs, and Notifying Causal Participants. 80
8.14. Transferring and Disposing of Evidence. 80
Chapter 9—SAFETY MESSAGES AND REPORTS **82**
9.1. General Information. 82
9.2. Safety Messages. 82
9.3. Reporting Schedule. 83

Table 9.1. Message Reporting Schedule. 83
9.4. Classified Reporting. 84
Chapter 10—QUALITY CONTROL, OUT-BRIEFS, AND NOTIFYING CAUSAL PARTICIPANTS **85**
10.1. General Information. 85
10.2. Convening Authority Quality Control Review. 85
10.3. AFSEC Quality Control Review. 85
10.4. Briefing the Convening Authority. 85
10.5. Convening Authority Options. 87
10.6. Notifying Individual(s) Found Causal. 87
Chapter 11—FOLLOW-UP ACTIONS **89**
11.1. General Information. 89
11.2. Memorandum of Final Evaluation Message. 89
11.3. Managing Recommendations. 91
Table 11.1. Closure Approval Authority for Recommendations. 94
Attachment 1—GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION **97**
Attachment 2—ORGANIZATION CONTACT INFORMATION **110**

Chapter 1

PURPOSE AND OVERVIEW

1.1. Purpose of Investigations and Reports. Safety investigations are conducted, and safety reports are written, to prevent future mishaps. Legal investigations and boards are conducted for all other purposes. Commanders may not use safety reports to determine whether or not to conduct a legal investigation. **(T-1)** If initiated, criminal investigations take precedence over safety investigations until criminal activity has been ruled out as possible causes of damage, injury, or death (for criminal investigations, see **paragraph 5.11.2**.).

1.2. Overview. This instruction establishes guidance and procedures for conducting safety event investigations and report writing throughout the DAF.

1.2.1. For the purposes of this instruction, the term “Major Command (MAJCOM)” includes MAJCOM-equivalents in regards to safety responsibilities (i.e., Direct Reporting Units, Field Operating Agencies (e.g., ANG Readiness Center)). The term “Numbered AF (NAF)” includes NAF-equivalents in regards to safety responsibilities (e.g., US Air Force (USAF) Warfare Center and AF Life Cycle Management Center). The term “delta” includes USSF garrisons whom have responsibility for the installation safety program.

1.2.2. For the purposes of this instruction, the term “Safety Investigation Board (SIB)” includes a Single Investigating Officer (SIO) and any assembly of safety investigators.

1.2.3. For the purposes of this instruction, the term "aircraft" includes unmanned aerial vehicles (UAV) and unmanned aircraft systems (UAS).

1.3. Types of Safety Investigations. Many different events, ranging from catastrophic to observations of conditions, can lead to safety investigations. It is mandatory to investigate and report some events, while others may be reported voluntarily. Additionally, some investigations and reports are considered privileged while others are non-privileged. See the information below and in **Chapter 4** for further guidance. The five types of safety investigations are Mishap, Nuclear Surety, Incident, Hazard, and Safety Study.

1.4. Mishaps. Convening Authorities must ensure all Class A-D mishaps, and Class E mishaps that meet discipline-specific safety manuals (e.g., AF Manual (AFMAN) 91-223, *Aviation Safety Investigations and Reports*) reporting requirements, are reported. **(T-0)** Mishaps that do not meet mandatory reporting requirements may still be voluntarily investigated and reported.

1.4.1. Mishap investigations are privileged. However, the promise of confidentiality is not authorized for all mishaps. See **Chapter 4** for a description of which mishaps are authorized the use of the promise of confidentiality.

1.4.2. For the purposes of reporting and data collection, select the category and subcategory that best defines the mishap under investigation. Normally mishaps involve only one category and subcategory. However, occasionally mishaps have characteristics that relate to two or more mishap categories. For the primary category/subcategory, the mishap must meet the category definition in its entirety. If a mishap relates to a category definition, but does not completely meet the definition, up to two related cross-categories/subcategories may be selected. Mishap categories and subcategories are:

1.4.2.1. Space. A DAF mishap involving space systems and/or their unique support equipment and systems. Follow investigation procedures in accordance with this DAFI and AFMAN 91-222, *Space Safety Investigations and Reports*, for reporting and investigation requirements.

1.4.2.1.1. Pre-Launch. A mishap occurring during ground handling, processing, transportation operations, and/or involving launch vehicles/spacecraft prior to launch (Mission Elapsed Time=0). This includes launch vehicles and spacecraft to be delivered to the government under contract (either before or after government acceptance). In addition to complete launch vehicles and spacecraft, this includes spacecraft in the process of being manufactured; provided that the primary mission payload components have been installed on the bus.

1.4.2.1.2. Launch/Range. A mishap involving launch vehicle operations (after Mission Elapsed Time=0), including upper stages, or range support equipment. This includes payloads that do not obtain orbit, fly-back, range safety system failures, and range support failures.

1.4.2.1.3. Orbital. A mishap occurring after successful separation from all launch vehicle components, including upper stages and transfer/kick motors, and/or a mishap that affects command and control of an orbital asset. This includes space systems, such as command and control systems, directly supporting orbital operations.

1.4.2.1.4. Reentry. A mishap involving reentry not associated with launch. This includes the re-entry of ballistic payloads, reusable space vehicles, planned re-entry of payloads, and associated debris.

1.4.2.1.5. Ground-Based Space Systems. A mishap involving ground-based space systems not involved with supporting launch or solely dedicated to supporting orbital operations. This includes systems supporting space domain awareness, launch detection, missile tracking, offensive space control and defensive space control.

1.4.2.2. Aviation. A DAF mishap involving a Department of Defense (DoD) aircraft. Follow investigation procedures in accordance with this DAFI and AFMAN 91-223 for reporting and investigation requirements.

1.4.2.2.1. Flight. A DAF mishap where there is intent for flight and reportable damage to a DoD aircraft while being operated on DAF missions. Explosives and chemical agents or guided missile mishaps that cause damage to a DoD aircraft with intent for flight are categorized as aviation flight mishaps to avoid dual reporting.

1.4.2.2.2. Flight-Related. A DAF mishap where there is intent for flight and no reportable damage to the aircraft itself, but the mishap involves a fatality, reportable injury, or reportable property damage. On-duty parachuting deaths or injuries, including parachuting mishaps involving contractor aircraft, and parachuting equipment malfunctions fall under this subcategory (see **paragraph 5.4** for mishaps involving multiple services). A missile that is launched from a DoD aircraft, departs without damaging the aircraft, and is subsequently involved in a DoD mishap is reportable as a weapons mishap. Injuries or death to DoD personnel performing official duties in a contractor-owned or foreign military aircraft with intent for flight, including those with damage to the aircraft, are considered flight-related mishaps. This does not

include personnel traveling to or from temporary duty (TDY) locations on commercial air carriers.

1.4.2.2.3. Aviation Ground Operations. A DAF mishap that involves DoD aircraft with no intent for flight that results in reportable damage to the aircraft, injury, or fatality. Injuries or fatalities that occur where the aircraft is the injury mechanism (e.g., struck by/against, fell from) are considered Aviation Ground Operations mishaps. Injuries or fatalities that result while working in proximity to an aircraft, but the aircraft is not the injury mechanism, are investigated as Ground, Industrial & Occupational mishaps.

1.4.2.2.3.1. Damage to an aircraft, when it is being handled as a commodity or cargo, is a Ground, Industrial & Occupational mishap. Aircraft in depot status will be considered a commodity while entered into an "In-Dock Maintenance Phase" or equivalent and have depot work control documents or equivalent in lieu of standard aircraft maintenance forms.

1.4.2.2.3.2. Damage to a missile prior to the completion of weapons upload procedures, or after initiation of weapons download, is a weapons mishap.

1.4.2.3. Weapons. A DAF mishap involving explosives, small arms, guided missiles, chemical agents, or directed energy weapons that do not fall in the aviation ground operations category.

1.4.2.3.1. Explosives. A mishap involving DoD-owned explosive items resulting in damage or injury meeting reportable criteria caused by:

1.4.2.3.1.1. An explosion or functioning of explosive materials or devices (except as a result of enemy action). Example: An explosive cartridge fires with no damage; however the investigation reveals a bad micro-switch or needed procedural changes.

1.4.2.3.1.2. Inadvertent actuation, jettison, release, or launching of explosive devices.

1.4.2.3.1.3. Impacts of ordnance off-range.

1.4.2.3.1.4. A mishap in which explosives are present, even if there is no explosion.

1.4.2.3.2. Small Arms. A mishap resulting from the use of small arms.

1.4.2.3.3. Guided Missile, including Ground Launched Missile. A DAF mishap involving guided missiles or unique missile support equipment. Missiles that are unintentionally damaged or destroyed after launch from an aircraft, but cause no aircraft damage, will be classified as a guided missile mishap.

1.4.2.3.4. Chemical Agent. Any unintentional or uncontrolled release of a chemical agent where:

1.4.2.3.4.1. Reportable damage occurs to property from contamination or costs are incurred for decontamination.

1.4.2.3.4.2. Individuals exhibit symptoms of agent exposure.

1.4.2.3.4.3. The agent quantity released to the atmosphere is such that a serious potential for exposure is created by exceeding the applicable maximum allowable

concentration-time levels for exposure of unprotected workers or the general population or property.

1.4.2.3.5. Directed Energy Weapon. A mishap involving a directed energy weapon and/or unique directed energy weapon support equipment. Includes the application of directed energy primarily as a weapon to damage, disrupt, or destroy enemy resources. Directed energy weapons include, but are not limited to: high-power laser, microwave, and sonic/ultrasonic beam weapon systems. Mishaps involving directed energy devices that are not weapons should be reported under the Ground, Industrial & Occupational category or Ground-Based Space Systems category as applicable.

1.4.2.4. Afloat. A DAF mishap occurring on board or resulting from or during the operation of a DoD vessel, including mishaps during DoD diving or swimmer operations; mishaps occurring while loading, off-loading, or receiving services at dockside; and mishaps occurring up to the high water mark during amphibious or inshore warfare training operations. It applies to all injuries to DoD personnel occurring on board, whether or not job related. A mishap occurring on board that results from shipyard, repair facility, or private contractor operations is a Ground Industrial & Occupational mishap, not an Afloat mishap.

1.4.2.4.1. Industrial and Occupational. A mishap occurring on a vessel involving operations similar to those performed in private industry (such as boiler maintenance). Includes, but is not limited to, equipment maintenance, facility construction and maintenance, health care provision, laboratory research, and administrative and clerical tasks.

1.4.2.4.2. Sports, Recreation, and Individual Fitness. A mishap associated with an activity that requires physical exertion and skill that is governed by a set of rules or customs and often undertaken competitively and/or refreshes one's mind or body through activity that amuses or stimulates. Involves the activity of exerting muscles in various ways to keep fit through the performance of exercise. This includes all fitness activities that do not meet the criteria for command-directed or organized fitness programs.

1.4.2.4.3. Combat Support and Training. A mishap associated with a non-combat military exercise or a training activity designed to develop a military members physical ability, maintain, or increase individual or collective combat and peacekeeping skills, and is due to either a mishap or the result of natural causes when the medical event occurs during or within 1 hour after any training activity where the exercise or activity could be a contributing factor. This includes all training activities that do not meet the definition or are not included as values in Sports, Recreation, and Individual fitness.

1.4.2.4.4. Miscellaneous. A mishap not assigned to another subcategory.

1.4.2.5. Motor Vehicle. A DAF mishap involving the operation of a DoD-owned, leased, or rented motorized land vehicle which injures DAF personnel or results in DAF property damage. This also includes private motor vehicle mishaps in a traffic environment, with a vehicle that is licensed and registered. A bicyclist operating in the traffic environment in a transportation mode with no motor vehicle involvement is considered a Sports, Recreation, and Individual Fitness mishap. This category does not include sports and recreational off-

road motorcycle, off-road vehicles, and all-terrain vehicle mishaps. Motor vehicle mishaps are divided into the following subcategories:

1.4.2.5.1. Government Motor Vehicle. A motor vehicle mishap involving the operation of a government motor vehicle as defined in this instruction and in DoDI 6055.04, *DoD Traffic Safety Program*.

1.4.2.5.2. Government Vehicle, Other. A motor vehicle mishap involving the operation of a government vehicle, other, as defined in this instruction and in DoDI 6055.04.

1.4.2.5.3. Private Motor Vehicle. A motor vehicle mishap, regardless of the identity of the operator, that does not involve a government motor vehicle or government vehicle, other, but results in a fatality or injury to military personnel on- or off-duty or to on-duty DoD civilian personnel, or reportable damage to DoD property. Fatalities and injuries to bicyclists and pedestrians involving motor vehicles are included in this category.

1.4.2.6. Ground. AD DAF mishap that does not meet the mishap category definition of Space, Aviation, Weapons, Afloat, or Motor Vehicle as defined by this instruction. A mishap involving both on- and off-duty DoD military personnel is categorized as an on-duty mishap.

1.4.2.6.1. Industrial and Occupational. A mishap involving operations similar to those performed in private industry. Includes, but is not limited to, equipment maintenance, facility construction and maintenance, laboratory research, and administrative and clerical tasks and mishaps related to health care provision other than injury to patients under care. Natural phenomena mishaps are categorized as industrial mishaps.

1.4.2.6.2. Sports, Recreation, and Individual Fitness. A mishap associated with an activity that requires physical exertion and skill that is governed by a set of rules or customs and often undertaken competitively and/or refreshes one’s mind or body through activity that amuses or stimulates. Involves the activity of exerting muscles in various ways to keep fit through the performance of exercise. This includes all fitness activities that do not meet the criteria for command-directed or organized fitness programs. A mishap involving privately-owned recreational vehicles or aircraft that are primarily being used as transportation at the time of a mishap rather than for sport or recreational purposes will be categorized as a Miscellaneous mishap.

1.4.2.6.3. Combat Support and Training. A mishap associated with a non-combat military exercise or a training activity designed to develop a military members physical ability, maintain, or increase individual or collective combat and peacekeeping skills, and is due to either a mishap or the result of natural causes when the medical event occurs during or within 1 hour after any training activity where the exercise or activity could be a contributing factor. This includes all training activities that do not meet the definition or are not included as values in Sports, Recreation, and Individual fitness.

1.4.2.6.4. Miscellaneous. A mishap not assigned to another subcategory. Also included in this subcategory are reportable mishaps occurring while using a commercial carrier such as a commercial bus, airplane, or taxicab.

1.5. Nuclear Surety. The DAF must investigate and report events involving a nuclear weapon or nuclear weapon system. **(T-0)** Events that impact nuclear surety include: damage or failure of equipment on the Master Nuclear Certification List, violations involving nuclear weapon system safety rules, or deficiencies of any procedure or guidance related to nuclear weapons, systems or equipment that may lead to a violation of weapon system safety rules. Nuclear surety investigations and reports are mandatory. **(T-0)** Nuclear weapon accidents and incidents will be categorized and investigated as Class A mishaps and are privileged. **(T-0)** Deficiencies can meet Class A-E mishap criteria. Reference AFMAN 91-221, *Weapons Safety Investigations and Reports*, for a complete listing of nuclear flag words. Nuclear surety investigations are categorized as follows:

1.5.1. **Accidents.** Mishaps involving accidental, unauthorized, or unexplained events that could or could not create the risk of war, but meets any of the criteria listed in AFMAN 91-221 (e.g., BROKEN ARROW).

1.5.2. **Incidents.** Mishaps not included in the accident category but meeting any of the criteria in AFMAN 91-221 (e.g., BENT SPEAR).

1.5.3. **Deficiencies.** Non-damaging/non-injuring deficiencies that meet any of the DULL SWORD criteria listed in AFMAN 91-221 are classified apart from mishaps. Supervisors must ensure nuclear deficiencies (surety violations and failure/damage to support equipment listed in the Master Nuclear Certification Listing) are reported in accordance with AFMAN 91-221. **(T-1)** A DULL SWORD report may be associated with any class mishap. Deficiency investigations are non-privileged. Unclassified nuclear deficiencies, DULL SWORDs, are the only type of nuclear event handled by AFSAS. Do not use AFSAS for classified reporting. For classified events, report via e-mail using an appropriate secure means, such as the Secret Internet Protocol Router Network (SIPRNET).

1.6. Incident. A planned or unplanned occurrence or series of occurrences resulting in injury or damage that does not meet mishap or nuclear surety reporting criteria. Some Incident reports are mandatory. All Incident reports are non-privileged. There are two categories of Incident Investigations:

1.6.1. **Workplace Violence.** Any act or threat of physical violence, harassment, intimidation, or other threatening disruptive behavior that occurs at the work site. It ranges from threats and verbal abuse to physical assaults and even homicide. Workplace violence reports are mandatory and must be reported and recorded in AFSAS by the appropriate safety office to comply with Title 29 Code of Federal Regulations (CFR), Part1904, *Recording and Reporting Occupational Injuries and Illnesses*, however, they are not investigated by safety personnel.

1.6.2. **Other.** Other Incidents are unplanned events that do not meet Class A-E mishap reporting criteria (e.g., civilian off-duty injury) or other reporting criteria in this DAFI. Reporting or recording these events is voluntary unless required by 29 CFR 1904.

1.7. Hazard. In accordance with DoDI 6055.01, *DoD Safety and Occupational Health (SOH) Program*, all personnel must report identified hazards and supervisors must ensure hazards are eliminated or mitigated to an acceptable level. **(T-0)** See AFI 91-202, *The US Air Force Mishap Prevention Program*, and discipline-specific safety manuals for mandatory reporting requirements. Hazard investigations are not privileged and promises of confidentiality are not authorized. Hazard reports are categorized as aviation, ground, space, or weapons.

1.8. Safety Study. A safety study is an in-depth analysis of two or more events to identify root causes or hazards not previously identified utilizing DAF safety investigation processes. Unlike other safety investigations, safety studies are not tied to a single event. Safety studies are all voluntary and may be privileged or non-privileged. There are two categories of safety studies:

1.8.1. **Aggregate.** Aggregate studies use two or more similar events (mishaps, incidents, or hazards) to identify the root cause of a problem. Aggregate studies are used to make recommendations to mitigate hazards. Aggregate studies based on privileged safety data or products of deliberative processes of SIBs will be protected as privileged. Examples of aggregate safety studies include:

1.8.1.1. Aircraft systems that have had a high rate of failure with the potential to lead to a catastrophic mishap.

1.8.1.2. A series of traffic accidents at a particular intersection.

1.8.1.3. Radars at different locations with outages that are not otherwise reportable.

1.8.2. **Line Operations Safety Audit.** A Line Operations Safety Audit is an aviation safety program developed to gather safety-related data on environmental conditions, operational complexity, and human factors issues during everyday flying operations. The Line Operations Safety Audit report in itself is non-privileged, however when a SIB is formed the results of the investigation may be privileged. See DAFI 91-225, *Aviation Safety Programs,* for further information.

1.9. On-Duty and Off-Duty Mishap Determination. These determinations are for mishap reporting purposes only and have no relation to compensability or line-of-duty determination.

1.9.1. **On-Duty.** DAF personnel are on-duty when their activities are work-related (including teleworking, superior-directed fitness activities, and the AF Fitness Assessment) i.e., an event or exposure in the work environment either caused or contributed to the resulting condition or significantly aggravated a pre-existing injury or illness. Reference 29 CFR 1904 for further guidance.

1.9.1.1. Work-relatedness, for Occupational Safety and Health Administration (OSHA) recording purposes, is presumed for injuries and illnesses resulting from events or exposures occurring in the work environment, unless one of the following exceptions specifically applies:

1.9.1.1.1. At the time of the injury or illness, the employee was present in the work environment as a member of the general public rather than as an employee.

1.9.1.1.2. The injury or illness involves signs or symptoms that surface at work but result solely from a non-work-related event or exposure that occurs outside the work environment.

1.9.1.1.3. The injury or illness results solely from voluntary participation in a wellness program or in a medical, fitness, or recreational activity, such as blood donation, physical examination, flu shot, exercise class, racquetball, or baseball.

1.9.1.1.4. The injury or illness is solely the result of an employee eating, drinking, or preparing food or drink for personal consumption (whether bought on the supervisor's premises or brought in). For example, if the employee is injured by choking on a

sandwich while in the supervisor's establishment, the case would not be considered work-related. If the employee is made ill by ingesting food contaminated by workplace contaminants (such as lead), or gets food poisoning from food supplied by the supervisor, the case would be considered work-related.

1.9.1.1.5. The injury or illness is solely the result of an employee doing personal tasks (unrelated to their employment) at the establishment outside of the employee's assigned working hours.

1.9.1.1.6. The injury or illness is solely the result of personal grooming, self-medication for a non-work-related condition, or is intentionally self-inflicted.

1.9.1.1.7. The injury or illness is caused by a motor vehicle accident and occurs on a company parking lot or company access road while the employee is commuting to or from work. Driving to and from lunch is not considered on-duty.

1.9.1.1.8. The illness is the common cold or flu. Other contagious diseases (e.g., tuberculosis, brucellosis, hepatitis A, plague) may be considered work-related if the employee is infected at work.

1.9.1.1.9. The illness is a mental illness. Mental illness will not be considered work-related unless the employee voluntarily provides the supervisor with an opinion from a physician or other licensed health care professional with appropriate training and experience (psychiatrist, psychologist, psychiatric nurse practitioner, etc.) stating that the employee has a mental illness that is work-related.

1.9.1.2. Being transported by DoD or commercial conveyance to perform officially assigned work is considered on-duty. This includes travel in private motor vehicle or commercial conveyances while performing official duty, but not routine travel to and from work.

1.9.1.3. Work-relatedness is presumed for all activities aboard military vessels.

1.9.1.4. Personnel TDY, on temporary additional duty, or otherwise on assignment away from their regular place of employment are also on-duty when their activities are work-related. See 29 CFR 1904, paragraph 1904.5(b)(6)(i) 1904.5(b)(6) for more detailed information on "home away from home" and "detour travel for personal reasons" guidance.

1.9.1.5. A mishap involving both on- and off-duty military personnel in the same mishap will be categorized as an on-duty mishap.

1.9.2. **Off-Duty.** DAF personnel are considered off-duty when they are not on-duty.

1.9.2.1. DAF personnel are off-duty when participating in base team sporting activities in a permissive TDY status.

1.9.2.2. AF Academy Cadets participating in inter-collegiate, intramural sports, and club activities are off-duty.

1.9.2.3. Personnel commuting prior to or after their duty day are considered off-duty for mishap reporting purposes.

1.9.2.4. Reserve and Air National Guard personnel performing inactive duty training (e.g., drill, Additional Flight Training Program flights) will be considered off-duty in the

following circumstances: when traveling to or from the place at which such duty is performed; while remaining overnight, immediately before the commencement of inactive duty training; or while remaining overnight between successive periods of inactive duty training, at or in the vicinity of the site of the inactive duty training or if the site of the inactive duty training is outside reasonable commuting distance of the member's residence.

1.10. Exceptions to mandatory reporting requirements for this DAFI. Convening Authorities must initiate investigations in order to determine if an event meets exceptions to mandatory reporting requirements in DoDI 6055.07. **(T-0)** In addition to the exemptions listed in DoDI 6055.07 the following do not need to be reported under this instruction:

1.10.1. Intentional, controlled, in-flight jettison of aerial refueling hoses/drogues unless reportable property damage occurs. Intentional activation of flares, manually or by automatic countermeasure systems unless ensuing reportable damage.

1.10.2. Intentional or anticipated damage to DoD equipment or property incurred during authorized testing or combat training, including missile and ordnance firing or destruction of DoD property to prevent capture by an enemy or hostile force, to include the following:

1.10.2.1. Intentional electro-explosive device activation when part of a normal missile test or launch sequence, the launch is aborted, and there is no other reportable damage.

1.10.2.2. Expected damage or destruction of equipment, pallets, parachutes, etc., during airdrop operations.

1.10.2.3. Damage to, or destruction of, DoD equipment or property during authorized testing, including missile and ordnance firing, and UAV/UAS used as targets or on critical profile missions, provided all of the following conditions exist:

1.10.2.3.1. The extent of the damage or destruction was an expected or desired result of the test.

1.10.2.3.2. The damage or destruction occurred at planned times and for anticipated reasons.

1.10.2.4. For mishaps involving unmanned Full Scale Aerial Targets, the Interim Safety Board (ISB) will conduct a preliminary review of telemetry and/or control system data from the Gulf Range Drone Control System or the Drone Formation Control System. If the preliminary review indicates the event was related to target specific systems or drone modifications, the mishap may be investigated according to AFMAN 99-151, *Air Launched Munition Analysis Group (ALMAG)*. In all other cases, the mishap will be investigated under this instruction and AFMAN 91-223. **(T-0)**

1.10.3. Damage or destruction of a UAV resulting from a deliberative risk-acceptance decision by an appropriate command authority to employ the vehicle in an environment or condition where the risk of loss of the vehicle is outweighed by operational requirements. Although not a reportable mishap, the accountable MAJCOM safety office will report this loss to the AF Chief of Safety (AF/SE) via e-mail. The report will contain the date, location (when available), object identifier, short narrative, and the approval authority who accepted the risk.

1.10.4. Except when required to be reported as a Hazard, a safety report is not required when all of the following three conditions are true:

1.10.4.1. The failed item is a component part or line-replaceable unit. Examples include flightline replaceable engine components, electronic boxes, air cycle machines, pumps, tires, and drag braces. The following are major assemblies and not component parts nor line-replaceable units: aircraft subsystems such as engines, engine modules, landing gear, and gearboxes. Auxiliary power units are major assemblies unless identified by the mission design series program manager as a line-replaceable unit.

1.10.4.2. All damage and/or wear is confined to that component part or line-replaceable unit (if not confined, all associated damage costs must be added to determine if the occurrence is a reportable mishap).

1.10.4.3. The failed item is maintained as fly-to-fail (or normally used until they fail) or reached pre-determined wear limits due to normal wear and tear (as defined by the applicable technical order or program manager for aviation items).

1.10.5. Natural phenomena mishaps where adequate preparation, forecasting, and communication actions were taken and there were no injuries to DoD personnel. In order to determine if adequate actions were taken, the Convening Authority must initiate an investigation. **(T-0)**

1.10.6. ANG state-activated military and ANG state employees' on- or off-duty injury or illness unless their injury or illness involved DAF personnel, contractor operations, or property.

1.10.7. Death due to natural causes. For on-duty deaths due to strenuous acts a safety investigation will convene until management oversight and death by natural causes are ruled out. **(T-0)** This also applies to physical training associated with the requirement to pass physical standards. The following deaths by natural causes must be reported under this DAFI:

1.10.7.1. An aircrew member during flight. **(T-1)**

1.10.7.2. A missile crewmember on alert. **(T-1)**

1.10.7.3. A combat support and training related death. **(T-1)**

1.10.8. Injury or illness to foreign nationals working for the DAF as indirect hire personnel.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. General Information. The guidelines in this chapter establish investigating and reporting responsibilities for DAF safety mishaps, hazards, incidents, etc. The Secretary of the AF (SECAF), in Headquarters AF (HAF) Mission Directive 1-46, *Chief of Safety*, delegates specific DoDI 6055.07 responsibilities to the AF/SE.

2.2. The AF/SE will:

2.2.1. Provide technical and investigative expertise to safety investigations as directed by this instruction.

2.2.2. Prepare a Memorandum of Final Evaluation for on-duty Class A and B mishaps and nuclear surety investigations (accidents and incidents) and ensure they are disseminated to the MAJCOM/Field Command (FC) Director/Chief of Safety.

2.2.3. Develop joint and combined investigation policy or doctrine in coordination with other services and nations.

2.2.4. Provide oversight and management of open recommendations assigned to the HAF.

2.3. MAJCOM/FC Commanders will:

2.3.1. Establish policies and procedures to ensure safety events assigned under the provisions of this instruction are properly investigated and reported.

2.3.2. Establish policies and programs to validate the results of safety investigations and track safety investigation recommendations to their appropriate conclusions.

2.3.3. Ensure action is taken on all open recommendations on which the MAJCOM/FC (including subordinate units) is the action agency.

2.3.4. Ensure all mishaps that occur from operations of government contractors which result in reportable damage or injury to DAF property or personnel, even if the government is wholly or partially repaid, are investigated and reported according to this instruction and AFI 10-220, *Contractor's Flight and Ground Operations.* This includes non-accepted equipment (non-delivered equipment for which the Government has assumed responsibility) where a DD Form 250, *Material Inspection and Receiving Report,* has not been executed.

2.3.5. Notify the AF Nuclear Weapons Center (see **Attachment 2**) and the Defense Threat Reduction Agency Nuclear Surety Office (see **Attachment 2**) if nuclear surety events require design agency evaluation.

2.3.6. Report significant events or trends that could have adverse effects on the safety, security, or reliability of nuclear weapons systems.

2.3.7. Ensure joint base memorandum of agreements (MOA) or memorandum of understandings (MOU) are developed to comply with this instruction.

2.4. Acquisition and Sustainment Program Commanders (in addition to MAJCOM/FC commander requirements) will:

2.4.1. Provide cost analysis data to support DAF safety investigations. Ensure engine, engine module, shop replacement unit, spacecraft, and ground-based space system replacement unit mishap cost data (materiel and labor) is provided to the SIB within 15 days for Class A mishaps and within 30 days for all other mishap classes. The 15- and 30-day timelines begin when the depot or program office receives the requested information/materiel.

2.4.2. Provide verbal and written technical assistance in response to Mishap/Hazard Deficiency Reports to support DAF safety investigations. Ensure all exhibit teardown and/or technical reports are provided to the SIB within 15 days for a Category I Mishap/Hazard Deficiency Report and 30 days for a Category II Mishap/Hazard Deficiency Report. The 15- and 30-day timelines begin upon depot induction of the exhibit. Category I Mishap/Hazard Deficiency Reports are normally submitted for Class A mishaps and Category II Mishap/Hazard Deficiency Reports are normally submitted for Class B and C mishaps. See Technical Order 00-35D-54, *USAF Deficiency Reporting, Investigation, and Resolution*, for more information on completing deficiency reports.

2.4.3. Ensure the appropriate program manager for the weapon system or items involved receives and reviews Memorandum of Final Evaluations applicable to their systems and initiates publications or hardware changes as required. Maximize mishap prevention by transferring useful information from one weapon system to another.

2.4.4. Ensure a statement is included in all performance work statements/contracts concerning commercial contract maintenance that "Incident/Mishap-related prices shall be separated from other overhaul prices and shall be provided to safety investigators and the government program office responsible for sustaining the system involved in the mishap."

2.4.5. Materiel production facilities shall consider mishap exhibit turn-around goals in this DAFI against their production goals of serviceable assets.

2.5. The Convening Authority chosen in accordance with Paragraph 5.2 will:

2.5.1. Appoint and direct the safety investigation. Do not appoint the same SIB members to multiple ongoing investigations regardless of similarity. **(T-1)** Do not appoint contractors to be primary members of a SIB. **(T-1)**

2.5.2. Appoint a DAF member or members as Party to any National Transportation Safety Board investigation, as appropriate. These persons must not be assigned to the safety investigation or any legal investigation. **(T-1)**

2.5.3. Ensure ongoing safety investigations issue required safety reports in accordance with **Table 9.1**. **(T-1)**

2.5.4. Ensure safety investigations cover all relevant factors and meet the requirements of the DAF mishap prevention program. **(T-1)** Convening Authorities will provide applicable support to all SIBs. **(T-1)**

2.5.5. Ensure safety reports are submitted in AFSAS. **(T-1)** If more information is found after a report has been submitted, the Convening Authority may reopen the investigation or include the new information as a "Comment for Memorandum of Final Evaluation Message" to the AF Safety Center (AFSEC).

2.5.6. As necessary during the course of a safety investigation, authorize the release of non-privileged, non-Privacy Act information, to news media, relatives, and other agencies through the legal board president, Mortuary Affairs Officer, or Public Affairs representative as appropriate. **(T-1)**

2.5.7. Upon receiving notification of a critical safety concern take the following actions:

2.5.7.1. Notify other action agencies, the appropriate program manager (for joint programs the program manager is considered to be the Joint Program Office or equivalent) for the weapon system or items involved, the weapons system lead command (AFPD 10-9, *Lead Command Designation and Responsibilities For Weapon Systems)*, and AFSEC. **(T-1)** These action agencies must evaluate the nature and seriousness of the information, determine the proper response, and issue required instructions. **(T-1)**

2.5.7.2. Ensure the program manager has access to specific technical information and other critical information as it becomes available so the program manager can meet airworthiness responsibilities required by AFI 62-601, *USAF Airworthiness*, and Life Cycle Systems Engineering responsibilities required by AFI 63-101/20-101, *Integrated Life Cycle Management.* **(T-1)**

2.5.7.3. Ensure originating units send critical safety hazard information to appropriate agencies in accordance with AFI 11-215, *Flight Manuals Program*, and Technical Order 00-5-1, *AF Technical Order System*. **(T-1)**

2.5.7.4. As quickly as practical, forward all critical safety information related to military variants of civil aircraft and commercial off-the-shelf aircraft and equipment to the AFSEC Flight Safety Division (AFSEC/SEF). **(T-1)** AFSEC/SEF will ensure all such information contributing to the promotion of aviation safety is forwarded to the Administrator of the Federal Aviation Administration (FAA) and/or the Chairperson of the National Transportation Safety Board for appropriate action without disclosing privileged safety information.

2.5.8. Any time Fire Emergency Services (FES) tactics or competency is at issue, the Convening Authority will request investigative support from the MAJCOM/FC and/or AF Installation Mission Support Center (AFIMSC) FES staff. **(T-2)**

2.5.9. Convene SIBs for mishaps involving DoD contracted aircraft declared to be in public aircraft operation status. **(T-0)** See FAA Advisory Circular 00-1.1B, *Public Aircraft Operations-Manned and Unmanned*.

2.6. The Commander of the Regular AF installation nearest a mishap. This includes AF-led Joint Bases or alternate organization as designated by the Convening Authority. The commander will ensure the following are accomplished by the appropriate agency:

2.6.1. Respond to a mishap involving DoD assets in accordance with AFI 10-2501, *Emergency Management Program* and AFMAN 10-2502, *Air Force Incident Management System (AFIMS) Standards and Procedures.* **(T-1)** Air Reserve Component (ARC) (AF Reserve and ANG) installations, if nearest the mishap, will respond with available resources to the maximum extent possible, in coordination with the responding Regular AF installation. **(T-1)** Mishap response and SIB support MOA/MOUs between Regular AF and ARC units will be initiated by the Regular AF duty installation and maintained by the MAJCOM/FC

Director/Chief of Safety, the AFRC Director of Safety, and the National Guard Bureau (NGB) Director of Safety. **(T-1)**

2.6.1.1. **(Added-ANG)** When deployed for contingency or exercise, ANG units will establish contact with the nearest REGAF Wing Safety office. ANG units will also identify members from the deployed unit that are available to support an ISB in the case of a mishap.

2.6.2. Provide logistical and investigative support as required.

2.6.2.1. For Geographically Separated Units (GSU) or ARC units located on predominantly non-AF installations, logistical and investigative support are the responsibility of the commander of the nearest Regular AF wing/delta with a safety office. **(T-1)** The Regular AF wing/delta and GSU or ARC unit should coordinate support through MOA/MOUs.

2.6.2.2. Contingency funds may be available to reimburse the shipping agency that handles evidence for a mishap that occurred while supporting a contingency operation. To ensure reimbursement the shipping agency must use the appropriate emergency and special program code based on its MAJCOM/FC and the area of responsibility. **(T-1)**

2.6.3. Gather factual data related to the mishap until the Convening Authority-appointed SIB can conduct an investigation. **(T-1)** Depending on the mishap, an ISB may consist of one individual or several depending on the judgment of the installation commander. See discipline-specific safety manuals for ISB member requirements.

2.6.3.1. In the event of fatalities, take great care to ensure a positive chain of custody for all human remains. If any chain of custody issues arise, contact the Convening Authority immediately. **(T-1)**

2.6.3.2. Direct the ISB to receive a briefing from the wing/delta safety office immediately. This briefing will refresh members on how to conduct the ISB and whether witnesses may be offered a promise of confidentiality, in accordance with section **4.5**, after they have demonstrated reluctance to provide a non-confidential statement. **(T-1)** Provide the ISB information from the AFSAS/Pubs & Refs/ISB Go Package at **https://afsas.safety.af.mil/publications/PublicationHomepage.do** (hereinafter ISB Go Package). **(T-2)**

2.6.3.3. Do not appoint personnel involved in the mishap, or their immediate supervisors, to the ISB. **(T-1)** Do not appoint contractors to be members of an ISB. **(T-1)**

2.6.4. Ensure toxicology testing is immediately accomplished following a mishap, if required or deemed necessary. **(T-1)**

2.6.4.1. Evidence gathering and toxicology testing should be balanced with operational requirements. For example, during UAV/UAS scenarios where one crew is controlling multiple vehicles, operational need may delay replacement of the crew and toxicology testing until remaining vehicles are safely recovered.

2.6.4.2. Maintain a legally defensible chain of custody. **(T-1)** At a minimum, direct observation and documentation of the sample collection (e.g., name of observer, date/time of collection) should be maintained by the submitting base. Toxicological testing is a different process than Drug Demand Reduction Program testing. Procedural guidelines for collection and shipment of toxicological analysis specimens is available at the “Guidelines

for the Collection and Shipment of Toxicology Specimens" link on **http://www.health.mil/afmes/**. Toxicological analyses should be directed toward controlled substances, any medications indicated by the medical history, and environmental substances (such as carbon monoxide) indicated by the nature of the mishap or event. Samples should be sent to the Armed Forces Medical Examiner System Office (see **Attachment 2**) to the maximum extent possible.

2.6.4.3. Blood testing is superior and the preferred method for all categories of safety investigations over urine testing since it provides an opportunity to determine the concentration of the substance and thus the expected performance decrement. Also, not all substances are excreted in the urine. DoD civilians are subject to testing by consent when their action or inaction may have contributed to the mishap or in accordance with AFMAN 44-198, *Air Force Civilian Drug Demand Reduction Program*. Since they may only be required to complete a urinalysis, coordinate with the Civilian Personnel Office or Contracting Officer before requiring blood samples from DoD civilian or contractor employees. **(T-2)** Blood testing will be used for toxicological testing of military members for aviation safety investigations. **(T-1)**

2.6.4.3.1. For all Class A and B aviation mishaps, commanders must test all military crewmembers on the flight orders (see **paragraph 2.6.4.3.3** for UAV exceptions). **(T-1)** For all on-duty Class A and B mishaps, commanders must test all military members in primary control of the involved equipment or environment, including on-scene instructors if a student is involved. **(T-1)** For all classes and categories of mishaps, commanders have the discretion to test crewmembers or any additional involved military members under their command whose actions or inactions, in their judgment, may have been factors in the mishap. Because this is an investigation, the decision must be based on the event, not any suspicion of drug use. **(T-1)**

2.6.4.3.2. Because the evidence is perishable, commanders should test all involved personnel (see **paragraph 2.6.4.3.3** for UAV exceptions) for mishaps that have the potential of meeting the Class B mishap threshold. When ARC personnel are involved in a mishap, coordinate with the ARC unit commander and/or AFRC/NGB safety offices to resolve any issues that may arise due to duty status issues (e.g., ARC personnel flying in civilian or Inactive Duty for Training status). Regular AF and ARC units should establish MOA/MOUs to clarify procedures and prevent delays.

2.6.4.3.3. For UAV/UAS Class A and B mishaps, testing of involved crewmembers is only mandatory for the crew or crews (including instructors or evaluators performing "over the shoulder" duties) which operated the aircraft during and immediately preceding the mishap sequence. This is defined as the last two crews to operate the aircraft. Additionally, testing is mandatory for any technician who performed maintenance on the ground control station during this period. **(T-1)**

2.6.4.3.4. Government contract employees will be tested by consent or in accordance with the terms and conditions of the applicable contract, when their actions or inaction in the commander's judgment may have been a factor in the mishap sequence. **(T-0)** Coordinate with the contracting office to assist as needed.

2.6.4.4. **(Added-ANG)** ANG units will ensure wing flight surgeon/medical personnel establish local procedures for toxicology testing of mishap individuals that comply with

DAF standards in accordance with section 2.6.4.2. The procedures will be included in appropriate unit mishap response checklists and executable at any time, regardless of duty hours.

2.6.5. Direct the ISB to follow evidence collection procedures in **paragraph 7.2**. **(T-1)**

2.6.6. Ensure the appropriate military notifications are accomplished:

2.6.6.1. When requested by public affairs office for mishap information, ensure only non-privileged information is released. **(T-1)** Release safety information only as authorized by this instruction, specifically paragraphs **4.8** and **8.2.2.2**. **(T-1)**

2.6.6.2. Notify the home installation commander of all casualties, both military and civilian, and ensure the casualties are reported as outlined in AFI 36-3002, *Casualty Services*. **(T-2)**

2.6.6.3. Notify the departure and destination bases and the commander of the unit that had the mishap. **(T-1)**

2.6.6.4. Notify the home installation of the persons involved in a US Army, US Navy, US Marine Corps, or US Coast Guard mishap or, if the home installation is unknown, the nearest installation of the responsible service. **(T-1)**

2.6.6.5. Notify the Armed Forces Medical Examiner System Office (see **Attachment 2**) whenever there is a fatality of a DAF member. **(T-1)**

2.6.6.6. Notify Air Combat Command's (ACC) Hammer Adaptive Communications Element (see **Attachment 2**) if communications support is deemed necessary. ACC's Hammer Adaptive Communications Element is a special purpose, quick reaction communications unit that may deploy worldwide within three hours of notification. ACC's Hammer Adaptive Communications Element is funded to provide services to safety investigations at no cost to MAJCOM/FCs or AF wings/deltas.

2.6.6.7. Notify the Military Surface Deployment and Distribution Command's Defense Transportation Tracking System (see **Attachment 2**) when a mishap involves explosives or other dangerous articles being transported or handled by a commercial motor or rail carrier under Department of Transportation regulations. **(T-1)**

2.6.6.8. Notify the local Command Post (Command Post may have reporting requirements in accordance with AFMAN 10-206, *Operational Reporting*). **(T-1)** Although Operational Report -3 reports must meet requirements not set by the safety community, safety personnel should coordinate with the Command Post to ensure that Operational Report-3 reports do not contain inaccurate or privileged safety information.

2.6.7. In the US, ensure the appropriate civilian notifications are accomplished:

2.6.7.1. Notify the nearest National Transportation Safety Board regional or field office or the nearest FAA Air Traffic facility if a civil aircraft is involved in a mishap on their installation.

2.6.7.2. Notify the FAA Office of Commercial Space Transportation Combined Operations Center (see **Attachment 2**) if licensed commercial space systems are involved in the mishap. **(T-0)** During launch of a commercial space vehicle from a DAF facility, the

on-site FAA Office of Commercial Space Transportation representative will fulfill this notification requirement and up-channel as required.

2.6.7.3. Notify the nearest OSHA area or regional office within 8 hours of an on-duty mishap when the mishap results in a DAF civilian employee fatality, to include heart attack victims. **(T-0)** For any in-patient hospitalization, amputation, or eye loss involving a DAF civilian employee that occurs within 24 hours of a work-related incident, report the event within 24 hours to the nearest OSHA office. **(T-0)** If unable to contact the nearest OSHA area office or regional office within the required 8-hour time frame, contact the OSHA 24-hour toll free hotline (see **Attachment 2**). **(T-0)** When a DAF civilian is on temporary duty status, temporary additional duty, or otherwise on assignment away from their regular place of employment and incurs a mishap resulting in-patient hospitalization the temporary duty location safety office will notify the nearest OSHA office within 24 hours of the event. **(T-0)**

2.6.7.4. Notify federal, state, and local environmental officials, as required, of environmental hazards and spills associated with the mishap. **(T-0)**

2.6.7.5. Notify appropriate medical or law enforcement authorities as soon as possible in case of non-DAF injury or property damage. **(T-1)**

2.7. The ISB President or Investigating Officer will:

2.7.1. Immediately coordinate with the local safety office for guidance on performing the duties of an ISB. **(T-2)**

2.7.2. Ensure that all information, privileged or not, collected by safety investigators is not released outside safety channels except in accordance with this instruction. **(T-1)**

2.7.3. Identify and protect privileged safety information in accordance with **Chapter 4**. **(T-1)**

2.7.4. Ensure every ISB member signs a "Non-Disclosure Agreement-Safety Investigation-DoD Personnel" acknowledging the guidance and restrictions placed on information gathered during a safety investigation. **(T-1)** Use the most current templates located in the ISB Go Package. **(T-1)**

2.7.5. Preserve evidence and gather factual data in accordance with guidance in **Chapter 7**. **(T-1)** Preservation of evidence may include coordinating the collection of evidence from other ISBs located at different locations.

2.7.6. In coordination with the local or Convening Authority safety office, submit a non-privileged preliminary message in AFSAS within the reporting guidelines of **Table 9.1**. **(T-1)**

2.8. The ISB will: Work solely for the commander who appointed the ISB while accomplishing the requirements outlined in this instruction. **(T-2)**

2.9. The SIB President or SIO will:

2.9.1. Work solely for the Convening Authority while accomplishing the requirements outlined in this instruction. **(T-2)**

2.9.2. Ensure that all information, privileged or not, collected by safety investigators is not released outside safety channels except in accordance with this instruction. **(T-1)**

2.9.3. Identify and protect privileged safety information in accordance with **Chapter 4**. **(T-1)**

2.9.4. Ensure every SIB member signs the "SIB Member Guidance and NDA" acknowledging the guidance and restrictions placed on information gathered during a safety investigation. **(T-1)** Use the template located in AFSAS/Pubs & Refs/SIB/SIO Go Package at **https://afsas.safety.af.mil/publications/PublicationHomepage.do** (hereinafter SIB Go Package). **(T-1)**

2.9.5. Upon discovery of information that seriously impacts the safe operation of a weapons system or endangers personnel, immediately notify the Convening Authority, and potentially the unit commander if the Convening Authority notification cannot be made in a timely manner, regardless of whether such information is associated with the mishap currently under investigation. **(T-1)**

2.10. The SIB will: Work solely for the Convening Authority while accomplishing the requirements outlined in this instruction. **(T-2)**

2.11. The Commander of the mishap unit. When the commander of the mishap unit and the mishap location are not co-located the Commander of the mishap unit will:

2.11.1. Coordinate with the commander of the AF installation nearest to the mishap to ensure the appropriate notifications in paragraphs **2.6.6** and **2.6.7** are accomplished. **(T-1)**

2.11.2. Assist the ISB as required/requested. **(T-1)**The commander of the mishap unit will appoint an ISB to complete initial data gathering and preserve evidence for the SIB. **(T-1)**

2.11.3. Ensure toxicology testing is performed in accordance with **paragraph 2.6.4**. **(T-1)**

2.12. Director/Chief of Safety or Equivalent at all levels will:

2.12.1. Ensure individuals with access to safety or mishap information, privileged or otherwise, know the limitations placed on their uses and are trained on the proper procedures for protecting such materials before receiving any safety or mishap information. **(T-1)** Annually train and document the training of all personnel with access to privileged safety information on the proper handling procedures. **(T-1)**

2.12.2. Maintain a current roster of personnel trained and qualified to perform ISB/SIB duties for space, aviation, weapons, and ground mishaps as applicable. **(T-1)** This includes aerospace physiologists, psychologists, and flight surgeons.

2.12.2.1. Provide annual refresher training on the basics of mishap investigation to personnel trained and qualified to perform ISB/SIB duties (AFRC will only train personnel for interim board participation per MOA/MOUs with the closest Regular AF installation). **(T-1)**

2.12.2.2. Include available human factors experts (e.g., aerospace physiologists, psychologists, flight surgeons) who have completed either the Aircraft Mishap Investigation and Prevention workshop, Aircraft Mishap Investigation Course, Mishap Investigation Non-Aviation course, or Introduction to Mishap Investigation course in annual refresher training. **(T-1)** Annually track human factors experts for completion of training and availability to support ISBs and SIBs. **(T-1)**

2.12.2.3. **(Added-ANG)** The ANG Aviation Mishap SIB Bucket Process groups Wings into four "Buckets" (A/B/C/D) across the fiscal year (FY), deconflicted with contingency

deployments to the max extent practical, in order to allow Wings to proactively prepare for support of ANG mishap investigations.

2.12.2.3.1. **(Added-ANG)** Wing Safety offices will recommend at least one candidate for each of the following SIB Bucket positions for Wing/CC consideration and approval:

2.12.2.3.1.1. **(Added-ANG)** 1x Board President candidate (O-6 or higher)

2.12.2.3.1.2. **(Added-ANG)** 1x Investigating Officer candidate

2.12.2.3.1.3. **(Added-ANG)** 1x Pilot Member candidate

2.12.2.3.1.4. **(Added-ANG)** 1x Maintenance Member candidate

2.12.2.3.1.5. **(Added-ANG)** Wing Safety offices will email the Wing/CC-approved SIB Candidate List to the NGB/SEF Org Box: **NGB.SE.SEF.Flight.Safety.Org@us.af.mil**

2.12.2.3.2. **(Added-ANG)** NGB/SE will verify all Wing/CC-approved SIB Candidate Lists have been received via email.

2.12.2.3.2.1. **(Added-ANG)** NGB/SE will attempt to resolve shortfalls with Wings who have not provided the requested SIB candidates.

2.12.2.3.2.2. **(Added-ANG)** If unable to adjudicate, NGB/SE will seek Wing/CC justification and forward to ANGRC/CC for awareness.

2.12.2.3.3. **(Added-ANG)** Convening Authority will approve ANG SIB members, NGB/SE will notify Wing/CCs and State Leadership (if O-7 or higher BPs are selected). NGB/SE will assist Chiefs of Safety and SIB members with preparation, orders, and other admin support.

2.12.2.3.4. **(Added-ANG)** Each Wing also has the flexibility to change SIB Bucket candidates at any time prior to, or during its vulnerability period. Wings may also divide the four SIB candidate position (Board President (BP), Investigation Officer (IO), Pilot Member (PM), Maintenance Member (MM)) vulnerability periods among multiple candidates (e.g., 3x trained BPs, each covering 1 month of the BP vulnerability).

2.12.2.3.4.1. **(Added-ANG)** In the event of unusual circumstances or vulnerability conflicts, NGB/SE will work with each Wing individually to ensure SIB Bucket success.

2.12.2.3.5. **(Added-ANG)** NGB/SE will assist Wing Safety offices by prioritizing Board President Course (BPC) and Aircraft Mishap Investigation Course (AMIC) training and funding for Wings with limited, formally-trained Board Presidents (BP) and Investigating Officers (IO). For those organization/personnel support USSF mission/operations, consider completing the Space Mishap Investigation Course (SMIC). * *The most current information pertaining to the ANG SIB bucket process, guidance, templates, and schedule is maintained in the SEF Shared Library "SIB Bucket" folder on the ANG Flight Safety Sharepoint site.*

2.12.3. Ensure individuals appointed to ISBs are:

2.12.3.1. Briefed on how to conduct the ISB in accordance with section 2.7. **(T-2)**

2.12.3.2. Provided the information in the current ISB Go Package. **(T-1)**

2.12.3.3. Trained on the proper handling procedures of privileged safety information before receiving any safety or mishap information. **(T-1)**

2.12.3.4. Briefed on how to conduct witness interviews and whether witnesses may be offered a promise of confidentiality, in accordance with section 4.5. **(T-1)**

2.12.4. Ensure individuals appointed to investigate mishaps are trained on the proper handling procedures of privileged safety information before receiving any safety or mishap information. **(T-1)**

2.12.5. Provide oversight and management of their organization's (and below) open recommendations. **(T-1)**

2.12.6. **(Added-ANG)** Wing or Unit safety personnel will notify NGB/SE as soon as possible when a Class A, B or C mishap occurs. NGB/SE notification is also required for Class C mishaps that are significant enough to trigger a local safety office response. During NGB/SE duty hours this report will be via direct voice contact with NGB/SE personnel. During non-duty hours contact will be made through phone patch or voice relay to the ANG Command Center at Joint Base Andrews DSN voice: 312-858-6001, Comm voice: (301) 981-6001, or e-mail to **NGB.A2.3.6.ANG.Command.Center.Org@us.af.mil**. When uncertain whether incident costs will reach the Class B threshold, immediate reporting after duty hours may be via e-mail with a best estimate cost range followed by voice report at the start of the next duty day. The intent of this requirement is to enable NGB/SE to assemble Safety Investigation Board (SIB) members as quickly as possible for evidence preservation. In addition, Wing or Unit safety personnel should coordinate on the unit mishap OPREP and BEELINE reports.

2.12.6.1. **(Added-ANG)** Off-duty injury/loss of any ANG member while in military status (e.g. Active Guard/Reserve (AGR), leave, medical hold) will be recorded as a mishap. Therefore, it is imperative that the assigned unit determines the member's military status immediately after notification of an off-duty injury/loss. For all off-duty injuries/losses, notify NGB/SE once the member's status has been confirmed.

2.12.6.2. **(Added-ANG)** Each unit safety office will review/update their Mishap Response Plan and SIB support MOUs/MOAs on an annual basis during the last quarter of each fiscal year. Each unit safety office will post their Mishap Response Plan and SIB support MOUs/MOAs on the NGB/SE SharePoint Site in the appropriate folder. In addition, each Wing/Group unit-level safety office will provide a memorandum to NGB/SE on an annual basis no later than (NLT) 15 November confirming that a review has been accomplished.

2.12.7. **(Added-ANG)** For a Class A mishap that occurs OCONUS, notify MAJCOM Safety Office for the respective AOR. NGB/SE will maintain a MAJCOM contact list to distribute as required or requested. This also applies to any mishap less than Class A that could reasonably attract public attention or Senior Leader inquiry.

2.13. Deployed Unit Safety Office. Safety personnel deployed with DoD assets or an established safety office overseas in an area of responsibility responding to a mishap will:

2.13.1. Gather evidence and initiate an AFSAS safety report. **(T-1)** This office will coordinate with the appointed SIB to compile the mishap data that will be collected locally and forward it to the owning unit for mishap report completion. **(T-1)**

2.13.2. Notify the Commander, AF Forces (COMAFFOR) safety office, who will, in turn, notify and coordinate with the MAJCOM/FC that owns the asset (property) or personnel involved in the mishap. **(T-1)**

2.13.3. Ensure compliance with the requirements set forth in this instruction as the "nearest Regular AF installation" (see **paragraph 2.6**) with regards to responding to a mishap. **(T-1)** Ultimate investigating and reporting responsibilities remain with the Convening Authority.

2.13.4. Coordinate with the appointed safety investigator to compile and complete as much of the mishap investigation report that can be accomplished at the mishap location, and then forward to the owning organization for final entry into AFSAS for proper accountability. **(T-1)**

2.14. The Responsible Contracting Office will: Ensure contracts and lease agreements require contractors and subcontractors (e.g., contract aircraft maintenance) to promptly report pertinent facts regarding mishaps involving reportable damage or injury to the DAF and to cooperate in accordance with this instruction, in any DAF investigation. **(T-1)** Cooperation will include toxicology testing. **(T-1)** For additional guidance on contracts see AFI 91-202.

2.15. The Program Offices will: Analyze (for Class A and B mishaps involving the system(s) they are responsible for) the hazards that contributed to the mishap and recommend material risk mitigation measures, especially those that can minimize potential human errors. **(T-0)**

2.16. The Installation Fire Chief will: Determine the most probable cause for Class C fire-related mishaps. **(T-0)** For Class A and B fire-related mishaps, the SIB will request support from the MAJCOM/FC FES and/or AFIMSC FES staff to conduct the fire investigation (see **paragraph 5.11.3**). **(T-2)**

2.17. The Security Forces Commander or AF Office of Special Investigations will: Provide minimum mandatory data to the installation safety office to complete OSHA recordkeeping requirements for all workplace violence acts. **(T-0)**

2.18. The Installation Medical Commander will:

2.18.1. Provide safety trained medical providers, and/or human factors experts to support ISBs and SIBs in accordance with discipline-specific safety manual requirements. **(T-1)**

2.18.2. Ensure occupational and environmental illnesses reported to Public Health are investigated and reported in AFSAS within 30 days. **(T-1)**

2.18.3. As required, provide all medical records for individuals involved in a mishap to the ISB or SIB medical members. **(T-1)**

Chapter 3

GENERAL INFORMATION

3.1. Accounting for Losses and Occupational Illness/Injury. The DAF records each mishap to the MAJCOM/FC that experienced the loss or a majority of the loss of an owned asset (personnel or property). For statistical purposes, the occurrence is recorded as a mishap in that MAJCOM/FC (or in "USAF At Large" when applicable) regardless of any determination as to the responsibility for the mishap. Generally, the mishap is recorded in the MAJCOM/FC that has investigative responsibility for the mishap. Mishap accounting in no way implies blame or mishap responsibility.

3.1.1. Record a military or civilian injury/loss to the MAJCOM/FC the individual is assigned to at the time of a mishap. Use military personnel data records and civilian payroll records to make determinations. ARC personnel who are activated under Title 10 of the US Code are accounted to their parent unit. If injured individual is assigned to a classified unit, use the first level of origination that is not classified as their owning organization.

3.1.2. Record a mishap occurring to an individual in any permanent change of station status to the losing MAJCOM/FC until the individual signs in at the new duty station. The "transfer effective date" is not criteria for determining the unit of assignment.

3.1.3. Record a mishap involving an individual in permanent change of station status with TDY pending further orders to the organization originating the initial orders until the individual signs in at the next permanent duty station.

3.1.4. The accounting organization in AFSAS for mishaps involving foreign exchange students and military members in non-pay status while awaiting an appellate review (appellate leave) or court martial will be the "USAF At Large". For mishap reporting purposes, personnel in a non-pay status are returned to active duty when notified (written or verbal) to return to a DAF installation.

3.1.5. When a unit makes a DAF government motor vehicle or government vehicle, other available to another unit on a recurring or permanent dispatch, the using organization is the owning command. Vehicles assigned to non-appropriated funded organizations are not considered government motor vehicle or government vehicle, other. Vehicles on receipt to, and operated by, non-DoD persons or agencies and activities such as the US Postal Service or the American Red Cross are not government motor vehicles for the purposes of this DAFI.

3.1.6. For all mishaps and incidents, ensure the unit's/member's home station safety office and if applicable, the safety representative at the deployed or TDY location, is notified and receives all pertinent information as soon as possible.

3.1.7. The accounting organization is the unit of assignment of the asset damaged or personnel injured in the mishap. For aircraft mishaps, see AFI 21-103, *Equipment Inventory, Status and Utilization Reporting,* or consult the MAJCOM Aerial Vehicle Distribution Officer.

3.1.7.1. **(Added-ANG)** Regardless of mishap location, or in what status a TDY ANG person is in when injured, the home unit will be the accounting organization. The same applies to aircraft mishaps. If an ANG aircraft is loaned to another unit, the home unit that permanently owns the aircraft is still the accounting organization.

3.2. Mishap Costs. See DoDI 6055.07 for detailed costing information and below for how to determine mishap costs.

3.2.1. Materiel Costs.

3.2.1.1. Field-level repair. If repaired locally, calculate the actual cost of the materiel used to repair the item.

3.2.1.2. Depot-level repair. Contact the Logistics Readiness Squadron Materiel Management Customer Support Section to obtain the exchange cost for each stock listed item requiring depot-level repair from the AF Master Item Identification Data Base. If the item is not stock listed, contact the program manager. If the sum total of the exchange cost falls within the Class A or B mishap range, obtain an estimated cost of repair based upon actual damage from the depot/repair facility. Report this estimated cost. If the depot/repair facility cannot provide an estimated cost of repair based upon actual damage, revert to using exchange cost from the AF Master Item Identification Data Base. If the sum total of the exchange cost is not within the Class A or B mishap range, report the exchange cost.

3.2.2. Labor Costs. Obtain the labor cost hourly rate from the AFSEC Portal website or contact AFSEC technical support for assistance.

3.2.2.1. Field-level. Calculate by multiplying number of hours of labor of DoD military and civilian personnel times the field-level hourly rate.

3.2.2.2. Depot-level. Calculate by multiplying number of hours of labor to repair times the depot-level hourly rate.

3.2.3. Contractor repairs (both field- and depot-level). Costs to repair damage must be reported even if the DAF is reimbursed or if the repair is accomplished under warranty. Use the actual cost charged to the government for repairs performed by contractors. If the contractor considers itemized costs to be proprietary information, request and report only the sum total. Contact the Program Manager for assistance in obtaining contractor repair costs.

3.2.4. Destroyed Assets.

3.2.4.1. Determining destroyed aircraft cost. If the aircraft is destroyed, obtain flyaway cost from the AF Portal under the Financial Management functional area. Select “AFI 65-503, Cost Factors” from the menu, then select “A10-1 Unit Flyaway Costs”. Use the table for the latest fiscal year (e.g., Table A-10 FY20 Inflation Adjusted 20200306). If assistance is required and the requestor does not have access to the AF Portal, contact the AF Cost Analysis Agency (see **Attachment 2**). Contact the Program Manager to get the cost of all modifications done to the aircraft up to the mishap date. An aircraft that is damaged but will not be repaired is not automatically a destroyed aircraft. In this case, calculate repair cost in accordance with paragraphs **3.2.1**, **3.2.2**, and/or **3.2.3** (as appropriate) as if it had been repaired and returned to service.

3.2.4.2. Other destroyed or lost assets with no item to exchange. Use the standard (unit) cost from the AF Master Item Identification Data Base or the program manager. To access the AF Master Item Identification Data Base, contact the local Logistics Readiness Squadron Materiel Management Customer Support Section.

3.2.4.3. Determining Costs to Non-DoD Property Damage. If DAF operations result in damage of non-DoD property, calculate and report the damage cost. Determine non-DoD

property damage costs using official estimates from agencies such as, but not limited to, logistics readiness offices or licensed/credentialed estimators.

3.2.4.4. Determining Environmental Clean-Up Costs. Obtain these costs from the local civil engineering environmental section. The end cost of this type of cleanup may not be available inside the normal investigation timeframe. Use the best estimate available at the time of the final message. Environmental clean-up costs include costs for cleanup, environmental decontamination, and restoration of private and government property.

3.3. Recording Occupational Injuries and Illnesses. Executive Order 12196, *Occupational Safety and Health Program for Federal Employees*, requires federal agencies to report occupational mishaps to the Secretary of Labor. Title 29 CFR 1960, *Basic Program Elements for Federal Employee Occupational Safety and Health Programs and Related Matters* and 29 CFR 1904 set requirements and provide standard forms for documenting occupational illnesses and injuries. **(T-0)**

3.3.1. The appropriate occupational safety staff will investigate, record and report all ground Class A-D mishaps, and work-related Class E mishaps if required by AFMAN 91-224, *Ground Safety Investigation and Hazard Reporting*. **(T-1)** The host occupational safety staff is the official AF office of record for maintaining occupational illness and injury data and maintains consolidated records of injuries and illnesses.

3.3.1.1. AFSAS will be used to generate an OSHA Form 300, *Log of Work-Related Injuries and Illnesses*, for mishaps involving injury and illnesses to on-duty civilian personnel. **(T-1)** The installation commander is responsible for examining and signing the annual civilian OSHA Form 300A, *Summary of Work-Related Injuries and Illnesses*. The OSHA establishments that commanders are responsible for are delineated in AFSAS. This task may be delegated to the vice commander or executive director. The host installation safety office will ensure the signed OSHA Form 300A is posted in conspicuous a location. The OSHA Form 300A will be posted on or before 1 February each year and remain in place until 30 April. **(T-0)**

3.3.1.2. OSHA Form 300A will include civilian occupational injury and illness of all host and tenant units. AF tenant units that have their own establishment codes will manage their own OSHA 300 Process. **(T-2)** Other Service tenant units that have safety staffs and an assigned establishment code will manage their own OSHA 300 process. **(T-2)** This is most likely to occur at a joint base or multi-service base not designated as a joint base. In cases where there are multiple establishment codes within an installation it will be defined in the host tenant agreement. **(T-2)**

3.3.1.3. Illnesses require an investigation and final determination by a provider before they are confirmed occupational illnesses. **(T-0)** Once confirmed, the case should be closed and recorded within 7 calendar days in AFSAS. **(T-1)** Public Health will report thermal illnesses and injuries in accordance with AFI 48-151, *Thermal Injury Prevention Program*. **(T-0)**

3.3.1.4. The Medical Treatment Facility will provide injury data to the host safety office on a routine basis as information is discovered. **(T-1)**

3.3.1.5. A needle stick or sharps injury, when caused by a contaminated sharp, will be reported in accordance with the discipline-specific safety manual and entered into AFSAS

by safety personnel. **(T-1)** If an illness is diagnosed then the mishap will be transferred to AFSAS Occupational Illness module. **(T-1)**

3.3.2. The host occupational safety office will use AFSAS to satisfy OSHA requirements for single-point access to occupational illness and injury cases. **(T-0)** Host safety staffs will ensure host-tenant agreements between host and tenant units defines complete mishap identification, investigation and reporting processes. **(T-1)** This includes having formal agreements between the host occupational safety office at DAF-led Joint Bases and all tenant units, regardless of the service component.

3.3.3. Contractor Employees.

3.3.3.1. Under the contractor's day-to-day supervision. The contractor, not the DAF, will be responsible for reporting contractor injuries and illnesses to OSHA, even if the contractor's employees are co-located with a DAF organization.

3.3.3.2. Under the DAF's day-to-day supervision. The DAF will be responsible for reporting injuries of these contractor employees. **(T-0)**

3.3.3.3. If uncertain as to the type of contract employee, contact the contracting officer.

3.4. Obtaining and Using Health Information. DoD Manual (DoDM) 6025.18, *Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DoD Health Care Programs*, implements Public Law 104-191, *Health Insurance Portability and Accountability Act*, within the DoD. DoDI 6055.07 governs the protection, use, and release of safety records. Mishap investigation and reporting requires acquisition of Health Insurance Portability and Accountability Act-protected health information from the medical community. Safety officials at all levels are responsible for establishing a liaison with installation medical agencies to ensure an information flow has been established.

3.4.1. The requirement to comply with the Health Insurance Portability and Accountability Act applies only to individuals or organizations meeting the definition of a covered entity. A covered entity may use or disclose protected health information as authorized by the individual to whom the information pertains, or as otherwise permitted by DoDM 6025.18. The Health Insurance Portability and Accountability Act does not preclude an employee from providing medical information to their supervisor, management, or the installation Compensation Program Administrator. For questions on medical information release, medical and administrative personnel acting as covered entities should consult DoDM 6025.18, AFMAN 41-210, *Tricare Operations and Patient Administration*, and the servicing Medical Law Consultant.

3.4.2. The SIB process and members, to include appointed medical members and human factors additional members, function under the auspices of this DAFI and are not covered entities under the Health Insurance Portability and Accountability Act. SIB medical members do not provide medical care to personnel involved in a mishap, but function solely as investigators. When the SIB receives health information from a covered entity the information ceases to be protected by the Health Insurance Portability and Accountability Act, but remains subject to the Privacy Act as sensitive personally identifiable information. The SIB shall protect personally identifiable information with prudent safeguards to prevent unauthorized release. **(T-0)** Medical personnel assigned to the SIB shall inform interviewees that the Health

Insurance Portability and Accountability Act does not apply, but that safeguards are in place to protect personally identifiable information. **(T-0)**

3.4.3. For federal civilian employees that suffer a new injury or occupational disease/illness, the employee or their supervisor will complete an AF Form 978, *Supervisor Mishap Report*, for record keeping purposes in lieu of the OSHA Form 301, *Injuries and Illnesses Incident Report*. For non-appropriated fund AF employee occupational injuries and illnesses, a copy of the related Department of Labor Forms LS-1, *Request for Examination and/or Treatment*, LS-201, *Notice of Employee's Injury of Death*, or LS-202, *Employer's First Report of Injury or Occupational Illness*, will be provided by the applicable Human Resources Office to the host installation safety office within five days of the forms being submitted. **(T-1)** In addition to the LS-201 and LS-202, an AF Form 978 will also need to be accomplished by the employee or their supervisor. **(T-1)**

Chapter 4

PRIVILEGED SAFETY INFORMATION

4.1. General Information. Safety privilege is based on a national defense need for rapid and accurate assessment of the causes of mishaps to prevent a recurrence and maintain mission readiness. This privilege creates restrictions on handling and releasing information in safety reports.

4.2. Reports that Contain Safety Privilege. Class A–E mishap safety reports, nuclear surety safety reports, and some safety studies contain privileged safety information, but not all information in these safety reports is privileged. In addition, Ground category Industrial and Occupational, and Weapons category Explosive and Chemical Agent safety reports for mishaps that occurred before 3 October 2000 do not contain privileged safety information (see **paragraph 4.11**.).

4.3. Identifying Privileged Safety Information. Privileged safety information refers to information that is exempt by case law from disclosure outside the DoD Safety Community. The DoD Safety Community consists of DoD personnel and certain DoD contractors with a specific need to know particular information exclusively for the prevention of DoD mishaps. The military safety privilege is judicially recognized and protects the investigative process and promises of confidentiality. The DAF treats this information as limited use/limited access. Safety privilege assures commanders obtain critical information expeditiously during a safety investigation and ensures that completed safety reports are protected, thereby proactively promoting safety, and preserving combat readiness and mission accomplishment. Privileged safety information includes:

4.3.1. Analysis, findings, conclusions, causes, recommendations, other findings and recommendations of significance, and the deliberative process of safety investigators. Diagrams and exhibits are privileged if they contain information which depicts the analysis of safety investigators. This includes draft versions of the above material and notes (see **paragraph 4.2** for exceptions).

4.3.2. Information given to safety investigators pursuant to a promise of confidentiality and any information derived from that information to include direct or indirect references to that information (see **paragraph 4.5** for promise of confidentiality).

4.3.3. Computer-generated animations, simulations, or simulator reenactments in which safety investigator analysis or confidential witness statements are incorporated. Animations made exclusively from recorder data without SIB input are not privileged. Animations made from Military Flight Operations Quality Assurance data at the request of a SIB are privileged.

4.3.4. Photographs, imagery, and animations that reveal the deliberative process or analysis of the board, including photographs with markings. However, photographs depicting a measuring device or object contrasted against mishap evidence for the sole purpose of demonstrating the size or scale of the evidence are not considered privileged safety information.

4.3.5. Life sciences material that contain analysis by a safety or life sciences investigator. Seventy-two-hour histories, 7-day histories and interview narratives are only privileged if a promise of confidentiality was granted.

4.4. Prohibited Uses of Privileged Safety Reports and Information. Privileged safety information may only be released as provided in this instruction or upon specific authorization by the Secretary of Defense. Status and final safety messages and any safety reports or documents containing privileged safety information will only be used for specific DoD mishap prevention purposes as described in this instruction. **(T-0)** Failure by military members to obey this paragraph is a violation of Article 92 of the UCMJ, and failure by DoD civilian employees may result in disciplinary action.

4.4.1. DAF civilian employees, military members, and government contractors will not wrongfully use, permit the use of, gain access to, or allow access to the privileged information in any safety report, or portions thereof, for other than officially authorized DoD mishap prevention purposes. **(T-0)**

4.4.2. The DAF does not use privileged safety information as evidence for punitive, disciplinary, or adverse administrative actions, for determining the misconduct or line-of-duty status of any person, in flying evaluation board hearings/reviews, to determine liability of anyone or liability in claims for or against the US, or in any other manner as part of any action by or against the US.

4.4.2.1. Adverse administrative actions include, but are not limited to, letters of reprimand, counseling, or admonishment, referral enlisted and officer performance reports, promotion propriety actions (not qualified for promotion, delay and/or denial), administrative separations, selective reenlistment denials, or evidence before any evaluation board and other similar actions. Commanders and supervisors may only use other sources of information which are not privileged to take punitive or adverse administrative actions.

4.4.2.2. Examples of sources that may be used as evidence for punitive, disciplinary, or adverse administrative actions include information from Accident Investigation Board reports under AFI 51-307, *Aerospace and Ground Accident Investigations*, other legal investigations, safety mishap participant interviews when promises of confidentiality are not authorized (Article 31, UCMJ, rights advisement may be necessary), Security Forces and/or the AF Office of Special Investigation information gathered for criminal matters. Consult the local Judge Advocate for further guidance on the use of information from legal investigations.

4.4.2.3. The DAF will not release privileged safety information in response to Freedom of Information Act (FOIA) requests. **(T-0)**

4.4.3. Controlling and Handling Safety Reports and Information. Personnel having access (both authorized and unauthorized access) to privileged safety reports and information have a duty to control the reports to prevent their use for anything other than mishap prevention. When these reports and information are no longer needed for mishap prevention purposes, dispose of in accordance with the AF Records Disposition Schedule. Use AF Visual Aid, 91-218, *Privileged Safety Information (PSI) Cover Sheet*, as a means to protect privileged safety information in hardcopy form.

4.4.3.1. All requests for release of safety reports and information outside of AF safety channels will be immediately forwarded to AFSEC Judge Advocate (AFSEC/JA). **Exception:** Transfer of non-privileged information to a corresponding legal investigation

upon completion of a safety investigation is handled in accordance with **Chapter 8** of this instruction.

4.4.3.2. All persons (except the Convening Authority, his/her staff, safety office staff, and AFSEC personnel) given or provided access to privileged safety information by the ISB or the SIB prior to the Convening Authority briefing must agree to and sign the appropriate safety privilege agreements. **(T-1)** These agreements include: "Non-Disclosure Agreement-Safety Investigation-DoD Personnel", "Non-Disclosure Agreement-Safety Investigation-Contractor Rep", or "Privileged (Confidential) Witness Agreement". Use the templates located in the SIB Go Package or the ISB Go Package. Personnel who are not exposed to safety privilege (e.g., personnel guarding or assisting in recovery of mishap wreckage) do not sign non-disclosure agreements.

4.5. Promise of Confidentiality. The DAF may give a promise of confidentiality to encourage frank and open communication with individuals who provide witness statements to a safety investigator, foreign governments with relevant evidence, and with government contractors who built, designed, or maintained the equipment and participate in the safety investigation. A statement taken under a promise of confidentiality is privileged. However, if an individual provides a false statement to a safety investigator under a promise of confidentiality, that entire statement loses its privileged status and can be used to support disciplinary and/or adverse administrative actions.

4.5.1. Promises of Confidentiality Not Authorized. Promises of confidentiality are not authorized for explosives, small arms, chemical agents, afloat, ground, motor vehicle, off-duty military mishaps, incidents, and hazards. See **paragraph 4.5.2.1** for exceptions.

4.5.2. Promises of Confidentiality Authorized. Promises of confidentiality are authorized in investigations of DAF nuclear surety, space, aviation, guided missile, directed energy, and friendly fire mishaps, or when authorized in accordance with **paragraph 4.5.2.1**. **(T-0)**

4.5.2.1. During the investigation of a mishap outside the categories described in **paragraph 4.5.2**, but involving complex systems, military-unique equipment, operations or exercises, there may be occasions when a critical witness or involved contractor will not provide a statement or information without a promise of confidentiality.

4.5.2.2. Only the AF/SE or the AFSEC Vice Commander (AFSEC/CV) may approve the exceptions in **paragraph 4.5.2.1**. All requests for exception should be forwarded through the applicable AFSEC division and the AFSEC/JA to AF/SE or AFSEC/CV for action.

4.5.3. Persons Authorized to Offer Promises of Confidentiality. Only the ISB President, ISB Investigating Officer, SIB President, SIB Investigating Officer, or an SIO may offer promises of confidentiality and only during safety investigations where promises of confidentiality are authorized. When conducting safety investigations in which promises of confidentiality are authorized, the SIB President/SIO and SIB Investigating Officer have the sole discretion to decide who will be offered a promise of confidentiality. The authorized official's decision shall not be made on a blanket basis, but must be based upon a witness or contractor's reluctance to cooperate or apparent self-interest in not disclosing information. After deciding to offer a witness confidentiality, the SIB and ISB President may authorize other board members to extend that approved offer to the witness or contractor.

4.5.4. Persons to Whom Promises of Confidentiality May be Offered. When authorized, a promise of confidentiality may be offered to any witness based on the SIB/ISB President's or Investigating Officer's determination that the witness is reluctant to provide candid and forthright cooperation. It may not be offered on a blanket basis to all witnesses.

4.5.5. Non-privileged Witness Statements. If witnesses provide statements without a promise of confidentiality, the interviewer will inform the witness that their statement will be provided to the Accident Investigation Board (if applicable) or other legal investigations and/or may be releasable to the public pursuant to a FOIA request. **(T-1)** Consult the Host Installation Staff Judge Advocate or a labor relations officer for guidance before conducting a non-privileged interview of any federal civilian employees covered by a bargaining unit.

4.6. Marking and Documenting Safety Information. Personnel will clearly mark the cover and individual pages of documents containing privileged safety information with the privileged warning statement. **(T-1)** Personnel will clearly mark media containing privileged safety information (audiotapes, videotapes, animations, simulations, computer generated profiles, etc.) with the privileged warning statement. **(T-1)**

4.6.1. The entirety of safety reports are Controlled Unclassified Information (CUI) in accordance with, DoDI 5200.48, *Controlled Unclassified Information (CUI)*. However, not every document in the safety report is CUI. Investigators will not mark documents as CUI unless they warrant protection based on a FOIA exemption, the Privacy Act, Export Control laws (e.g., Title 22 United States Code (USC) Section 2751, *Arms Export Control Act*), or because they contain sensitive personally identifiable information or proprietary information. **(T-0)**

4.6.2. Promises of Confidentiality (Witness and Contractor Personnel). If a promise of confidentiality is offered and accepted, it must be documented by either a signed "Privileged (Confidential) Witness Agreement" or a signed "Non-Disclosure Agreement-Safety Investigation-Contractor Rep" as applicable. **(T-0)** The interviewer will read, record, and transcribe the "Privileged (Confidential) Witness Interview Script" for recorded interviews of witnesses. **(T-1)** Use the templates located in the ISB or SIB Go Packages.

4.6.3. Non-privileged Witness Statements. If no promise of confidentiality was made, the ISB or SIB will include a signed "Non-Privileged (Non-Confidential) Witness Agreement" with each statement. **(T-1)** Read, record, and transcribe the "Non-Privileged (Non-Confidential) Witness Interview Script" for recorded interviews of witnesses. **(T-1)** Use the templates located in the ISB or SIB Go Packages.

4.7. Transmitting Safety Information. To protect the privileged status and to ensure the correct handling of safety reports, originating organizations will use the AFSAS common access card-enabled system. **(T-1)**

4.7.1. When transmitting or sharing privileged safety information outside of AFSAS follow the below procedures:

4.7.1.1. Ensure no privileged information is included in the subject line of e-mails.

4.7.1.2. Avoid sending privileged safety information in the body of e-mails. If it must be done, mark the e-mail CUI in the subject line and the beginning of the e-mail text, and carefully restrict the addressees to only those authorized access and send encrypted.

4.7.1.3. Annotate safety reports and messages or portions of reports and messages as CUI following **paragraph 4.6** guidance, save as a password-protected document, and send encrypted.

4.7.1.4. Send the applicable password in a separate message or by another mode of transmission.

4.7.1.5. If neither AFSAS nor e-mail are available for transmission, a FAX may be used. Follow the labeling procedures described above. Take precautions to ensure the recipient will stand by to receive the FAX immediately upon receipt and verify receipt once transmitted.

4.7.1.6. For transmitting large files, transmission via secured, common access card-enabled systems such as the DoD Secure Access File Exchange (**https://safe.apps.mil**) is acceptable utilizing password-protected documents.

4.7.2. Classified Mishap Reporting, Weapons Safety Investigations and Reports. Originating organizations will submit all classified mishap reports (e.g., DULL SWORD, BROKEN ARROW) via SIPRNET or other appropriate classified transmission method for mishap reporting, tracking, and prevention to the appropriate office for coordination and dissemination. **(T-0)** Submit unclassified portions of the mishap report in AFSAS as appropriate.

4.8. Authorized Use and Release of Privileged Safety Reports and Information. In order to ensure courts honor the assertion of privilege, and DoD personnel maintain confidence in the limited use of privileged safety information, the rules described in this paragraph must be followed meticulously.

4.8.1. Ensuring Use is For DoD Mishap Prevention Only. While unique circumstances described in the paragraphs below authorize designated individuals to release privileged safety information outside the DAF that information remains DAF property. Questions regarding access to privileged safety information should be referred to AFSEC/JA. If an agency outside the DAF needs a copy of any safety-related documents for DoD mishap prevention, corrective actions or other purpose, regardless of whether they are privileged, coordinate through AFSEC/JA and the AFSEC specific discipline before releasing such information to the requestor. Access is limited to information that is necessary for and consistent with DoD mishap prevention. Whenever privileged safety information is requested, first determine whether mishap prevention goals can be met by sanitizing the information. If the answer is no, then provide only the necessary information to the authorized persons or agencies with the restrictive markings affixed.

4.8.2. Sanitizing Privileged Safety Reports. When the DoD mishap prevention need can be met with a sanitized report, wing/delta safety offices should follow these steps to sanitize a report for use within their wing/delta. Sanitizing reports or extracts from reports requires completely obscuring the relationship between the identity of a mishap and the findings, conclusions, causes, recommendations, deliberative processes resulting from the investigation, and statements made under a promise of confidentiality. Some mishaps, because of widespread publicity or unique circumstances, cannot be adequately sanitized. After a report has been sanitized, the remaining portions of the findings, causes, recommendations, conclusions, or opinions of the investigation are no longer privileged. Remove identifying information and

markings identifying the documents as privileged or CUI before reproducing sanitized reports or extracts of reports. Sanitized reports are not necessarily releasable to the public since they may still contain personally identifiable information, contractor proprietary information, or information protected by the FOIA, Privacy Act, Arms Export Control Act, or Export Administration Act, but they may be used within the DAF without privileged safety information restrictions. To sanitize a report, remove the following information:

4.8.2.1. All witness statements or contractor reports provided under a promise of confidentiality.

4.8.2.2. Date and location of the mishap.

4.8.2.3. Aircraft, missile, vehicle, or weapon serial number.

4.8.2.4. Names, social security numbers, and other personal identifying information of participants, witnesses, and investigators.

4.8.2.5. Any other detail that directly, indirectly, or in aggregate identifies the mishap or any individual who has given information pursuant to a promise of confidentiality.

4.8.3. Limiting Release within the DAF. DAF personnel assigned to safety positions access and use privileged safety information solely for DoD mishap prevention purposes. Directors/Chiefs of Safety may, within their organization, provide privileged safety information (excluding confidential witness statements or contractor reports) to other DAF officials within their organization when those officials' duties include mishap prevention and when necessary to implement safety investigation recommendations or develop, take, or review preventive actions, when sanitized information is inadequate, on a need-to-know basis and solely for mishap prevention. Directors/Chiefs of Safety will ensure members are instructed on properly protecting information, are made aware of their responsibilities to prevent unauthorized release, and have signed a "Non-Disclosure Agreement-PSI Access-DoD Personnel". **(T-1)** Use the templates located in AFSAS Pubs & Refs/Post-Investigation Non-Disclosure Agreements at **https://afsas.safety.af.mil/publications/PublicationHomepage.do**. **(T-1)**

4.8.3.1. Safety staffs are responsible for granting privileged AFSAS access to personnel with a DoD mishap prevention need to know within their organization. **(T-1)** Safety staffs will ensure that those granted these accounts fully understand the handling and protection of privileged information and maintain documentation of annual privileged training for each account holder. **(T-1)** Safety staffs will ensure account access is limited to DoD mishap prevention purposes. **(T-0)** Medical personnel who only need access to the Occupational Illness module request an AFSAS account through their public health office.

4.8.3.2. Accident Investigation Board investigators with an operational safety need to know (e.g., pilots, commanders, operations personnel) may be given access to privileged safety information from the corresponding safety investigation only after final approval of the Accident Investigation Board report. **(T-1)** Accident Investigation Board investigators must first coordinate with the Convening Authority, Convening Authority Judge Advocate and Convening Authority Director/Chief of Safety if the Accident Investigation Board report has not been released to the public. **(T-1)** The Convening Authority will determine if access is appropriate before next-of-kin are briefed following a fatal mishap. **(T-1)**

4.8.3.3. All non-privileged factual information is given to the Accident Investigation Board (or other legal investigation if no Accident Investigation Board is convened) in its entirety.

4.8.3.4. Privileged safety information should not be released to other DAF Offices or Agencies unless there is a clearly identified role for these Offices or Agencies in DoD mishap prevention. The privileged safety information must not be revealed to any other investigation or used to support any legal proceedings or punitive actions resulting from the mishap. This is to maintain a clear separation between safety investigations and any legal investigations or proceedings which may result from an accident or mishap.

4.8.3.4.1. DAF personnel who receive privileged safety information related to a safety investigation resulting from a mishap will not communicate privileged safety information directly or indirectly with any other non-safety investigation or board related to the mishap. **(T-1)**

4.8.3.4.2. Any person who provides technical advice to a SIB is prohibited from providing technical advice to a legal investigation of the same mishap. **(T-1)**

4.8.3.4.3. Judge advocate personnel may only receive access to privileged safety information if the Convening Authority determines there is an exclusively mishap prevention purpose for such access. Judge advocate personnel will only use privileged safety information to ensure that such information is not used by another investigation or board contrary to DAF and DoD guidance. **(T-0)**

4.8.4. Limiting Release Outside the DAF. In certain cases, the DAF has agreed to exchange privileged safety information with other DoD agencies solely for mishap prevention purposes. Also, the DAF shares certain non-privileged mishap prevention information with other entities in the interests of the general safety community. Contact AFSEC/JA for approval to release except where specifically delegated.

4.8.4.1. Respond to Subpoenas and Legal Process (discovery requests, subpoenas, court orders, depositions, or other legal processes) as described in **paragraph 4.14**.

4.8.4.2. FOIA Requests. The AFSEC Commander (AFSEC/CC) and AFSEC/CV are the only release and denial authority for DAF safety records. All FOIA requests must be submitted or transferred to AFSEC/JA via e-FOIA. Release authority for “no records” responses and full releases (i.e., when a request is only for particular non-privileged information, or specifically excludes information which would be withheld under a Freedom of Information Act exemption) is delegated to AFSEC/JA.

4.8.4.3. Historical Safety Reports. The AFSEC/CC or AFSEC/CV may release the Findings portion only (not analysis, conclusions, recommendations, or witness statements, etc.) from safety reports over 30 years old prepared in accordance with DoDI 6055.07 (or its predecessors), provided no national defense or safety interest exists.

4.8.4.4. Contractors. Contractors may need access to privileged safety information when they are performing a DAF function involving mishap prevention. Contractors may also need access to privileged safety information if they designed, built, maintained, or operated DAF weapon systems, their components, or other DAF equipment, in order to implement SIB recommendations which will correct defects or other problems and help prevent future

DoD mishaps. When contractors need access to privileged safety information the "Non-Disclosure Agreement-PSI Access-Contractor with SE Cert" must be signed and stored at the safety office. **(T-1)** Contractors will use the templates located in the AFSAS Pubs & Refs/Post-Investigation Non-Disclosure Agreements at **https://afsas.safety.af.mil/publications/PublicationHomepage.do**. **(T-1)**

4.8.4.4.1. Access will be limited to what is needed to prevent future DoD mishaps or implement applicable SIB recommendations and shall be strictly limited to only those individuals who have a need to know the information in order to enhance the safety of the DAF weapon system or otherwise implement SIB recommendations. Under no circumstances shall a DAF contractor not working in direct support of a safety investigation have access to information given to a safety investigator pursuant to a promise of confidentiality or to any direct references to that information or to any information that could be used to identify the source who provided the information. Privileged safety information will not be released to any general counsel's office or public relations personnel. After a project is complete, the SIB must ensure contractors do not maintain the information in their files and destroy or return all such information to AFSEC.

4.8.4.4.2. Contractors who built, designed, or maintained equipment involved in mishaps may send representatives to support DAF SIBs at the request of the DAF. The SIB President or SIO may promise confidentiality to the contractor representatives to the SIB when the AF collects and maintains sole possession or control over documents provided to the board. **(T-0)** The SIB President or SIO grants these contractor representatives access to privileged safety information only if it is essential to assist the SIB. Contractor employees may not keep notes or other documents that contain privileged safety information. Reports produced by the contractor employees for the SIB are DAF property, and those employees may not keep a copy of the report. Other documents, such as notes, diagrams, or photographs produced during the SIB investigation by the contractor that do not contain or reflect any safety board analysis may be retained by the contractor representatives.

4.8.4.4.3. Contractors providing weapon system maintenance support are performing an AF function. The MAJCOM/FC/NAF/wing/delta Director/Chief of Safety, AFSEC division chief, AFSEC/CV, AFSEC/JA, or AF/SE may provide the contractors safety information for their specific DAF safety purposes.

4.8.4.4.4. DAF operations conducted at contractors' facilities require privileged safety information handling.

4.8.4.4.5. Contractors providing weapon system crew training are performing a DAF function, and may need privileged safety information from safety reports, videos, and other similar media to build training scenarios. The MAJCOM/FC/NAF/wing/delta Director/Chief of Safety, or AFSEC may provide the contractors privileged safety reports for this function.

4.8.4.4.6. Contractors who instruct safety programs in mishap investigation or safety program management contracted by the DAF or ARC may require access to privileged safety information. The MAJCOM/FC/NAF/wing/delta Director/Chief of Safety,

AFSEC division chief, AFSEC/CV, AFSEC/JA, or AF/SE may provide the contractors safety reports for this function.

4.8.4.4.7. Contractors who build, design, maintain, or operate DAF weapon systems, their components, or other DAF equipment may need privileged safety information to correct defects or other problems and prevent future mishaps. The MAJCOM/FC/NAF/wing/delta Director/Chief of Safety, Program Office safety officer or equivalent, or AF/SE or AFSEC/CV may provide contractors privileged and/or non-privileged safety information for this function. This includes Space System Contractors, Space Technical Support Contractors, Advisory & Assistance Services, and Federally Funded Research & Development Centers when they are performing an AF function.

4.8.4.4.8. Contractors performing DAF safety functions may require privileged safety information. MAJCOM/FC/NAF/wing/delta Director/Chief of Safety, or AFSEC/JA may authorize access to privileged safety information for this function.

4.8.4.4.9. Any other release of privileged safety information to contractors must first be approved by the AF/SE or AFSEC/CV. **(T-0)**

4.8.4.5. Limiting Release to Other Services and DoD Agencies. Approval authority for exchanging safety reports with other military services is the AF/SE, AFSEC/CV or AFSEC/JA. Other US military services and DoD agencies responsible for flying, supporting or maintaining DAF aircraft may request privileged safety information through their safety centers when needed for DoD mishap prevention. Joint project or program offices may share privileged safety information with members of other DoD agencies working on the same project or program without prior approval. Those offices must ensure proper use, handling, and protection of that information. **(T-0)**

4.8.4.6. Limiting Release to Foreign Military Safety Agencies. All agreements regarding the release of safety information to foreign military organizations are subject to the limitations and guidance found in DoDI 6055.07 and DoDI 5530.03, *International Agreements*. Release of safety information to North Atlantic Treaty Organization (NATO) military organizations is governed by NATO Standardized Agreement 3101, *Exchange of Flight Safety Information*, and 3531, *Safety Investigation and Reporting of Accidents/Incidents Involving Military Aircraft, Missiles, And/Or UASs*.

4.8.4.6.1. Foreign Nationals Flying USAF aircraft or participating in USAF Training. Release of safety information to foreign nationals is governed by DoDI 6055.07. Note that foreign national military exchange officers assigned to and under the command of DoD Components are defined as DoD military personnel by DoDI 6055.07. No other foreign nationals are authorized access to privileged safety information.

4.8.4.6.2. Comparable persons and offices within European Participating Air Forces countries may have legacy access to certain limited privileged information pertaining to F-16 mishaps only. The release authority is the AF/SE. This information is for mishap prevention purposes only.

4.8.4.7. Limiting Release of Nuclear Safety Reports to Agencies outside the DAF. The AF/SE may approve the release of extracts of nuclear safety reports to US governmental agencies with statutory jurisdiction, such as the Defense Threat Reduction Agency; and

operations offices or authorized contractors of the Department of Energy. The MAJCOM/FC commander may provide DULL SWORD reports about weapons and common equipment deficiencies to the unified commander as deemed appropriate and necessary for the theater commander to accomplish his or her role in nuclear surety. Send this information by inclusion of the appropriate unified command address in the message report as provided by the MAJCOM/FC supplement to this instruction. The unified commander ensures the information is treated as privileged information and not released or distributed outside the respective headquarters without first obtaining permission from the AF/SE. The DAF releases this information only to reach its nuclear surety goals.

4.8.4.8. Limiting Release to the National Transportation Safety Board and the FAA. AF Pamphlet (AFPAM) 91-206, *Participation in Military or Civil Aircraft or Space Safety Investigations,* governs the release of safety information to the National Transportation Safety Board and the FAA for aviation mishaps. For other types of mishaps use AFPAM 91-206 as a guide.

4.8.4.9. Limiting Release to the National Aeronautics and Space Administration and National Reconnaissance Office. Space safety reports may be distributed to the National Aeronautics and Space Administration and the National Reconnaissance Office only in accordance with AFPAM 91-206 and applicable MOUs.

4.8.4.10. Sharing privileged safety information with non-DoD US Government Agencies. The AF/SE may establish reciprocal formal agreements for exchanging relevant safety information with other federal agencies regarding similar airframes or systems for mishap prevention purposes when access to those Agency reports may benefit DoD mishap prevention efforts, but only where adequate protection of privileged safety information exists to maintain the safety privilege, and where the recipient agency agrees to provide similar safety information to the DAF. All such reciprocal agreements must meet the requirements of DoDI 6055.07. Whenever appropriate the DAF should share non-privileged safety information such as aggregate data or sanitized reports in lieu of privileged reports.

4.9. Authorized Use and Release of Non-Privileged Safety Reports and Information. Safety reports may contain non-privileged safety information (e.g., non-privileged exhibits) and some reports may be non-privileged in their entirety. The purpose of these reports is DoD mishap prevention. These reports can be released outside the DAF safety community and outside the DAF once protected information, such as FOIA protected information, Privacy Act, Export Control laws, and contractor's proprietary information, and findings and recommendations are removed. Refer these requests to AFSEC/JA.

4.9.1. Do not disclose the identities of involved personnel in educational or promotional materials.

4.9.2. Although not privileged, aircrew voice recordings may not be publicly releasable. Requests for aircrew voice recordings should be directed to the AFSEC/JA.

4.9.3. When release will be made outside the DAF, AFSEC/JA or their delegated representative is the release authority. AFSEC personnel or the installation Chief of Safety is the release authority for providing these reports to other DAF personnel. The reports may not

be used for any purpose other than mishap prevention, but the evidence supporting them may be used by other, legal, investigations.

4.9.4. To control reports, do not retain copies at the local level. Access to non-privileged reports will be through AFSAS, and individuals will destroy all copies when no longer needed for mishap prevention purposes. **(T-1)**

4.10. Accessing, Handling, & Distributing the Safety Report. Individuals may submit a request to access exhibits (or legacy tabs) of a safety report to AFSEC/JA via AFSAS. Exhibits (or legacy tabs) may be reviewed online, printed, or downloaded. If printed or downloaded, the information must be protected appropriately. Printed and downloaded copies must be destroyed/deleted when no longer needed for mishap prevention purposes. Do not provide copies or extracts to any organization or agency outside the DAF. Instead, refer requests to AFSEC/JA. Do not produce "information only" copies of safety reports; however, the SIB President may retain a copy of the safety report until all briefings have been provided. At that time, the SIB President must destroy or delete the retained copy. **(T-0)** Questions about accessing, handling and distributing safety information and safety reports should be referred to AFSEC/JA.

4.11. Handling and Disclosing Reports on Ground and Industrial, and Explosives and Chemical Agents mishaps that occurred before 3 October 2000. Ground and Industrial, Explosives, and Chemical Agents mishap investigations were not considered privileged under the version of DoDI 6055.07 in effect before that date, but were still conducted solely for mishap prevention. The reports were normally considered general-use reports and were not considered privileged. However, they remain CUI and are handled according to DoDM 5400.07, *DoD Freedom of Information ACT (FOIA) Program*, requirements.

4.11.1. Do not disclose the identities of involved personnel in educational or promotional materials.

4.11.2. These reports can be released outside the DAF safety community and outside the DAF once protected information, including Privacy Act information, findings, and recommendations are removed. When release will be made outside the DAF, AFSEC/JA is the release authority. The installation Chief of Safety is the release authority for providing these reports to other DAF personnel. The reports may not be used for any purpose other than mishap prevention, with the exception that the complete report may be released to DAF claims personnel to assist them in evaluating claims for damages filed against the DAF.

4.11.3. To control reports retain only one copy of each safety report at wing/delta or base, intermediate command, and MAJCOM/FC safety offices. DAF and unified command agencies may view these reports for official purposes, but they do not release copies without approval of the appropriate disclosure authority. Advise personnel viewing these reports that findings, conclusions, recommendations, corrective actions, and witness statements taken by safety investigators in the course of the investigation are used solely for mishap prevention purposes. Refer all requests for release to AFSEC/JA.

4.11.4. Upon written request, AFSEC/JA provides the releasable portions of ground and explosive safety reports to the requester.

4.12. Technical Orders and Time Compliance Technical Orders. Technical Orders and Time Compliance Technical Orders, including maintenance manuals and flights manuals, are usually limited release documents. They are often protected by Section 38 of the Arms Export Control Act

(Title 22 USC § 2751); the Export Administration Act of 1979 (Title 50 USC §§ 2401-2420); or the International Emergency Economic Powers Act (Title 50 USC §§ 1701-1706).

4.13. Actual or Potential Compromise of Privileged Safety Information. It is DAF policy that unauthorized releases of privileged information will be thoroughly investigated to minimize any possible damage to national security and to continue to ensure safety privilege is protected. The investigation will identify appropriate corrective actions that will be immediately implemented to prevent future unauthorized releases.

4.13.1. Suspected instances of unauthorized public disclosure of privileged safety information shall be reported promptly and investigated by the appropriate commander to determine the nature and circumstances of the unauthorized disclosure, the extent of the disclosure, any ramifications on protecting it from further release, and the corrective and disciplinary action to be taken. AFSEC/JA will advise any investigation directed.

4.13.2. A compromise of privileged safety information occurs when unauthorized individuals are knowingly, willfully, or negligently given access to privileged safety information or when privileged safety information is sent without proper markings and protections. Unauthorized individuals include those individuals who do not have a safety need-to-know (see **paragraph 4.8**.).

4.13.3. Reporting and Notifications. Personnel who learn of an unauthorized release of privileged safety information should immediately report it to their MAJCOM/FC safety office, who will in turn report the incident to AFSEC/JA. AFSEC/JA will notify the appropriate commander, directly or through the commander's servicing Staff Judge Advocate.

4.14. Protection of Privileged Safety Information from Use in Court Proceedings. The procedures in this section are used to protect privileged safety information when parties to civil litigation or criminal trials attempt to compel its release.

4.14.1. A copy of the releasable portions of the safety investigation report shall be provided to a party of a court proceeding upon request. **(T-0)** Information that is protected from release to the public only by the Privacy Act is releasable for this purpose. All requests must be forwarded to AFSEC/JA for action. **(T-1)**

4.14.2. Upon receipt of legal process requiring participation in a court proceeding, including depositions and requests for production of documents, contact AFSEC/JA and the nearest DAF base legal office as soon as possible as these are time sensitive matters. Also contact the DAF, Operations and International Law Domain, Aviation and Admiralty Torts Division (DAF/JAOA) (see **Attachment 2**) to determine the best method to forward a copy of the legal process for action.

4.14.3. Requests for privileged safety information will be processed in accordance with DoDI 6055.07 and the delegation of authority provided in AF Mission Directive 1, *Headquarters Air Force (HAF)* and HAF Mission Directive 1-46. Copies of any court orders seeking to compel release of privileged safety information should be immediately forwarded to AFSEC/JA.

4.14.4. Encourage requesters to ask the MAJCOM/FC Judge Advocate for the AFI 51-307 accident investigation report instead, if one has been prepared.

Chapter 5

DETERMINING INVESTIGATIVE RESPONSIBILITY

5.1. General Information. The DAF generally assigns mishap investigative responsibilities to the MAJCOM/FC commander that experienced the loss of an assigned/owned asset (personnel or property). The MAJCOM/FC commander with investigative responsibility may or may not have Operational Control over the asset. In some cases, mishaps may involve assets or individuals from multiple agencies. Follow the guidance in this chapter and DoDI 6055.07 to determine mishap notification, investigation, and reporting procedures.

5.2. Convening Authority Determination. The Convening Authority is the commander who has the responsibility and authority to order a safety investigation. The MAJCOM/FC commander of the organization that is responsible for the damaged asset or injured personnel is the convening authority unless: AF/SE assumes investigative responsibility, Convening Authority responsibility is transferred to another MAJCOM/FC commander (with the concurrence of both commanders and AF/SE), or investigative responsibility is delegated to a lower level commander (off-duty Class A mishaps, Class B-E mishaps, incidents, and hazards).

5.2.1. For all on-duty Class A and all NUCFLASH, BROKEN ARROW, EMPTY QUIVER, or BENT SPEAR mishaps, the MAJCOM/FC commander is the Convening Authority unless: AF/SE assumes investigative responsibility, Convening Authority responsibility is transferred to another MAJCOM/FC commander (with the concurrence of both commanders and AF/SE). This authority will not be delegated. **Exception:** For ARC Class A mishaps see **paragraph 5.5**.

5.2.2. AF Materiel Command (AFMC) is the Convening Authority and is the accounting organization for property damage mishaps when AFMC has taken possession of another MAJCOM/FC's assets for modification, maintenance, repair, overhaul, test, training, or experimental/developmental projects. Possession will be determined in accordance with AFI 21-103, or AFI 23-111, *Management of Government Property in Possession of the Air Force*.

5.2.3. For all other events, the Convening Authority may be delegated to an appropriate subordinate command level. This delegation will be made in writing. **(T-1)** This delegated Convening Authority cannot be transferred without the concurrence of the MAJCOM/FC commander. Convening Authority will only be executed by a commander; it will not be delegated to a vice or deputy commander, or below wing/delta commander. **(T-1)**

5.2.4. If Convening Authority responsibility is transferred, the accounting organization remains the unit of assignment for the damaged assets or injured personnel.

5.3. Events Involving Multiple Commands. Involved MAJCOM/FC commanders will determine which MAJCOM/FC will assume investigative responsibility and advise AF/SE within 24 hours. In general, the MAJCOM/FC whose asset initiated the event will assume investigative responsibility. However, if initially unclear, the MAJCOM/FC sustaining the highest level of loss in the event will assume investigative responsibility. The MAJCOM/FC commander may determine other compelling reasons exist for assigning investigative responsibility differently. If the MAJCOM/FCs cannot reach agreement, the AF/SE will determine event investigation responsibility.

5.4. Events Involving Multiple Services. For multi-service or joint operational events, follow DoDI 6055.07. For mishaps involving other DoD organizations, such as the Defense Contract Management Agency, the MAJCOM/FC Director/Chief of Safety should contact the applicable AFSEC discipline division to determine investigative responsibility.

5.5. Events Involving ARC Assets. The Convening Authority for all ARC events is determined by mishap class, assigned location, and mission.

5.5.1. For all ARC Class A aviation mishaps, the Convening Authority is the lead MAJCOM/FC commander except:

5.5.1.1. For ANG units permanently based in the Pacific Air Forces (PACAF) area of responsibility, PACAF will be the Convening Authority. **(T-1)**

5.5.1.2. For ANG units who perform the Air Education and Training Command (AETC) mission, AETC will be the Convening Authority. **(T-1)**

5.5.1.3. For RC-26 mishaps, NGB will be the Convening Authority. **(T-1)**

5.5.2. For all other events, the Convening Authority is determined by the AFRC commander or the Director of the NGB as applicable. **(T-1)**

5.5.2.1. **(Added-ANG)** All non-aviation on-duty Class A mishaps are retained by NGB/CF (Director, ANG) as the convening authority. All off-duty Class A mishaps and all Class B mishaps are delegated to ANG Readiness Center Commander (ANGRC/CC) unless specifically retained by the NGB/CF (NGB/CF convening authority delegation letter retained on file at NGB/SE). Class C and below mishaps/events are delegated to the next lower echelon of command, in most cases an ANG wing commander, unless specifically retained by a higher delegated authority.

5.5.2.2. **(Added-ANG)** The NGB/CF and ANGRC/CC reserve the authority to elevate any lower echelon ANG convened mishap investigation to their level as directed.

5.6. Events Involving NATO Systems or Personnel. Investigate and report events involving DAF aircraft, space vehicles, or missiles according to this instruction and DoDI 6055.07. **(T-0)** The investigation required under NATO Standardized Agreement 3531 is in addition to, and conducted separately from, the investigation required by **paragraph 1.4**.

5.6.1. When a ground event involves only NATO military assets and/or personnel, the NATO nation military authorities are responsible for the investigation. The USAF generally reserves the right to participate as an observer on the NATO safety investigation or, if no investigation is conducted, the right to conduct its own safety investigation.

5.6.2. When an on-duty ground event involves both USAF and NATO assets and/or personnel (military or civilian), the USAF will conduct a safety investigation.

5.7. Events Involving Non-NATO Foreign Military Equipment or Personnel in the Continental US. It is desirable to conduct only one safety investigation that has the full support and participation of all involved nations. However, separate investigations are authorized if necessary due to law, agreement, or procedure.

5.7.1. Unless otherwise specified in a contract/MOU, when an event involves only foreign military assets and/or personnel, the foreign nation military authorities are responsible for the investigation to include off-duty mishap/events. The USAF generally reserves the right to

participate as an observer on the foreign safety investigation or, if no investigation is conducted, the right to conduct its own safety investigation.

5.7.2. When an event involves a foreign military aircraft and a US civilian aircraft in the Continental US, the National Transportation Safety Board has priority over the investigation (see **paragraph 5.8**.).

5.7.3. When an on-duty event involves both USAF and foreign assets and/or personnel (military or civilian), the USAF will conduct a safety investigation. Depending on the circumstances the National Transportation Safety Board may take priority over the investigation.

5.8. Events Involving Civil Aviation, Commercial Spacelift, Civil Air Patrol, AF Aero Clubs, and AF Initial Flight Training Students. In addition to a DAF safety investigation, the National Transportation Safety Board, the FAA Office of Commercial Space Transportation, or commercial vendors may investigate the following events:

5.8.1. The National Transportation Safety Board investigates events that involve both a DAF and a civil aircraft that occur within US jurisdiction. The DAF may send an observer to the National Transportation Safety Board investigation, be named a party to the investigation, and/or may conduct a separate investigation. However, the National Transportation Safety Board has priority over all evidence. See AFPAM 91-206 for guidance on National Transportation Safety Board, FAA, and DAF cooperation in these investigations.

5.8.2. DAF events that occur within US jurisdiction involving commercial spacelift may be investigated by the National Transportation Safety Board, the FAA Office of Commercial Space Transportation, and the commercial vendor depending on the nature and extent of the mishap. The DAF may send an observer to any of these investigations and/or may conduct a separate investigation. If the National Transportation Safety Board leads the investigation, the National Transportation Safety Board has priority over all evidence. See AFMAN 91-222 for more information.

5.8.3. For events involving Civil Air Patrol, Regular AF, or government civilians flying Civil Air Patrol-owned assets on approved DAF missions, follow the procedures in **paragraph 5.8.1** and AFMAN 91-223. Events involving Civil Air Patrol volunteers or Civil Air Patrol Corporation employees will be handled by the National Transportation Safety Board/FAA.

5.8.4. For events involving DAF Aero Clubs, the National Transportation Safety Board is the lead investigating agency unless on an approved DAF mission (see **paragraph 5.8.4.2**.).

5.8.4.1. If the National Transportation Safety Board or designated representative agency does not investigate, the host wing/delta commander will direct the wing/delta safety office to conduct an investigation. **(T-1) Exception:** For events occurring outside the US, the host nation civil aviation authority may have jurisdiction and investigative authority.

5.8.4.2. If an Aero Club aircraft is on a DAF-directed mission investigate in accordance with this instruction and AFMAN 91-223 (e.g., DAF personnel using an Aero Club aircraft to conduct an airfield assessment for certification purposes). Aero Club aircraft damage or injury to the pilot or aircraft maintenance personnel occurring outside of DAF-directed missions will be investigated in accordance with this instruction and AFMAN 91-224.

5.8.5. Civil Aviation events resulting in injury to DAF students participating in Initial Flight Training and other contracted flight training will be conducted in accordance with this instruction.

5.9. Mishaps Involving Contractors. The MAJCOM/FC commander of the contracting activity is the Convening Authority, except as noted below or as established by an MOA:

5.9.1. If another DoD agency administers the contract and the mishap involves reportable damage or injury to the DAF, the MAJCOM/FC who suffered the preponderance of loss will ensure the mishap is investigated and reported according to this instruction.

5.9.2. If the contracting activity is not subordinate to a MAJCOM/FC, then AF/SE is the Convening Authority. The Convening Authority may be delegated in accordance with **paragraph 5.2**. These losses are recorded as mishaps to the "USAF at Large" in AFSAS.

5.9.3. Mishaps Involving Non-Accepted DAF Aerospace Vehicles. Non-accepted aerospace vehicle mishaps may be investigated at the discretion of the Convening Authority.

5.9.4. Mishaps involving aerospace vehicles leased, bailed, furnished, or otherwise loaned to a Non-DAF organization for modification, maintenance, repair, overhaul, test, contract training, or experimental/developmental purposes. The MAJCOM/FC commander who negotiates the contract, Cooperative Research and Development Agreement, or other agreement is the Convening Authority.

5.9.5. Mishaps involving aerospace vehicles leased, bailed, or otherwise loaned to a Non-DAF organization for operational activities. The MAJCOM/FC commander of the unit of assignment is the Convening Authority. The Convening Authority is responsible for the safety investigation and reporting, although the aerospace vehicle may not be under the operational control of the AF.

5.9.6. Aerospace Vehicle Contractor Mishaps Involving AF Indemnification. For operations involving unusually hazardous safety risks that are indemnified by the AF, such as contractor provided launch services for DAF or National Security Space payloads, the MAJCOM/FC that acquired the operational service is the Convening Authority for the mishap.

5.10. Civilian Occupational Events. The Convening Authority for DAF civilian on-duty injuries or deaths is the same as it would be for a military member injury or death and the investigation will be conducted by qualified DAF safety personnel. **(T-1)** However, OSHA officials may accompany DAF safety investigators as observers, or they may conduct a separate investigation of occupational events involving either a DoD civilian fatality or the inpatient hospitalization of one or more civilian personnel in a singular event (one of which must be an on-duty DoD civilian employee). The installation safety office will ensure DAF personnel accompany OSHA officials. **(T-1)** See **paragraph 2.6.7.3** for OSHA notification requirement procedures.

5.11. Special Circumstances. Events involving friendly fire, potential criminal acts, and fire loss may be investigated differently than other safety events.

5.11.1. **Events Involving Friendly Fire.** Investigate events involving friendly fire in accordance with DoDI 6055.07. **(T-0)**

5.11.2. **Events Involving Potential Criminal Acts.** If safety investigators discover evidence of criminal acts causal to the event, they must immediately stop investigating and notify AFSEC/JA and the Convening Authority. **(T-0)** If there is credible evidence of criminal

activity the Convening Authority shall notify the responsible military or civilian law enforcement organization. **(T-0)** The Convening Authority will determine if and when the safety investigation should continue, and the scope of that investigation. **(T-0)** Office of Special Investigations inquiries take precedence over safety investigations of fatal events until criminal activity has been ruled out as a possible cause. The Convening Authority will give all non-privileged material to the legal investigators, provide them with the names of all witnesses, and safeguard all privileged material. **(T-0)** A use of force review board initiated in accordance with AFI 31-117, *Arming and Use of Force by Air Force Personnel*, does not take precedence over a mishap investigation.

5.11.3. **Events Involving Fire Loss.** For fire losses meeting the Class A or B mishap threshold involving real property, wildlands from wildland fires, or personal property (excluding military aircraft flight-related operations), the Convening Authority will ensure an independent fire investigation is conducted. **(T-0)** The fire investigation and report shall identify point of origin and cause of fire (the circumstances, conditions, or agencies that bring together a fuel, ignition source, and oxidizer, such as air or oxygen) for inclusion in subsequent legal or safety investigations. See AFI 32-2001, *Fire and Emergency Services Program*, for support provided by the FES office for mishap investigations and reports. Fire reports will be loaded in AFSAS in the appropriate exhibit group when applicable. The independent fire investigator shall not also serve on the safety investigation of the mishap. **(T-1)**

Chapter 6

SAFETY INVESTIGATIONS

6.1. General Information. Safety investigations are conducted to determine why an event occurred in order to prevent recurrence.

6.1.1. Supervisors must report all safety events to their safety office immediately following notification. **(T-1)** The safety office will review the information to determine if the safety event is reportable or non-reportable. **(T-2)** The installation or unit safety office will document reportable safety events in AFSAS. **(T-1)** The installation or unit safety office will use the AF Form 978 as the primary source of documenting ground non-reportable safety events. **(T-2)**

6.1.2. Event circumstances, anticipated complexity, and discipline-specific requirements drive an investigation's membership. When a mishap's initial cost estimate is within 10% of the next higher mishap class, consider using investigation procedures and requirements for the next higher class. The Convening Authority's safety staff will closely follow events that have damage estimates close to the threshold limits or injuries/occupational illnesses that have the potential for improving or worsening. Refer to the discipline-specific safety manual for investigation membership requirements.

6.2. Investigation Funding. Investigative funding comes from several different sources.

6.2.1. **Local Support.** The commander of the DAF installation hosting the SIB funds all in-house support even if the host installation is not assigned to the investigating MAJCOM/FC. Occasionally, investigations are conducted in areas where military support is not available. When civilian services are required, commanders at the installation supporting the SIB will assign finance and contracting officers. The finance officer will have authority and funds to pay for all support requirements (DoD 7000.14-R, *Department of Defense Financial Management Regulation*, *Volume 5*, Disbursing Policy, Chapter 2, Section 0209, Imprest Funds). **(T-0)** The contracting officer must have a warrant (authority) to purchase equipment and services for the board. **(T-0)**

6.2.2. **TDY Travel.** Each MAJCOM/FC, via their respective wings/deltas/units, funds TDY of its assigned personnel who are DAF board members or technical experts. Variations and rental cars should be authorized.

6.2.2.1. AFSEC representatives typically travel via their own organization's funding.

6.2.2.2. Observers to a DAF SIB fund their own TDY.

6.2.2.3. For joint service boards, each service funds its own members' TDY.

6.2.2.4. **(Added-ANG)** NGB/SE will fund travel for ANG personnel serving on SIBs convened by the ANG Director or the ANGRC Commander. AGR personnel will be funded via Defense Travel System cross-organizational line of accounting and must provide their Social Security Number to NGB/SE to gain access to "XX DSIB-MISHAP", where the XX is current fiscal year. Drill Status Guardsmen and Technicians will travel on ADOS days, NGB/SE will send ADOS days and travel dollars to the member's FM to authorize travel orders. NGB/SE will make all attempts to provide funding prior to initial travel. Any secondary ANG SIB members are subject to convening authority approval.

Travel for any ANG member paid by another MAJCOM should expect their wing to be reimbursed through After-The-Fact Funding (ATFF).

6.2.3. **Contractor support.** Contractors typically travel via their own funding. To provide easier access to the base and its facilities required during the investigation, the contractor may request a Letter of Identification from the Contracting Officer. The Convening Authority will honor these requests. **(T-1)** The Letter of Identification will not have a fund cite (i.e., no cost to the government). **(T-1)**

6.2.4. **Other contractual services not related to paragraph 6.2.3.** The Convening Authority funds leasing of special equipment/vehicles, leased communications, and other contractual services. For technical assistance and laboratory analysis (see **paragraph 8.4**) from non-DAF specialists, the Convening Authority or program manager may have to provide funding to obtain support.

6.2.5. **Cost Overruns.** Request an operating budget authority adjustment per AFI 65-601, Volume 2, *Budget Management for Operations*, if investigation costs cannot be financed through reprogramming within the operating budget authority.

6.3. SIB Membership. Safety investigations are conducted by SIBs, which are made up of one or more members assigned to investigate an event. SIBs accomplish root cause analysis by determining what factors led to an event, developing findings from those factors, and crafting recommendations.

6.3.1. Persons occupying full-time safety positions routinely examine privileged safety documents. Convening Authorities will not assign them to serve on or provide substantive support to legal investigations while they are performing full-time safety duties. **(T-0)** Legal investigators will not attend SIB proceedings, or meetings, or have access to or discuss any privileged information with the SIB or DAF safety officials. **(T-1)** This prohibition also applies to the briefing given to the Convening Authority on the safety investigation results.

6.3.2. SIB members will not be witnesses for other boards investigating the same mishap except to provide factual documents or to provide factual information within their knowledge that is not otherwise available. **(T-1)**

6.3.3. SIB members and technical advisors will not act as investigators or technical advisors for a legal investigation of the same event. **(T-0)**

6.3.4. The Convening Authority will not assign contractor representatives to be primary members of a SIB. **(T-1)** They are technical experts providing support to the SIB.

6.3.5. The Convening Authority will ensure at least one SIB member is equal to or senior in rank to the senior person directly involved in the event. **(T-1)**

6.3.6. The Convening Authority will select SIB members who do not have a personal interest in the investigation and who are able to act impartially. **(T-1)** See discipline-specific safety manuals for SIB personnel limitations and restrictions.

6.3.7. The Convening Authority will select a SIB member qualified in safety investigations for each safety discipline involved in the event. **(T-1)** The SIB will coordinate with the Convening Authority regarding requests for additional board members, observers, and technical experts. **(T-1)**

6.3.8. The Convening Authority will not assign foreign exchange officers or other foreign officers serving with the USAF as SIB members. **(T-1)** This exclusion does not apply to AFSEC representatives. The Convening Authority will comply with provisions in standing international agreements. **(T-0)**

6.3.9. The Convening Authority may appoint Reservists/Air National Guardsmen to SIBs with the concurrence of the AFRC/NGB. Ensure SIB duties do not create a conflict of interest with the individual's civilian occupation or interests. **(T-1)** MAJCOM/FCs may execute MOA/MOUs with the AFRC and NGB to outline processes for nominating SIB members as needed on ARC-involved events.

6.3.9.1. Air Reserve Technicians may participate in either military or civilian status, as appropriate. Traditional reservists will be in a military status. **(T-1)**

6.3.9.2. ANG personnel may participate in either military or technician status, as appropriate.

6.3.9.3. **(Added-ANG)** Any ANG personnel participation on SIBs convened outside the ANG must be coordinated through NGB/SE for NGB command approval. Refer all requests coming from outside ANG channels to the appropriate Division in NGB/SE.

6.3.10. DAF Participation in Non-DAF Investigations. When DAF representation to another Service's or government agency's investigation is desired, AFSEC will contact the MAJCOM/FC that can best meet the requirement. **(T-1)** The MAJCOM/FC Director/Chief of Safety will coordinate the selection with AFSEC. Once the AF/SE approves the nominee, AFSEC will provide a fund cite to the MAJCOM/FC and establish direct communication with the individual. **(T-1)** DAF representatives should be graduates of a formal DAF safety training course.

6.3.11. Participation in DAF Investigations by Non-DAF Personnel.

6.3.11.1. Sometimes a mishap involves weapon systems or equipment common to another US military service or agency (e.g., National Aeronautics and Space Administration). In these cases personnel from the other service or agency may request to observe the DAF investigation. AFSEC forwards these requests to the Convening Authority. Refer to AFPAM 91-206 and applicable MOA/MOU for interagency involvement. If approved by the Convening Authority, observers are authorized to observe SIB activities and may participate to the extent authorized by the SIB President or SIO and published guidance. An observer is not a member of the DAF SIB. Non-DoD observers may not have access to any privileged safety information or discussions, including participation in or access to direct confidential testimony/statements. **Exception:** For National Transportation Safety Board and FAA observers, see AFPAM 91-206.

6.3.11.2. Participation of foreign observers is guided by international agreements.

6.4. Releasing Investigative Information During an Active Safety Investigation. DAF policy complies with the requirements of Title 10, USC § 2254(b), *Treatment of Reports of Aircraft Accident Investigations*, regarding the public disclosure of certain non-privileged aircraft accident investigation information. The SIB approves the release of all information (including electronic/digital media, photographs, etc.) from the SIB to the Accident Investigation Board or other legal investigation, but will not communicate directly with the media or other members of

the public. The release of non-privileged safety information to news media, relatives, and other agencies is through the Accident Investigation Board President, Mortuary Affairs Officer, or Public Affairs representative as appropriate.

6.4.1. The Convening Authority or designated information officer releases factual information about a mishap, including photographs, only as directed in AFI 35-101, *Public Affairs Operations*, and AFI 51-307. Officials involved in the safety investigation are not permitted to be the officials releasing the information to the media or other members of the public. **(T-0)**

6.4.2. The Accident Investigation Board can release factual event information upon request in accordance with AFI 51-307. If an Accident Investigation Board is not formed, the local commander, through the public affairs or legal office, may release factual information. Information will not be released if it will jeopardize national defense, impede an ongoing or pending investigation (including the SIB or Accident Investigation Board), or if it is privileged safety information. **(T-0)** The Accident Investigation Board President will coordinate with the SIB to determine whether the release of information will impede the SIB's investigation. **(T-0)**

6.4.3. Following events where an AFI 51-307 accident investigation or other legal investigation may not take place (such as nuclear, explosives and chemical agents, and directed energy cases) the Convening Authority through the public affairs or legal office may release factual information. Information will not be released if it will jeopardize national defense, impede an ongoing or pending investigation (including the SIB or legal investigation) or if it is privileged safety information. **(T-0)** If the safety investigation is ongoing, the legal release authority will coordinate with the SIB to determine whether the release of information will impede the SIB's investigation. **(T-0)**

Chapter 7

INTERIM SAFETY BOARD

7.1. ISB Duties. With the exception of criminal investigations, safety investigations, to include ISBs, have priority over other investigations connected to the mishap. The ISB will verify that toxicology testing was accomplished in accordance with **Chapter 2**. **(T-1)** The ISB collects and preserves evidence for follow-on investigations.

7.2. Evidence Collection and Preservation. Evidence includes, but is not limited to, wreckage, training records, medical records, aircraft records, vehicle records, mission-related paperwork, toxicology, wildlife remains, witness statements, and other physical evidence. The ISB will collect and preserve all evidence regardless of apparent relevance. **(T-1)**

7.2.1. The ISB will not allow individuals outside the ISB to copy, access, or alter evidence. **(T-1)** This includes collection of physical evidence and paper or electronic records.

7.2.2. For electronic products, the ISB will lock down or sequester records. **(T-1)**

7.2.3. The ISB will document the source of any evidence collected to include photographs and videos. **(T-1)**

7.2.4. The ISB will coordinate with the designated impoundment authority to ensure any equipment associated with a mishap is impounded in accordance with applicable DAFI/AFIs. **(T-2)** Group commanders or higher are required to comply with impoundment requests from ISBs. **(T-2)** The ISB will create an inventory list of all impounded aircraft, vehicle, and equipment including physical location. **(T-2)**

7.2.5. Before the mishap site is declared safe, the ISB's primary role is to monitor and document actions taken so that the original state of the evidence can be understood by follow-on investigations. Safety of personnel (to include emergency response forces) always takes precedence over safety investigations, even at the risk of losing evidence. Preserving evidence at the mishap site does not take priority over rescuing the injured or recovering human remains.

7.2.5.1. Once the mishap site is safe, the ISB will accept control of wreckage and/or evidence, as applicable. **(T-2)**

7.2.5.2. ISB members will not perform duties as incident commander (IC) or recovery operations chief (ROC) or otherwise assume control or overall authority for the mishap site. **(T-2)**

7.2.5.3. The ISB will consult with the IC to ensure proper personal protective equipment is worn by ISB members to protect against blood-borne pathogens, composite materials, and other potentially hazardous materials at the mishap site. **(T-3)**

7.2.5.4. The ISB will coordinate with the IC to ensure access to the mishap site is closely controlled. **(T-2)** The ISB and IC should curtail unnecessary vehicle movement and establish single routes into and out of the area to avoid destroying or changing vital evidence.

7.2.5.5. The ISB should have a member at the mishap site whenever possible. The IC will ensure only those with a legitimate need to be at the mishap site are included on the entry

access list (EAL). **(T-2)** To ensure evidence is not compromised, the ISB will escort personnel who are not on the EAL. **(T-2)**

7.2.5.6. Wreckage or evidence (e.g., aircraft or vehicle components) should be left undisturbed if they pose neither a threat to survivors nor a hazard to the recovery efforts. An installation commander, in coordination with the ISB may choose to remove or destroy wreckage for operational reasons or because they are interfering with essential mission activities, creating a hazard, or interfering with civil functions. In these cases, the ISB will document the scene as thoroughly as possible using both still photographs and video. **(T-2)** Aerial perspectives may prove particularly useful in these cases. The ISB will ensure photography or video documentation of both the wreckage as discovered and the removal process is accomplished. **(T-2)** The ISB will be cognizant of any classified information requirements. **(T-0)**

7.2.5.7. The host unit will provide digital photography support. **(T-3)** Personal cameras and cell phone recordings are forbidden unless authorized by the ISB President to prevent inadvertent release of potentially sensitive photographs such as classified components or human remains. The ISB will collect all copies of photographs or videos taken at the site. **(T-1)** The ISB will not release photographs or videos to the public. **(T-1)**

7.2.5.8. The ISB will record perishable evidence such as ground scars, witness marks, skid marks, and medical evidence using video and photographic images. **(T-2)** The ISB will be cognizant of changing weather conditions which can alter or destroy evidence such as ground scars. **(T-2)** The ISB will document conditions and place protective coverings as needed. **(T-2)** The ISB should use different colored markings (e.g., flags) to differentiate human remains from other evidence. The ISB will maintain a list and description of photographs and videos taken. **(T-2)** The ISB will include, as a minimum, the Global Positioning System location of the item(s) being photographed, the position in relation to the main wreckage, and a description or name of what was photographed. **(T-2)**

7.2.5.9. The ISB Medical Member should be present before human remains are removed from the mishap site. The ISB Medical Member will complete a detailed site diagram before moving human remains. **(T-3)** The ISB Medical Member will use clearly labeled markers and photograph the human remains and surrounding area. **(T-3)** The ISB Medical Member will ensure photographs include adjacent structures which could account for injuries or objects which show evidence of tissue transfer. **(T-3)** The ISB Medical Member will not remove clothing, personal flight equipment, etc. from human remains before they are photographed, examined, radiographs are taken, or before the autopsy, unless prior removal is required for safety reasons. **(T-2)**

7.2.5.10. The ISB will collect perishable fluids (e.g., hydraulic fluids or fuel). **(T-2)**

7.2.5.11. Numerous data sources and collection devices are available for use in investigations. The ISB will ensure data recorded by various on-board systems including crash survivable flight data recorders, cockpit voice recorders, flight control seat data recorders, vehicle data recorders, head up displays, advanced data transfer cartridges, automatic ground collision avoidance system log files, and personal computer debriefing system files are captured and preserved. **(T-2)** Additionally, the ISB will secure data recorded by other off-board systems including other aircraft, vehicles, security cameras,

radar data, etc. **(T-2)** The ISB will contact AFSEC/SEF Technical Assistance (see **Attachment 2**) prior to downloading aircraft data recorders. **(T-1)**

7.2.5.11.1. To prevent overwrite of data recorders remove power (e.g., pull the appropriate circuit breakers) as quickly as possible if power still exists after the mishap. **(T-3)** Information on the data recorders can be rendered useless in as little as 30 minutes if the recorders remain powered after the mishap.

7.2.5.11.2. The ISB will only remove data recorders when they are easily accessible without disturbing or destroying other evidence. **(T-1)** Prior to shipping, ISBs must contact AFSEC/SEF Technical Assistance (see **Attachment 2**) for guidance on where to send recorders for analysis. **(T-1)** ISBs should ship recorders as soon as possible and not hold these items for the SIB's arrival. Ship the recorder via FedEx®, UPS®, etc. (DO NOT send via US Postal Service). ISBs must not allow recorders to be run through metal detectors. **(T-1)** ISBs must maintain shipping records and track the location and status of these items closely. **(T-1)** For On-duty Class A mishaps involving government motor vehicles equipped with an electronic data recorder, ISBs must contact the AFSEC Occupational Safety Division (AFSEC/SEG) or the program office for guidance on how to obtain data in readable format. **(T-1)**

7.2.6. If recovery or salvage of floating debris or submerged wreckage is required, the ISB will request assistance from the Convening Authority. **(T-1)** The Convening Authority will coordinate with the US Navy, US Coast Guard, or contract with commercial salvage company. **(T-1)** Upon recovery of a data recorder from a vehicle that has crashed in a body of water, do not make any attempt to clean, drain, or flush the data recorder. **(T-1)** Place the recorder in a container containing the purest water possible as quickly as possible (i.e., deionized distilled water, tap water, or sea water may be used (in that order)). **(T-1)**

7.2.7. If there is potential for Nuclear Weapons Related Materiel (see AFI 20-110, *Nuclear Weapons-Related Materiel Management*) to be recovered as part of the wreckage, the owning Nuclear Weapons Related Materiel Accountable Officer will notify the ISB and provide a list of national stock numbers, nomenclatures, and serial numbers. **(T-1)** The Nuclear Weapons Related Materiel Accountable Officer will assist with identifying any Nuclear Weapons Related Materiel in the wreckage. **(T-2)**

7.2.7.1. The ISB must notify the Nuclear Weapons Related Materiel Accountable Officer if impounding any Nuclear Weapons Related Materiel assets. **(T-1)** The ISB must provide the Nuclear Weapons Related Materiel Accountable Officer a listing of all Nuclear Weapons Related Materiel assets detailing national stock numbers, part number, location, and quantity identified and/or recovered from the wreckage. **(T-1)**

7.2.7.2. The ISB will not ship or transport Nuclear Weapons Related Materiel assets to any other location unless coordinated through the Nuclear Weapons Related Materiel Accountable Officer. **(T-1)**

7.2.7.3. The ISB must notify the Nuclear Weapons Related Materiel Accountable Officer when transferring custody of Nuclear Weapons Related Materiel assets to legal representatives. Nuclear Weapons Related Materiel assets will be clearly identified and segregated while transferring custody. **(T-1)**

7.2.8. The ISB collects many forms of medical evidence, including personal and protected health information. The ISB will comply with safety privilege and the Privacy Act to protect this information. **(T-0)**

7.2.8.1. Safety investigators should give consideration to ensuring physical exams are performed and documented in all on-duty mishaps or events. For all on-duty Class A mishaps, the ISB Medical Member will determine which personnel should receive a health assessment. **(T-1)** These personnel will receive a complete history and physical examination to the level of detail determined by the examining physician. **(T-1)** Examinations will be documented in the medical record for all personnel directly involved. **(T-1)** See discipline specific safety manuals for further information.

7.2.8.1.1. The examining provider must disclose to mishap personnel that this examination is for medical purposes and will be a part of their medical record. **(T-1)** It is preferable that the examining provider not be the ISB Medical Member to de-conflict the treating physician role from the investigating physician role.

7.2.8.1.2. Safety investigators may gather additional medical information for the SIB that is not for treatment purposes and will not be placed in medical records. Safety investigators must make it clear to mishap personnel how the information will be used. **(T-1)** If mishap personnel are reluctant to provide additional information, the ISB President or IO may offer the promise of confidentiality when authorized in **paragraph 4.5.2**.

7.2.8.1.3. The ISB Medical Member will ensure privileged safety information is not placed in medical records. **(T-0)**

7.2.8.2. ISB Medical Member will collect laboratory samples, complete radiological studies, and obtain 72-hour and 7-day medical histories. **(T-2)** Additionally, the ISB Medical Member will collect medical, mental health, family advocacy, pharmacy, and dental records. **(T-2)** Every attempt should be made to collect 72-hour and 7-day medical histories without the promise of confidentiality. The ISB Medical Member is not authorized to offer a promise of confidentiality; only the ISB President or IO has that authority when authorized in **paragraph 4.5.2**. **(T-1)** For physiological events, the ISB Medical Member will complete the Physiological Event Worksheet (PEW) and applicable testing. **(T-2)** The ISB Medical Member will make a presumptive diagnosis prior to the PEW submission in AFSAS. **(T-2)**

7.2.8.3. The ISB Medical Member, until transferred to the SIB, should be aware of where all human remains are and their status (e.g., awaiting autopsy, returned to family). Great care must be taken to ensure a positive chain of custody for all human remains. If any chain of custody issues arise, the ISB President should contact the Convening Authority immediately. Consult the mortuary affairs officer of the supporting base to determine if civil authorities have jurisdiction over human remains.

7.2.8.4. The ISB Medical Member shall contact the Armed Forces Medical Examiner System to coordinate forensic pathology assistance (see **Attachment 2**). **(T-1)** If further assistance is needed, contact AFSEC Human Factors Division (AFSEC/SEH).

7.3. Written and Verbal Testimony. The intent of interviews and written statements is to capture witness recollection. The ISB will:

7.3.1. Identify witnesses and conduct initial interviews. **(T-1)**

7.3.2. Maintain a list of all witnesses and their role at the time of the mishap (e.g., pilot, maintainer, vehicle operator, eye witness). **(T-1)**

7.3.3. Record the date, name, address, e-mail address, phone number (DSN and/or commercial) and if they were offered a promise of confidentiality for each person who is interviewed or provides a statement. **(T-1)**

7.3.4. Separate individuals and do not allow debriefs or discussions among those involved prior to being interviewed. **(T-1)** Initial statements and interviews are extremely valuable in mishap investigations. Individuals' memories about what they experienced during the mishap are most accurate and most accessible shortly after the mishap.

7.3.5. Ensure all written and verbal testimony is accompanied by the appropriate documentation (e.g., Non-Privileged Witness Agreement or Privileged Witness Agreement). **(T-1)** Use the most current templates located in the ISB Go Package. **(T-1)**

7.3.5.1. Collect all statements and ensure each statement is accompanied by a signed Non-Privileged or Privileged Witness Agreement. **(T-1)**

7.3.5.2. After an event occurs it is common for commanders and supervisors to request written statements from individuals who were involved in the event or who may have knowledge of what occurred. Statements that were not solicited by the ISB or were voluntarily provided by individuals do not require a signed witness agreement. In that case the ISB must provide a memorandum for record stating how the statement was obtained. **(T-1)**

7.3.6. Ensure witness interviews and statements are conducted in a manner that is free of inappropriate influence or coercion and encourages disclosure of accurate information. **(T-1)** When initially taking statements or conducting interviews, only ask witnesses what happened or what they saw. **(T-1)** Leave detailed questioning to the SIB. Do not advise the witness about any matters not related to the safety investigation. If a witness provides a statement while under medication, the ISB will add a notation of the medications, dosage, and when taken at the time of their statement. **(T-1)** Prior to interviewing witnesses, see the ISB Safety Investigator Interview Guide in the ISB Go Package for interview tips and techniques. The ISB will record all verbal interviews. **(T-1)** Contact AFSEC/JA with questions regarding whether a particular interview technique is appropriate. **(T-1)**

7.3.6.1. Do not have witnesses testify under oath. Ensure witnesses understand that they are expected to give honest, good faith testimony. See **paragraph 4.5** for a discussion on the promise of confidentiality.

7.3.6.2. First, read the "Non-Privileged Witness Agreement" to the witness, have them sign the Agreement, and proceed if they demonstrate no reluctance to proceeding. **(T-1)** If the witness is reluctant, and the ISB believes that witness's statement is necessary, then the ISB President may offer the promise of confidentiality and execute the "Privileged Witness Agreement". Refer to **paragraph 4.5** for guidance on offering the promise of confidentiality.

7.3.6.3. If during the course of a non-privileged interview it becomes apparent that a witness is reluctant to provide testimony, end the interview and seek approval to offer the

promise of confidentiality. If approved, offer the witness a promise of confidentiality, have them sign the appropriate documents, and begin a new interview. **(T-0)** Refer to **paragraph 4.5** for guidance on offering the promise of confidentiality.

7.3.6.4. If contractor personnel, such as contract maintainers involved in the mishap, are reluctant to provide a statement, have Quality Assurance, Contracting Office Representative, or the Government Flight Representative review the contract; look for wording such as, "the service provider will assist with the investigation and reporting of mishaps." If that type of wording is not in the contract, contact the Convening Authority for how to proceed.

7.3.6.5. If a witness refuses to be interviewed or provide a statement, contact their commander, Convening Authority safety office, or AFSEC/JA, to discuss lawful orders to participate.

7.3.6.6. If a safety investigator believes DAF personnel questioned in the investigation may be guilty of criminal misconduct, refer to **paragraph 5.11.2**.

7.3.7. This instruction requires collecting and maintaining information protected by the Privacy Act of 1974. Safety investigators will request the DoD ID number of military members and civilian employees involved in reportable events. **(T-1)** Inform individuals that the Privacy Act of 1974 is the legal authority for requesting the DoD ID number and that the number will only be used for safety event investigating and reporting.

7.4. ISB Handover to SIB. The ISB President hands over all evidence and provides a briefing to the SIB. All members of both the ISB and SIB should be present for the briefing. The briefing should be accomplished prior to the ISB and SIB visiting the mishap site. The ISB should remain available to the SIB after the handover is complete and until relieved by the SIB President. Once released, the ISB's involvement in the mishap ceases. ISB members do not retain evidence or copies of evidence. The ISB handover briefing template is located in the ISB Go Package. The briefing should cover the following items:

7.4.1. For aviation mishaps include mishap call sign, serial number, unit, date, and time of mishap. For other mishaps include like information.

7.4.2. ISB contact information.

7.4.3. Location and condition of the mishap site, including collateral property damage.

7.4.4. Actions taken by emergency response forces that affected the scene or wreckage.

7.4.5. Location and condition of participants.

7.4.6. Status of toxicological testing and autopsies (as required).

7.4.7. Next-of-kin notification status.

7.4.8. Location, condition, and status of evidence, including all classified equipment.

7.4.9. Presence of munitions, composites, or other hazardous materials at scene.

7.4.10. Civil authorities involved in managing scene or casualties.

7.4.11. List and location of impounded equipment and records.

7.4.12. Status of witness statements and interviews.

7.4.13. Status of preliminary technical reports.

7.4.14. Status of technical assistance.

7.4.15. Media interest and statements made to date.

7.4.16. Local area safety briefing.

7.4.17. Logistical arrangements in place for SIB such as workspace, communications, transportation, billeting, personal equipment, etc.

Chapter 8

SAFETY INVESTIGATION BOARD

8.1. SIB Duties. SIBs will ensure all on-duty safety investigations culminate with a safety report that contains a narrative sufficient for conveying mishap prevention information to the reader. **(T-1)** The safety report contains the investigation, analysis, conclusions, and recommendations of the SIB. The SIB will write the safety report so the reader clearly understands how the findings and causes were determined and clearly states the role of the individuals found causal in the event sequence. **(T-1)**

8.2. Evidence Collection and Preservation. The SIB receives evidence collected by the ISB and may collect additional evidence during their investigation. Evidence includes, but is not limited to, wreckage, training records, medical records, aircraft records, vehicle records, mission-related paperwork, toxicology, wildlife remains, witness statements, and physical evidence. Group commanders or higher are required to comply with impoundment requests from SIBs. **(T-2)**

8.2.1. The ISB President hands over all evidence and provides a briefing to the SIB. All members of the SIB should be present for the briefing. The ISB should remain available to the SIB after the handover is complete and until relieved by the SIB President. Once released, the ISB's involvement in the mishap ceases. The SIB will disable ISB member access in AFSAS after the handover is complete. **(T-2)**

8.2.2. The SIB will not allow individuals outside the SIB to copy, access, or alter evidence. **(T-1)** This includes physical evidence, paper, or electronic evidence.

8.2.2.1. The SIB may share information with technical experts who, although not primary members of the board, analyze information or wreckage on behalf of the SIB. SIBs must ensure every such technical expert signs a "Non-Disclosure Agreement-Safety Investigation-DoD Personnel" or "Non-Disclosure Agreement-Safety Investigation-Contractor Rep" (as applicable). **(T-1)** The SIB must use the templates located in the SIB Go Package. **(T-1)**

8.2.2.2. The SIB will ensure all non-privileged information and evidence gathered by safety investigators, even if not included as exhibits, is released to an Accident Investigation Board or other legal investigation. **(T-1)**

8.2.3. The SIB will document the source of any evidence collected to include photographs and videos. **(T-2)**

8.2.4. The SIB owns evidence at the mishap site, but will not assume control or overall authority for the site. **(T-1)** The mishap site is controlled by the IC or ROC. The SIB should consult with the IC or ROC to ensure proper personal protective equipment is worn to protect against blood-borne pathogens, composite materials, and other potentially hazardous materials at the mishap site. The SIBs main concern is locating and recovering evidence. Depending on the mishap this could range from a search for specific components to general wreckage recovery. When determining recovery priorities and methods, the SIB should rely on the expertise provided by members of the SIB and other subject matter experts. SIB members provide oversight of recovery operations and may assist when necessary or desired.

8.2.4.1. The SIB will coordinate with IC or ROC to ensure access to the mishap site is closely controlled. **(T-2)** The SIB will add SIB members, and remove ISB members, to the EAL and provide an updated EAL to the IC. **(T-2)**

8.2.4.2. The host unit will provide digital photography support. **(T-3)** To prevent inadvertent release of potentially sensitive photographs such as classified components or human remains, personal cameras and cell phone recordings are forbidden unless authorized by the SIB President. The SIB will collect all copies of photographs taken at the site. **(T-1)** The SIB will not release photographs or videos to the public. **(T-0)**

8.2.4.3. If human remains are still present at the mishap site, the SIB Medical Member should be present before human remains are removed from the mishap site. The SIB Medical Member will ensure a detailed site diagram is completed before moving human remains. **(T-3)** The SIB Medical Member will ensure the use of clearly labeled markers and the human remains and surrounding area are photographed. **(T-3)** The SIB Medical Member will ensure photographs include adjacent structures which could account for injuries or objects which show evidence of tissue transfer. **(T-1)** The SIB Medical Member will ensure clothing, personal flight equipment, etc. from human remains are not removed before they are photographed, examined, radiographs are taken, or before the autopsy, unless prior removal is required for safety reasons. **(T-2)**

8.2.4.4. Before recovering data recorders, the SIB will consult AFSEC/SEF Technical Assistance to determine how to proceed. **(T-1)** The SIB will contact AFSEC/SEF Technical Assistance for where to send recorders for analysis. **(T-1)** The SIB will not ship any recorder to AFSEC without contacting AFSEC Technical Assistance. **(T-1)** The SIB will ship the recorder via FedEx®, UPS®, etc. (DO NOT send via US Postal Service). **(T-1)** The SIB will not allow the recorder to be run through metal detectors. **(T-1)** The SIB will maintain shipping records and track the location and status of these items. **(T-1)**

8.2.5. If recovery or salvage of floating debris or submerged wreckage is required, the SIB will request assistance from the Convening Authority. **(T-1)** The Convening Authority will coordinate with the US Navy, US Coast Guard, or contract with commercial salvage company. **(T-1)** Upon recovery of a data recorder from a vehicle that has crashed in a body of water, the SIB will not make any attempt to clean, drain or flush the data recorder. **(T-1)** Place the recorder in a container containing the purest water possible as quickly as possible (i.e., deionized distilled water, tap water, or sea water may be used (in that order)). **(T-1)**

8.2.6. If there is potential for Nuclear Weapons Related Materiel (see AFI 20-110) to be recovered as part of the wreckage, the owning Nuclear Weapons Related Materiel Accountable Officer will notify the SIB and provide a list of national stock numbers, nomenclatures, and serial numbers. **(T-1)** The Nuclear Weapons Related Materiel Accountable Officer will assist with identifying any Nuclear Weapons Related Materiel in the wreckage. **(T-1)**

8.2.6.1. The SIB must notify the Nuclear Weapons Related Materiel Accountable Officer if impounding any Nuclear Weapons Related Materiel assets. **(T-1)** The SIB will provide a listing detailing national stock numbers, part number, location, and quantity of all Nuclear Weapons Related Materiel assets identified and/or recovered from the wreckage to the Nuclear Weapons Related Materiel Accountable Officer. **(T-1)**

8.2.6.2. The SIB will not ship or transport Nuclear Weapons Related Materiel assets to any other location unless coordinated through the Nuclear Weapons Related Materiel Accountable Officer. **(T-1)**

8.2.6.3. The SIB must notify the Nuclear Weapons Related Materiel Accountable Officer when transferring custody of Nuclear Weapons Related Materiel assets to legal representatives. **(T-1)** The SIB must clearly identify and segregate Nuclear Weapons Related Materiel assets while transferring custody. **(T-1)**

8.2.7. The SIB collects many forms of medical evidence, including personal and protected health information. The SIB will comply with safety privilege and the Privacy Act to protect this information. **(T-0)**

8.2.7.1. Safety investigators should give consideration to ensuring physical exams are performed and documented in all on-duty mishaps or events. For all on-duty Class A mishaps, the SIB Medical Member will determine which personnel should receive a health assessment. **(T-1)** These personnel will receive a complete history and physical examination to the level of detail determined by the examining physician. **(T-1)** Examinations will be documented in the medical record for all personnel directly involved. **(T-1)** The SIB Medical Member is not a treating provider and does not have a provider-patient relationship. The SIB Medical Member must disclose to mishap personnel this fact and that any new medical information provided will be SIB evidence and will not be a part of their medical record. **(T-1)** The SIB Medical Member will not put privileged safety information in medical records. **(T-0)**

8.2.7.2. The SIB Medical Member will collect laboratory samples, complete radiological studies, and obtain 72-hour and 7-day medical histories. **(T-2)** Additionally, the SIB Medical Member will collect medical, mental health, family advocacy, pharmacy, and dental records. **(T-2)** Every attempt should be made to collect 72-hour and 7-day medical histories without the promise of confidentiality. The SIB Medical Member is not authorized to offer a promise of confidentiality; only the SIB President or IO has that authority when authorized in **paragraph 4.5.2**. **(T-1)** For physiological events, complete the PEW and applicable testing. The SIB Medical Member will make a presumptive or diagnosis prior to the PEW submission in AFSAS. **(T-2)**

8.2.7.3. The SIB Medical Member should be aware of where all human remains are and their status (e.g., awaiting autopsy, returned to family). Great care must be taken to ensure a positive chain of custody for all human remains. If any chain of custody issues arise, the SIB President should contact the Convening Authority immediately. Consult the mortuary affairs officer of the supporting base to determine if civil authorities have jurisdiction over human remains.

8.2.7.4. The SIB Medical Member shall contact the Armed Forces Medical Examiner System to coordinate forensic pathology assistance (see **Attachment 2**). **(T-1)** If further assistance is needed, contact AFSEC/SEH.

8.3. Written and Verbal Testimony. The intent of interviews and written statements is to capture witness recollection and to gain more information on specific events that led up to the mishap. The SIB will:

8.3.1. Maintain a list of all witnesses and their role at the time of the mishap (e.g., pilot, maintainer, vehicle operator, eye witness). **(T-1)**

8.3.2. Record the date, name, address, e-mail address, phone number (DSN and/or commercial) and if they were offered a promise of confidentiality for each person who is interviewed or provides a statement. **(T-1)**

8.3.3. Separate individuals and do not allow debriefs or discussions among those involved prior to being interviewed. **(T-1)** Initial statements and interviews are extremely valuable in mishap investigations. Individuals' memories about what they experienced during the mishap are most accurate and most accessible shortly after the mishap.

8.3.4. Ensure all written and verbal testimony is accompanied by the appropriate documentation (e.g., Non-Privileged Witness Agreement or Privileged Witness Agreement). **(T-1)** Use the most current templates located in the SIB Go Package. **(T-1)**

8.3.5. Ensure witness interviews and statements are conducted in a manner that is free of inappropriate influence or coercion and encourages disclosure of accurate information. **(T-1)** Do not advise the witness about any matters not related to the safety investigation. If a witness provides a statement while under medication, add a notation of the medications, dosage and when taken at the time of their statement. **(T-1)** Prior to interviewing witnesses, see the SIB Safety Investigator Interview Guide in the SIB Go Package for interview tips and techniques. The SIB will record all verbal interviews. **(T-1)** Contact AFSEC/JA with questions regarding whether a particular interview technique is appropriate. **(T-1)**

8.3.5.1. Do not have witnesses testify under oath. Ensure witnesses understand that they are expected to give honest, good faith testimony. See **paragraph 4.5** for a discussion on the promise of confidentiality.

8.3.5.2. First, read the "Non-Privileged Witness Agreement" to the witness, have them sign the Agreement, and proceed if they demonstrate no reluctance to proceeding. **(T-1)** If the witness is reluctant, and the SIB believes that witness's statement is necessary, then the SIB President or SIO may offer the promise of confidentiality and execute the "Privileged Witness Agreement". Refer to **paragraph 4.5** for guidance on offering the promise of confidentiality.

8.3.5.3. If during the course of a non-privileged interview it becomes apparent that a witness is reluctant to provide testimony, end the interview and seek approval to offer the promise of confidentiality. If approved, offer the witness a promise of confidentiality, have them sign the appropriate documents, and begin a new interview. **(T-0)**

8.3.5.4. Once a witness has given testimony under a promise of confidentiality, subsequent testimony should also be conducted under a promise of confidentiality.

8.3.5.5. If contractor personnel, such as contract maintainers involved in the mishap, are reluctant to provide a statement, have Quality Assurance, Contracting Office Representative, or the Government Flight Representative review the contract; look for wording such as, "the service provider will assist with the investigation and reporting of mishaps." If that type of wording is not in the contract, contact the Convening Authority for how to proceed.

8.3.5.6. If a witness refuses to be interviewed or provide a statement, contact their commander, Convening Authority safety office, or AFSEC/JA, to discuss lawful orders to participate.

8.3.5.7. If a safety investigator believes DAF personnel questioned in the investigation may be guilty of criminal misconduct, refer to **paragraph 5.11.2**.

8.3.5.8. If, after suspending a safety investigation because of potential criminal acts, the Convening Authority decides to continue the safety investigation, safety investigators may have to interview witnesses suspected of criminal misconduct. Contact AFSEC/JA if the SIB is required to interview suspected criminals. **(T-1)**

8.3.6. This instruction requires collecting and maintaining information protected by the Privacy Act. Safety investigators will request the DoD ID number of military members and civilian employees involved in reportable events. **(T-1)** Inform individuals that the Privacy Act of 1974 is the legal authority for requesting the DoD ID number and that the number will only be used for safety event investigating and reporting.

8.3.7. Safety investigators may need frequent access to participants in an event. Commanders will make all participants available to the investigation upon request of the SIB. **(T-1)** The SIB will advise the commander when participants are no longer needed. **(T-2)** Safety investigators do not make determinations regarding the fitness of participants to be returned to normal duties. Commanders decide if and when participants are to be returned to duty.

8.4. Obtaining and Using Technical Assistance and Laboratory Analysis. When expert analysis of evidence is required by the SIB, they will request technical assistance. **(T-1)** See discipline-specific safety manuals for processes.

8.4.1. Technical experts analyze what components are bent, broken, or burned, etc. and whether damage occurred before, during, or after the event. Upon completion of their analysis, technical experts must provide a written report detailing results of their work. **(T-1)**

8.4.1.1. Technical experts supporting an investigation are bound to follow SIB guidance while directly working and serving the SIB. **(T-1)** This applies to DoD military and civilian personnel as well as contractor representatives. The SIB should involve technical experts as early in the investigation as possible, ideally at the start of the investigation with the ISB handover briefing. The SIB should also include technical experts in deliberations to formulate valid findings and viable recommendations.

8.4.1.2. SIBs must ensure a "Non-Disclosure Agreement-Safety Investigation-DoD Personnel" or "Non-Disclosure Agreement-Safety Investigation-Contractor Rep" (as applicable) on protection of privileged data is prepared and endorsed by all non-DAF SIB personnel (e.g., contractors, National Transportation Safety Board) offered a promise of confidentiality or provided access to privileged safety information. **(T-1)** The SIB must use the templates located in the SIB Go Package. **(T-1)**

8.4.2. Technical experts will author either a non-privileged or privileged report; in some circumstances, they may author two reports, one non-privileged and one privileged. **(T-1)** If a contractor representative is granted a promise of confidentiality for their technical report the DAF maintains sole possession or control of the report, and all the contractor representatives' notes, drawings, etc., must be turned over to the SIB or destroyed. **(T-1)**

8.4.2.1. Non-privileged technical reports contain technical experts' observations, analysis, and conclusions based on physical evidence, factual information, and statements provided without a promise of confidentiality.

8.4.2.1.1. Non-privileged technical reports may include factual information presented during SIB discussions where the technical expert is present. This includes focus on key factual data, detailed system descriptions, or background information when it supports a technical expert's conclusion. Non-privileged technical reports may not include selected information or direction which would reveal the SIB's analysis.

8.4.2.1.2. Non-privileged technical report conclusions may address causes of observed or documented conditions, but do not address the causes of the mishap. This does not preclude stating that a failure would likely create a certain condition, even if the mishap was inevitable under such a condition.

8.4.2.1.3. Recommendations that address preventing observed conditions may be included, but NOT recommendations that address preventing the mishap. The SIB will thoroughly review all non-privileged technical reports to ensure they are not based on direction from the SIB or reveal the SIB's analysis. **(T-1)**

8.4.2.1.4. A contractor's proprietary information does not make a report privileged, but requires appropriate markings so affected portions are not publicly released. The DAF maintains sole possession or control of the report, but the contractor representative may retain their notes, drawings, etc.

8.4.2.1.5. Recommended technical report templates are located in the SIB Go Package.

8.4.2.2. Privileged technical reports contain the technical expert's analysis, conclusions, and recommendations based on privileged information to include confidential statements or SIB member deliberations.

8.4.2.2.1. Privileged technical reports are not meant to duplicate information provided in non-privileged technical reports. They provide supplemental analysis and conclusions to assist the SIB in determining causes and recommendations. A privileged report is not required if technical expert analysis and conclusions can be based solely on physical evidence, factual information, and statements made without a promise of confidentiality.

8.4.2.2.2. SIBs must ensure authors sign a "Non-Disclosure Agreement-Safety Investigation-DoD Personnel" or "Non-Disclosure Agreement-Safety Investigation-Contractor Rep" (as applicable). **(T-1)** SIBs must upload the signed non-disclosure agreement as an exhibit in AFSAS. **(T-1)** The DAF maintains sole possession or control of the report. All the contractor representatives' notes, drawings, etc., must be turned over to the SIB or destroyed.

8.4.2.2.3. Recommended technical report templates are located in the SIB Go Package.

8.4.2.3. If conflicting reports from different technical experts or laboratories are received, SIBs will include both reports as exhibits. **(T-1)** The SIB will provide rationale in the investigative narrative explaining why opposing views were discounted. **(T-1)**

8.5. Determining and Documenting Factors. The narrative of a safety report is comprised of factors that collectively answer the "why" an event occurred. Factors are based on the weight of

evidence, professional knowledge, and good judgment of the investigators. The analysis contained in factors lead to the findings and recommendations. Factors that directly led to injury, damage, or a hazardous event are considered causal and result in causal findings.

8.5.1. **Factors.** A factor is any deviation, out-of-the-ordinary or deficient action, or condition, discovered in the course of an investigation that contributed to the eventual outcome. Determining factors (and eliminating issues that were not factors) enables investigators to focus the investigation from all the issues under examination to those specific areas that are significant in the event. Factors explain why causes, such as pilot error, supervision, or equipment failure occurred. Factors are not mutually exclusive but are often interrelated and in some cases influence each other. Factors are the basis for primary findings and recommendations. Most events involve multiple factors. The SIB will:

8.5.1.1. Ensure all Class A, B, and on-duty Class C mishaps contain at least one causal factor. **(T-1)** Refer to discipline-specific manuals for other event causal factor requirements. Ensure factors are written in narrative format and include detailed analysis of the actions or conditions that influenced the mishap. **(T-1)** Include enough information so the reader can logically follow the SIB's rationale. **(T-1)** Include references to specific technical orders, publications, training, personnel actions or inactions, results of technical analysis, quotes from interviews, human factors, etc. **(T-1)** Use photos or diagrams as necessary.

8.5.1.2. When analyzing actions, organize factors as a discussion of how the action should have been accomplished, how it actually occurred during the mishap, and explain why there was a difference. **(T-1)** Then analyze how the difference between what should have occurred and what actually occurred affected the mishap. **(T-1)**

8.5.1.3. When analyzing conditions (e.g., weather, fatigue), explain how and why the condition influenced the outcome of the mishap. **(T-1)**

8.5.1.4. When analyzing publications (e.g., technical orders, AFIs), explain what the publication stated at the time of the mishap, how it was deficient, and how the deficiency contributed to the mishap. **(T-1)** Contrasting similar publications can be helpful in explaining why the publication was deficient.

8.5.1.5. Determine whether an action or condition was a factor or causal factor in the mishap. **(T-1)** If the SIB cannot narrow it down to a single most likely cause, the SIB will identify the alternatives and state "Action X most likely occurred due to one or more of the following reasons." **(T-1)** Then list the reasons from most probable to least probable. **(T-1)** It is not necessary to list every single possibility.

8.5.2. **Non-Factors Worthy of Discussion.** Non-Factors Worthy of Discussion are written in narrative format and fall into one of three categories: areas that were thoroughly investigated and subsequently ruled out as factors (in order to provide context of why these areas are not factors), areas uncovered during the investigation that did not cause the event or influence the outcome but should be fixed due to the potential to be a factor in a future event (e.g., incorrect information in a technical order), and areas that may be considered an interest item to the Convening Authority (e.g., risk management, crew resource management). Non-Factors Worthy of Discussion are the source for Other Findings and Recommendations of Significance. Not all Non-Factors Worthy of Discussion result in Other Findings and Recommendations of

Significance, but the SIB must have a corresponding Non-Factor Worthy of Discussion for each Other Findings and Recommendations of Significance. **(T-1)** The SIB will:

8.5.2.1. When analyzing areas that were ruled out as factors, explain what the SIB investigated and why they determined it did not influence the mishap. **(T-1)** Often the SIB will need to answer why other plausible scenarios were ruled out.

8.5.2.2. When analyzing areas that could be a factor in a future mishap, explain the deficiency and why it could lead to a mishap. **(T-1)**

8.5.2.3. When analyzing areas that may be considered an interest item to the Convening Authority use either of the methods described in paragraphs **8.5.2.1** and **8.5.2.2** as appropriate. **(T-1)**

8.5.3. **System-Related Events.** For system-related events, determine whether the program office previously identified the hazards that played a role in the event sequence and had included those hazards in its life cycle risk management efforts. All system-related Class A and B mishaps should include a program office analysis of hazards that contributed to the mishap and recommendations for material risk mitigation measures, especially those that minimize potential human errors.

8.6. Determining and Documenting Causes. A cause is a deficiency which if corrected, eliminated, or avoided would likely have prevented or mitigated the event damage or injury. In most instances a causal deficiency is correctable by commanders, supervisors, or individuals.

8.6.1. Cause does not imply blame and it is therefore imperative to determine if a person's performance or judgement was reasonable. If a person's performance or judgment was reasonable considering the event circumstances, do not assign cause. It is not appropriate to expect extraordinary or unique superior performance in such cases.

8.6.2. Risk management is an expected function for all organizations, and improper risk management is considered a deficiency that can be causal in an event (See AFI 91-202 and AFI 90-802, *Risk Management*). In cases where an event has identified hazards there is a responsibility to assess the associated risks, evaluate risk mitigation options, implement risk management measures, evaluate the residual risks, document approval at the appropriate level to accept the expected residual risks in terms of consequences and probability of occurrence, and monitor the effectiveness of the risk control measures implemented. Each recurrence of an event requires a reassessment of the prior risk management decisions. Do not cite risk acceptance as causal when all risk management functions were properly accomplished and a quantified level of risk was accepted at the appropriate level.

8.6.3. Not every deficiency is causal. Some are effects or the expected result of a previously identified cause. Their inclusion sustains the sequence leading to the event. Likewise, the initiating event may not be causal if the SIB determines that a safe recovery with existing procedures was reasonable, but deficient follow-on decisions, actions, or events caused the damage/injury (e.g., an in-flight emergency from which the crew should have been reasonably expected to safely recover).

8.6.4. Environmental conditions such as a bird strike, lightning, high wind, solar wind, meteorites, or flood may be causal only if all reasonable avoidance and damage/injury mitigation actions were taken.

8.6.5. The action that could have prevented a failure resides within the human realm and not on an object or publication. Publications or objects should almost never be found causal. Rather, the party responsible for ensuring the publications are correct or the party responsible for ensuring an object does not fail with catastrophic consequences is causal, unless the party took all reasonably expected actions. In such cases, there may be process or organizational failures, and appropriate parties may be identified as responsible for these failures.

8.6.6. Failure to provide a system or procedure may only be causal if a party should reasonably have been expected to know the omission was deficient, and reasonably been able to provide the system or procedure, prior to the mishap.

8.6.7. Occasionally an investigator may not be able to conclusively determine a specific causal action. In these special cases, the investigator may choose to list two or three of the most probable causes for each option. In rare instances, the causal event may be unknown.

8.7. Determining and Documenting Findings. Safety reports include findings that summarize the essential steps in the mishap sequence. Findings are based on the weight of evidence, professional knowledge, and good judgment of the investigators. The SIB must base findings reflecting essential steps in the event sequence on factors. **(T-1)** The SIB will:

8.7.1. Ensure all Class A-D mishaps have findings (see discipline-specific safety manuals for exceptions). **(T-1)** Findings are optional for all Class E mishaps and all other events.

8.7.2. Ensure findings are arranged in chronological order. **(T-1)**

8.7.3. Ensure the verbiage is not preceded with "Finding and/or Causal" when entering findings in AFSAS. **(T-1)** AFSAS automatically labels this information.

8.7.4. Write each finding as a single event or condition. **(T-1)** Ensure each finding is an essential step in describing the complete event sequence and that not every finding is causal. **(T-1)**

8.7.5. Ensure findings are concise (one sentence) and do not include any more information than is necessary to explain the event. **(T-1)**

8.7.6. Ensure each finding has a logical connection to preceding findings. **(T-1)** If no logical relationship exists, the sequence of the event has not been correctly described. Findings that only serve to connect essential steps in the event sequence such as "Start, taxi, and takeoff" may be included.

8.7.7. Ensure critical events required to sustain the event sequence have not been omitted. **(T-1)** Conversely, do not include events interesting to the reader, but not necessary to sustain the event sequence. **(T-1)**

8.7.8. Ensure the sequence starts when the initial actions occurred, which may be prior to the day of the mishap (e.g., design problems, improperly written directives, an inadequate training program). **(T-1)**

8.7.9. Ensure the sequence continues to the point where all damage or injury has occurred. **(T-1)**

8.7.10. Include injuries occurring in the event at the appropriate chronological point in the event sequence. **(T-1)**

8.7.11. Write each finding as a full sentence, not bullet points. **(T-1)**

8.7.12. Use active voice, where the subject accomplishes the action. **(T-1)**

8.7.13. Use past tense, since the events occurred in the past. **(T-1)**

8.7.14. Spell out acronyms the first time they are used in the findings section. **(T-1)**

8.7.15. List as much of the sequence as can be supported when the SIB cannot pinpoint a correctable event. **(T-1)** List the reasons from most probable to least probable. **(T-1)** Show them as subordinate to the applicable finding by using a format such as "Action X most likely occurred due to one or more of the following reasons". Do not list all of the possible alternatives that could have existed merely because they cannot be eliminated. **(T-1)** Place this sort of conjecture in the factor analysis. **(T-1)**

8.7.16. Use terms such as "the mishap aircraft," "the mishap vehicle operator," "the mishap pilot," “the mishap maintainer," etc. **(T-1)** Do not include people’s names, call signs, DoD Human Factors Analysis and Classification System codes, names of military installations or companies in the findings. **(T-1)**

8.7.17. Ensure findings do not include supporting evidence. **(T-1)** The safety report’s factor analysis includes supporting evidence and conclusions.

8.7.18. Ensure findings do not include new material that was not addressed in the factors. **(T-1)** If the finding is not identifiable in the factor, the factor was not written completely.

8.7.19. After developing the findings, validate the findings with the "Findings Test." **(T-1)** Apply the following “Findings Test”:

8.7.19.1. Is the Finding necessary to sustain the event sequence?

8.7.19.2. Is the Finding a single event or condition?

8.7.19.3. Is the Finding specific enough without including supporting evidence?

8.7.19.4. Is the Finding relevant or simply interesting to the reader?

8.7.19.5. Is the Finding supported by a factor?

8.7.19.6. Does the Finding logically connect to a preceding finding? Read the last finding. Ask "why?", then read the preceding finding. Does it answer the "why?" Continue for each finding.

8.8. Causal Findings. Causal findings are deficiencies in the mishap sequence, which if corrected, eliminated, or avoided, would likely have prevented or mitigated the damage or injury. SIBs must base causal findings on causal factors. **(T-1)** Identify causal findings by selecting the “Causal” button when entering findings in AFSAS. When writing causal findings the SIB will:

8.8.1. Identify the causal agent (who), the action taken (what), and the reason for the deficiency (why). **(T-1)** Why the action (or lack of action) occurred should be fully explained in the associated causal factor. **(T-1)** Example: Due to distraction, the mishap pilot failed to extend the landing gear prior to touchdown.

8.8.2. Always use active voice and past tense. **(T-1)**

8.8.3. After determining the causal findings, apply the following "Cause Test" for validation:

8.8.3.1. Is the causal finding correctable by commanders, supervisors, or individuals?

8.8.3.2. Is the causal finding a clear and simple statement of a single condition or event?

8.8.3.3. Is the causal finding in the active voice, past tense, and does it follow the format: Who did what to whom/what and why?

8.8.3.4. Is the causal finding an effect or an expected result of a previously identified cause, even though its inclusion sustains the event sequence? If so, it is not causal.

8.9. Determining and Documenting Recommendations. Safety reports include recommendations that are feasible and effective solutions to eliminate identified hazards, or if the hazard cannot be eliminated, to mitigate the hazard's potential consequences. SIBs will ensure recommendations correspond to one or more findings. **(T-1)**

8.9.1. If no recommendations are made in an on-duty Class A or B investigation, SIBs will explain their rationale in the Investigation Conclusions section of the safety report narrative. **(T-1)** SIBs will ensure the safety report analysis supports the recommendations. **(T-1)**

8.9.2. All recommendations should target one or more of the hazards identified and documented during the investigation. It is also sometimes prudent to make two or more recommendations against one hazard. Developing sound recommendations also requires recognition of the system safety "order of precedence" concept (design changes, safety devices, warning devices, and then training and procedures) which recognizes that not all risk mitigation alternatives are equal. SIBs will use the order of precedence to develop risk mitigation alternatives. **(T-1)**

8.9.3. Based upon the specific information discovered during the investigation, selected alternatives should be formulated into feasible and effective recommendations and other alternatives discarded. The purpose of using the "order of precedence" is to ensure investigators consider the entire range of available options and not just the cheap and easy ones.

8.9.4. Most recommendations will be associated with causal findings, but not all causal findings will have recommendations. For example, a causal finding may not have a recommendation if the deficiency is already prohibited in command guidance (AFI, technical order, etc.). Likewise, findings that are not causal may also have recommendations written against them.

8.9.5. Recommendations may vary in scope. Some actions can be taken at the unit level. Other recommendations require MAJCOM/FC or other agency actions.

8.9.6. SIB's will explain and provide a reference for tests or analysis (e.g., deficiency report, study, contract number) if a recommendation depends on tests or analyses that are incomplete when the safety report is released. **(T-1)**

8.9.7. Recommendations should require the action agency to correct a deficiency rather than to implement a particular solution. For example "upgrade the fire detection system with a more sensitive sensor" instead of "upgrade the fire detection system with an infrared sensor." The action agency may be able to assist in developing the correct recommendation verbiage.

8.9.8. SIBs will avoid recommendations that only require a study or evaluation. **(T-1)** An action should be required based upon results of any recommended study. In most cases it is not

necessary to recommend a study or evaluation since studies or evaluations are implicit in the process. The recommendation can simply require a corrective action.

8.9.9. SIBs will write recommendations that have a definitive closing action that are not general, vague, sweeping, or open-ended. **(T-1)**

8.9.10. SIBs will not recommend briefing personnel on the event. **(T-1)** Such a briefing is a basic commander responsibility and a normal function of safety offices at all levels of command.

8.9.11. SIBs will not recommend reminding, or have commanders remind, personnel of the importance of simply doing their jobs properly. **(T-1)** However, recommendations to place CAUTIONS and WARNINGS in technical order guidance relating the adverse consequences of not doing one's job properly may be appropriate. Recommendations for specific action such as refresher training, implementing in-process inspections, etc., to ensure job duties are being properly performed may also be appropriate since they are specific and can be closed.

8.9.12. SIBs will include the exact paragraph (or checklist step) and verbiage when recommending publication or technical data changes. **(T-1)**

8.9.13. SIBs will include only one action for each recommendation. **(T-1)**

8.9.14. SIBs will not create a recommendation in AFSAS to state there are no recommendations. **(T-1)**

8.9.15. Since recommendations are often acted upon by personnel who do not have access to the safety report, SIBs will spell out all acronyms in each recommendation. **(T-1)**

8.9.16. SIBs will include the item to which the recommendation applies (e.g., F-16C, Technical Order 1F-16C-2-28JG-40-1). **(T-1)**

8.9.17. SIBs will not write "Recommend…" at the beginning of the recommendation. **(T-1)**

8.9.18. SIBs will not write "The OPR should…" in the recommendation; just start with the required action. **(T-1)** The action agencies are the OPR and office of collateral responsibility (OCR).

8.9.19. SIBs will determine the appropriate action agencies for each recommendation. **(T-1)**

8.9.19.1. SIBs will assign OPRs for every recommendation. **(T-1)** Although an OCR is not required, they are appropriate for many recommendations. SIBs will list only one OPR per recommendation. **(T-1)** More than one OCR may be listed for an individual recommendation.

8.9.19.2. For recommendations where the action is at or below wing/delta level assign commanders as the OPR. Otherwise, assign OPR and OCR responsibility based upon the lead command and user command philosophy. **(T-1)** The DAF assigns responsibility for overall management of each system to a "lead command" to ensure that all requirements associated with every system receive comprehensive and equitable consideration. Furthermore, OPRs should belong to the lead command that bears the preponderance of risk associated with the hazard. The lead command provides primary input into the process of developing and maintaining a force structure with a balance of complementary capabilities and it establishes a basis for rational allocation of scarce resources among competing requirements. See AFPD 10-9 for more information.

8.9.19.3. Normally, if a recommendation requires funding to effect changes to a weapon system (e.g., performing risk analyses or engineering studies, developing aircraft or component modifications, obtaining new test or support equipment), assign the appropriate office for the event weapon system within the lead command as OPR. If the lead command only provides funds for the effort and another organization is responsible for performing or managing the work, assign these organizations as offices of collateral responsibility.

8.9.19.4. The SIB is responsible for coordinating all recommendations with their proposed action agencies (OPR and OCR). **(T-1)** Ensure the correct OPR and OCR are identified through positive contact (call or e-mailed response) prior to publishing the final message. **(T-1)** Include the name, office symbol, telephone number, and e-mail address of one OPR action officer for each recommendation. **(T-1)** Place this information in the dedicated data field provided by AFSAS. **(T-1)** The Convening Authority safety staff will ensure the SIB has made positive contact with the OPR and OCR. **(T-1)**

8.9.19.5. Not all funding comes from the lead command. Sometimes it is possible for a program office, item management office, laboratory, or other organization to fund efforts through separate budgets. If a recommendation does not require funding from the lead command to effect changes to a weapon system (e.g., performing risk analyses or engineering studies, developing and obtaining preferred spares, developing inspection techniques and procedures, simple modifications and testing of software in conjunction with scheduled updates, limited flight and ground testing), assign the appropriate office that has the funding as OPR. Assign OCRs as required. **(T-1)**

8.9.19.6. Although changes to training programs, training equipment, and publishing new or changed paper documents (e.g., AFPDs, AFIs, flight manuals, technical orders) require funding, assign the organization responsible for controlling the content of these products as OPR. **(T-1)** Assign OCR responsibility as required. **(T-1)** For any change requested to AETC Technical Training courses, the appropriate AF Specialty Code Career Field Manager is the appropriate OPR.

8.9.19.7. Sometimes the responsibility for a recommendation lies outside the DAF (e.g., the FAA for various air traffic control issues). Since the DAF may not have the authority to task such agencies to perform recommended actions, do not assign non-DAF agencies as OPRs or OCR. In these cases, write the recommendation as a DAF action and assign the appropriate DAF organization as OPR. **(T-1)** This DAF organization is typically responsible for interaction with or contractual oversight of the outside agency and will ensure proper recommendation evaluation and disposition. Assign OCRs as required. **(T-1)**

8.9.19.8. Field Operating Agencies normally accomplish DAF-level actions. For example, air traffic issues are managed by the AF Flight Standards Agency, not the AF Chief of Operations, Plans and Requirements (AF/A3). However, the Air Staff may be tasked as an OPR or OCR where appropriate.

8.9.20. Hazard/Deficiency Statements. When entering recommendations into AFSAS the SIB is responsible for entering a hazard/deficiency statement. **(T-1)** The SIB will write this statement as a non-privileged single sentence related to what hazard or deficiency precipitated the recommendation. **(T-1)** The hazard/deficiency describes a persistent or common hazard, it does not merely repeat a finding or Non-Factor Worthy of Discussion. The SIB will spell out all acronyms in each hazard/deficiency statement. **(T-1)**

8.10. Other Findings of Significance and Other Recommendations of Significance. The SIB will use the guidance for developing and documenting primary findings and recommendations and apply it similarly to every Other Finding of Significance and Other Recommendation of Significance. **(T-1)** The SIB will:

8.10.1. Spell out acronyms in each Other Finding of Significance and Other Recommendation of Significance. **(T-1)**

8.10.2. Derive Other Findings of Significance from Non-Factors Worthy of Discussion. **(T-1)**

8.10.3. Derive Other Recommendations of Significance from Other Findings of Significance. **(T-1)**

8.10.3.1. Ensure each Other Finding of Significance will be followed by one or more corresponding Other Recommendation of Significance. **(T-1)**

8.10.3.2. Assign an OPR and OCR (as required) to each Other Recommendation of Significance. **(T-1)**

8.11. Safety Reports. Detailed information about events are organized and assembled into safety reports. Safety reports consist of the approved final or final supplemental message, and all exhibits. The SIB will not enter or upload any classified information into AFSAS. **(T-0)** The SIB will send classified reports via e-mail using an appropriate secure means, such as SIPRNET, to the Convening Authority, MAJCOM/FC/NAF Directors/Chiefs of Safety and AFSEC. **(T-0)** The SIB will ensure all other requirements discussed elsewhere in this DAFI are applicable to classified events. **(T-1)**

8.11.1. The SIB will upload documents used by investigators to complete an investigation to the AFSAS exhibits section. **(T-1)** Based on investigative information entered, AFSAS indicates whether each exhibit group is required or optional. Exhibit groups that are not relevant are not displayed. Regardless of whether an exhibit group is required or optional, SIBs will upload exhibits that support their analysis and conclusions. **(T-1)** See **Table 8.1** for exhibit groups. Refer to discipline-specific safety manuals for content and formatting requirements.

Table 8.1. Exhibit Groups.

Exhibit Group	Definition	Contents
Appointment Orders	A document appointing personnel as either primary or secondary members of a SIB.	Orders appointing the SIB, amendments, and SIB composition waivers
Causal Notifications	A notification informing an individual they have been found causal and offering the opportunity to review the final message and proffer a response. This is also known as the "Opportunity to Submit Additional Comments Letter."	SIB President or SIO-signed Opportunity to Submit Additional Comments letter
Causal Responses	A written response to an Opportunity to Submit Additional Comments Letter.	Responses to an Opportunity to Submit Additional Comments letter (These will be uploaded after

Exhibit Group	Definition	Contents
		the causal individual provides a response)
Damage Summary	A tabular listing of DoD items damaged and their associated repair/replacement cost, environmental damage costs, and a description of Non-DoD damage.	Damage summary (AFSAS-generated)
Deficiency Reports	A report of a perceived or actual deficiency requesting further examination and/or analysis from cognizant personnel and their response.	Deficiency reports (from the DoD's Joint Deficiency Reporting System) Equivalent reporting/response products
Diagrams	A product conveying an array of information that is easier and usually faster to understand in graphical format.	Charts, Diagrams, Drawings, Figures, Graphs, Illustrations, Schematics
Evidence Transfer Documents **(Note 1)**	A document itemizing all evidence collected by the SIB and transferring custody to the recipient, typically an Accident Investigation Board, or a base legal office.	Evidence transfer memorandum
Guidance, Official	Entire publications or excerpts of published material from any authorized source that typically has been coordinated, reviewed and published by an authorized source.	DoDIs, AFIs, AFMANs, OIs, etc. Flight manuals, technical orders Approach and landing charts
Guidance, Unofficial	Entire publications or excerpts of published material, no matter how well intentioned, from an unauthorized source.	Alternate maintenance procedures Alternate operational procedures
Investigation Comments and Feedback	A document highlighting investigation difficulties and offering recommendations to improve investigation and reporting procedures.	SIB President or SIO's comments on the investigative process
Investigation Out-briefing	A presentation summarizing the circumstances leading up to the event, the event sequence, and the investigation's finding and recommendations.	SIB’s original briefing slides (with or without note pages) SIB's redacted briefing slides (e.g., personally identifiable information removed)

Exhibit Group	Definition	Contents
Investigation Products	Standalone reports documenting the SIB's efforts in specific areas, which are not addressed elsewhere. This includes surveys conducted by the SIB and forms completed by the SIB.	SIB surveys SIB-computed weight & balance forms Other products that support the SIB's analysis not included in other exhibit groups (e.g., technical report from a different mishap)
Law Enforcement Reports	Reports prepared by an organization whose primary responsibility is law enforcement.	Motor vehicle accident reports Property damage reports
Maintenance and Equipment Records	Records documenting equipment or vehicle maintenance history.	AFTO Forms 781A, *Maintenance Discrepancy and Work Document*, 781H, *Aerospace Vehicle Flight Status and Maintenance*, 781J, *Aerospace Vehicle-Engine Flight Document*, 781K, *Aerospace Vehicle Inspection, Engine Data, Calendar Inspection and Delayed Discrepancy Document*, or electronic equivalent (e.g., F-22 Integrated Maintenance Information System), includes the active forms DD Form 365-3, *Weight and Balance Record, Chart C-Basic* Vehicle records Aerospace ground equipment records Laboratory results (e.g., fuel, oil, hydraulic and liquid oxygen samples)
Maps and Charts	Graphical products addressing items of a geographical nature.	Highway/road, recreational, airfield, and base maps Topographical and nautical charts Aeronautical sectionals

Exhibit Group	**Definition**	**Contents**
Medical Analysis **(Note 2)**	Analysis of relevant medical information with the purpose of drawing conclusions.	Summary of injuries Report of medical conditions and conclusions
Medical Information **(Note 3)**	Records documenting predominantly historical in nature and factual.	Medical, toxicology, and autopsy records
Minority Report	A "MEMORANDUM FOR" the Convening Authority documenting significant investigative disagreements between the SIB and a Primary SIB member.	Minority report (AFSAS-generated) Supporting documentation
Mission Records	Planning documents typically prepared in order to execute the mission successfully.	Flight plan, flight orders -- DD Form 175, *Military Flight Plan*, DD Form 1801, *DoD International Flight Plan*, military flight plan (or equivalents) Passenger manifest, weight & balance -- DD Form 365-4, *Weight and Balance Clearance Form F – Transport/Tactical*
Non-Disclosure Agreements **(Note 1)**	Memorandum between parties agreeing to provide access to various types of information and discussions in exchange for an agreement to not disclose the information further.	Signed Non-disclosure agreements Signed SIB Member Guidance and NDA
Parametric Data	This is recorded raw data (i.e., typically in a digital format; ones and zeros), data that has been converted to a human-readable format (e.g., tabular, charts, graphs and plots).	Crash survivable flight data recorder, seat data recorder, vehicle recorder, etc.
Photographs	Still images taken with a camera (or equivalent) or images extracted from a video stream.	Photographs
Radar Data and Plots	Recorded radar data (typically in a digital format) that has been converted to a human-readable format (e.g., tabular, charts/graphs/plots).	Air traffic control radar data and plots Military radar data and plots
SIB Contact Information	A list of SIB members that includes their home station (or equivalent) contact information.	Contact info for SIB Members (AFSAS-generated)

Exhibit Group	Definition	Contents
Technical and Engineering Reports	Reports generally concerned with documenting the current state of hardware/software, assessing the performance of the hardware/software, focusing particularly on and addressing failures or lack thereof.	Technical reports Egress analysis Aircrew flight equipment analysis Impact & crashworthiness analysis Laboratory & metallurgical analysis Military Flight Operations Quality Assurance reports
Testimony and Statements **(Note 1)**	Written or transcribed statements from individuals with relevant information about the event.	Interview transcripts Written statements 72-hour/7-day histories Signed privileged or non-privileged witness agreements
Training Records	Records documenting the completion of training for one or more individuals who were either an operator, handler, or maintainer of an object or factor in the event.	Aircrew training records (e.g., 30/60/90 flying history report, AF Form 942, *Record of Evaluation* individual data summary, individual flying history report, flight evaluation and training records) Other training records (e.g., Training Business Area)
Transcripts (Not Interviews) **(Note 4)**	Transcripts of communications, generally of individuals, that are routinely recorded by a monitoring device. These are not transcripts of interviews or written statements provided by individuals.	Cockpit voice recorder transcript Air traffic control transcript (transmissions to & from) Command & control (e.g., crash net, security forces, police, fire, rescue) transcript (transmissions to & from)
Videos	Moving images taken with a camera and animations built from a stream of photographs or computer-generated images.	Videos (e.g., security camera recordings) Audio and video recordings (e.g., head-up display recordings)

Exhibit Group	Definition	Contents
		Animations
Weather Records	Documents depicting forecast or actual weather in a particular area of interest.	Weather briefings Actual weather observations/reports Weather radar data; automatic terminal information system
Witness List	A list of people who either provided a written statement or were interviewed by the investigation that includes their contact information.	Witness list (AFSAS-generated)
NOTES: **Note 1:** The SIB will use the templates located in the ISB or SIB Go Packages. **(T-1)** **Note 2:** The SIB will describe the results of post-mishap medical evaluations and all injury types and mechanisms. **(T-1)** Analyze how any pre-mishap medical conditions or toxicology contributed to the mishap. **(T-1)** **Note 3:** The SIB will include relevant portions of medical records, photos of injuries or human remains (when necessary to explain injuries), and autopsy reports. **(T-1)** **Note 4:** The SIB will limit the transcript to the conversation relevant to the mishap sequence of events and end the transcript when all damage and injury has occurred. **(T-1)** For all transcriptions, include a key describing who is speaking (e.g., Air Traffic Control, Mishap Pilot). **(T-1)**		

8.11.2. For all Class A and B on-duty mishap safety reports, SIBs must include exhibits (supporting materials). **(T-1)** Other safety reports may also include exhibits. Exhibits include technical reports, training records, photographs, etc.

8.11.3. When managing exhibits SIBs will:

8.11.3.1. Choose the appropriate exhibit group and then answer attribute questions when uploading exhibits to AFSAS. **(T-1)**

8.11.3.2. Name exhibits so the reader can quickly understand the content (e.g., Animation.wmv rather than OS1234.wmv, or AFMC Analysis Report.pdf rather than ASI20190715.pdf). **(T-1)**

8.11.3.3. Ensure highlighted or otherwise marked documents that indicate investigator analysis are marked as containing privileged safety information. **(T-1)** Attach a memorandum for record stating that all markings on a document are as they were provided to the investigator if a document was provided to the investigator with markings or highlights. **(T-1)** When uploading these documents as exhibits, select the attribute "reflects investigative deliberations." **(T-1)**

8.11.3.4. Ensure exhibits that contain excerpts of documents are marked as containing privileged safety information. **(T-1)** When uploading these documents as exhibits, select the attribute "reflects investigative deliberations." **(T-1)**

8.11.3.5. Ensure exhibits uploaded into AFSAS are not password protected. **(T-1)**

8.11.3.6. Not upload classified exhibits to AFSAS. **(T-0)** If classified exhibits are required to support the analysis contact the applicable AFSEC discipline for guidance.

8.11.3.7. Ensure exhibits are marked to reflect the content of the document (e.g., Privacy Act, FOIA, privileged safety information). **(T-0)**

8.11.3.8. Assign exhibit attributes in AFSAS consistent with the content of the document. **(T-0)** Attributes include: obtained with a promise of confidentiality (e.g., privileged witness interview transcripts), contains sensitive personally identifiable information, contains protected health information, etc.

8.11.3.9. Include only medical and personal information that the Medical Member and SIB determine is relevant to the event to avoid an unnecessary privacy violation of the individual(s) in the safety report. **(T-1)** This includes physical exams, laboratory and radiological testing of survivors, personal equipment, aircrew flight equipment, medical/dental/mental health/substance abuse/family advocacy charts and past histories, initial medical interviews, and other information which points to the mental and physical capability of the personnel involved in the event.

8.11.4. Request waivers to required exhibit groups using AFSAS. **(T-1)** Refer to discipline-specific safety manuals for procedures to request exhibit waivers.

8.12. Safety Messages. The SIB will release safety messages in accordance with requirements in **Chapter 9**. **(T-1)**

8.13. Quality Control, Out-briefs, and Notifying Causal Participants. See **Chapter 10** for quality control reviews, out-briefing requirements, and how to notify causal participants.

8.14. Transferring and Disposing of Evidence. Once the SIB has completed their investigation all non-privileged evidence is either provided to the Accident Investigation Board or other legal board, the host installation Staff Judge Advocate, or returned to the owning organization.

8.14.1. The SIB will notify the Convening Authority once the SIB is done with evidence. **(T-1)** The Convening Authority will then determine whether the evidence is needed by a legal board or may be returned to the owning organization. **(T-1)** The Convening Authority is generally the final authority to release assets to owning units. However, evidence collected in Class A mishaps is automatically on legal hold and disposal, repair, or return to service is in accordance with AFI 51-307. **(T-1)** Contact the Convening Authority legal office to help coordinate for a release from legal hold.

8.14.2. When notified there will be a legal investigation, the SIB will provide all non-privileged evidence (photographs, videotapes, data, documentation, etc.) to the legal board in writing in accordance with discipline-specific safety manual guidance. **(T-1)** The legal board will be responsible for final disposition of all material released to them. **(T-1)**

8.14.2.1. The SIB will provide non-privileged exhibits and factual information to the legal board as soon as possible without creating any risk of interference with the SIB. **(T-1)**

Examples of information that might be provided includes audio recordings, data recorders, autopsy report, toxicology results, police reports, and personnel records. The SIB will transfer the whole, original source record (hard copy) and not printouts from AFSAS or documents that have been screened, selected, edited, or marked by the SIB. **(T-1)** See discipline-specific safety manuals for further guidance.

8.14.2.2. The SIB will ensure the legal board knows the disposition of all non-privileged evidence, including wreckage and components shipped for analysis. **(T-1)** The legal board must acknowledge their custodial responsibility in writing. **(T-1)** If the legal board president is not available and the SIB is prepared to release the evidence, contact the Convening Authority safety or legal staff to determine who will maintain custody until the legal board president is able to accept. **(T-1)**

8.14.2.3. If the legal board has not convened when the SIB de-convenes, the Convening Authority's Safety Staff will coordinate with the Convening Authority's Staff Judge Advocate to determine transfer of custody of non-privileged evidence. **(T-2)**

8.14.3. The Convening Authority must coordinate with the Staff Judge Advocate to evaluate potential claims or other legal actions that may warrant preservation of evidence in accordance with AFI 51-307. **(T-1)**

8.14.3.1. The DAF/JAOA determines whether evidence should be retained in anticipation of claims or litigation. If required by DAF/JAOA, the Convening Authority's Staff Judge Advocate will determine where evidence is stored and the appropriate chain of custody documentation. **(T-1)** The DAF/JAOA is the release authority for Class A mishaps (see AFI 51-307 for obtaining release from legal hold). The host installation Staff Judge Advocate is the release authority for all other events.

8.14.3.2. If there is potential for an event to be elevated to a Class A or B mishap, the evidence shall be maintained by the Convening Authority's safety office for a minimum of 180 days. **(T-1)** The 180-day calendar begins the day the final message is released in AFSAS.

8.14.4. If no legal investigation, claims, or litigation is anticipated by DAF/JAOA or the Convening Authority's Staff Judge Advocate, the SIB will return non-privileged evidence in to the owning organization. **(T-1)**

8.14.5. The Accident Investigation Board or host installation Staff Judge Advocate will ensure all reasonable actions are made to remove and properly dispose of wreckage. **(T-1)** The Accident Investigation Board or host installation Staff Judge Advocate will ensure special care is given to the removal of all wreckage on private or state owned property. **(T-1)**

8.14.6. In the case of fatalities, the disposition of human remains is dependent on who has legal jurisdiction over the remains; often this may be a local civilian coroner or medical examiner. The SIB or Accident Investigation Board will work with mortuary affairs, the host installation Staff Judge Advocate, and Armed Forces Medical Examiner System to clarify jurisdiction and disposition of human remains. **(T-1)**

Chapter 9

SAFETY MESSAGES AND REPORTS

9.1. General Information. Access AFSAS for safety reporting/recording. Once the SIB completes the investigation a final message is required. **(T-1)** A briefing to the Convening Authority may be required. The SIB President will brief the AF Chief of Staff (CSAF) and the SECAF on all on-duty mishaps involving fatalities and other requested events. **(T-1)** The Issues Division of the Office of the Chief of Safety (HQ AF/SEI) is the focal point for scheduling the CSAF and the SECAF briefings.

9.2. Safety Messages. Safety messages include preliminary, status, final, and final supplemental messages.

9.2.1. **General Information.** Investigators are required to periodically update the safety community on the current status of their investigation. This is accomplished by using AFSAS to prepare an appropriate safety message. After an appropriate type of message is selected, AFSAS utilizes logic and templates to automatically populate and format the message. Investigators prepare and review messages for release, but the Convening Authority's safety office releases them. The one exception is the preliminary message where, because of the timeliness of the notification, the ISB will release the preliminary message after Convening Authority safety staff coordination. **(T-2)**

9.2.1.1. SIBs will ensure that personally identifiable information (e.g., names, social security numbers) protected by the Privacy Act does not appear in safety messages. **(T-0)** More information can be found at **http://www.privacy.af.mil/**.

9.2.1.2. AFSAS is only hosted in an unclassified environment; therefore, SIBs will not enter or upload classified or DoD Unclassified Controlled Nuclear Information into AFSAS. **(T-0)** Make every effort to keep safety reports and briefings unclassified to ensure the widest dissemination possible.

9.2.2. **AFSAS Message Types.** AFSAS assembles a message based on data and other information previously entered in AFSAS.

9.2.2.1. Preliminary Message. Preliminary messages are fully releasable, and because of that, shall only contain factual information. **(T-1)** They shall not contain any privileged safety information or information gained through a promise of confidentiality. **(T-1)** A preliminary message requires a narrative which includes enough detail so that the reader understands the salient events of the mishap.

9.2.2.2. Status Message. Status messages are used to provide periodic updates and announce changes such as a SIB relocation, a SIB temporarily de-convening, new information discovered, or investigation delays/extensions. If used to report a delay/extension, explain the reason for the delay, the expected completion date, and extension approval from the Convening Authority. **(T-1)** SIBs must send status messages when:

9.2.2.2.1. Time conditions in **Table 9.1** are met or exceeded. **(T-1)**

9.2.2.2.2. A mishap investigation class or category changes (e.g., a subsequent death from mishap injuries or updated damage cost figures). **(T-1)** SIBs must prepare and release the status message immediately after making updates in AFSAS. **(T-1)**

9.2.2.3. Final Message. Final messages represent the culmination of the investigator's efforts. They provide the details of the investigation, thoroughly explain reasoning used, support decisions made, and present the results of the safety investigation. In many cases, it is the only product a reader will ever see. In general, final messages contain the investigator's analysis, rationale, conclusions, and recommendations to prevent reoccurrence.

9.2.2.3.1. Prior to submission of the final message the SIB will complete the Mishap Quality Control Checklist located in the SIB Go Package in the "QC & MOFE" folder. **(T-1)**

9.2.2.3.2. Submit the final message after the investigation is complete, but not before all required exhibits have been uploaded and the Convening Authority quality control review accomplished (see **paragraph 10.2**). **(T-1)**

9.2.2.3.3. Do not delay the release of the final message for refined cost data, final medical assessments of injury, or internal command comments. **(T-1)**

9.2.2.4. Final Supplemental Message. Release a final supplemental message whenever changes to the final message are required. **(T-1)** Only primary SIB members are authorized to change the safety report. All primary SIB members should concur with any changes. SIB's will include in the "summary of changes" a short description of what was altered in the report. **(T-1)**

9.3. Reporting Schedule. The reporting schedule for each mishap class is shown in **Table 9.1**.

9.3.1. Number of days shown are measured from the mishap date. For Ground mishaps, the reporting timeline begins upon notification to the unit Safety Office.

9.3.2. Regardless of discipline, OSHA injury and illness information must be input to AFSAS by day 7 in accordance with 29 CFR 1904.29(b)(3). **(T-0)**

9.3.3. Preliminary messages are not required for Class C-E mishaps.

9.3.4. If an investigation is not complete a status message is required at day 30. **(T-1)** A status message is required at least every 30 days thereafter until the investigation is complete. **(T-1)**

9.3.5. Class A and B mishap final message timeline includes 30 days for the investigation, 15 days to brief the Convening Authority, and 3 days to release the message after the brief. **Exception:** For mishaps where an engine or engine module is processed through depot the timeline is 90 days. **(T-1)**

Table 9.1. Message Reporting Schedule.

	Day(s)
Class A and B mishaps	
Preliminary	1
Status	30
Final	48

Class C-E mishaps	
Status	30
Final	30

9.3.6. Nuclear Surety Reporting Schedule:

9.3.6.1. For Accidents and Incidents, follow the **Table 9.1**. Mishap Reporting Schedule for Class A and B mishaps. **(T-1)**

9.3.6.2. For Deficiencies, follow the **Table 9.1**. Mishap Reporting Schedule for Class C-E mishaps. **(T-1)**

9.3.7. Incident Reporting Schedule. Follow the **Table 9.1**. Mishap Reporting Schedule for Class C-E mishaps. **(T-1)**

9.3.8. Hazard Reporting Schedule. Follow the **Table 9.1**. Mishap Reporting Schedule for Class C-E mishaps. **(T-1)**

9.3.9. Safety Study Reporting Schedule. There is no timeline requirement for completion, but a status message is required at day 30 and every 30 days until complete. **(T-1)**

9.4. Classified Reporting. The SIB will not enter or upload any classified information into AFSAS. **(T-0)** The SIB will send classified reports via e-mail using an appropriate secure means, such as SIPRNET, to the Convening Authority, MAJCOM/FC/NAF Directors/Chiefs of Safety and AFSEC. **(T-0)** The SIB will ensure all other requirements discussed elsewhere in this DAFI are applicable to classified events. **(T-1)**

Chapter 10

QUALITY CONTROL, OUT-BRIEFS, AND NOTIFYING CAUSAL PARTICIPANTS

10.1. General Information. Safety investigations are considered complete when the safety report is released in AFSAS.

10.2. Convening Authority Quality Control Review. The Convening Authority's safety staff will review the safety report before submitting the final message in AFSAS. **(T-1)** In addition, MAJCOM/FC safety staffs will review all Class A and B safety reports and NAF safety staffs will review all Class B safety reports. MAJCOM/FC and NAF safety staffs should perform reviews of other safety reports in their organization.

10.2.1. Report reviewers shall assess the entire report, including AFSAS database field entries, the final/final supplemental message, and all exhibits (both required and optional), to ensure investigative guidance and documentation standards established in this DAFI and in discipline-specific safety manuals are satisfied. **(T-1)** The review will ensure adequate evidence and analysis is presented to support the investigation's conclusions, findings, and recommendations. **(T-1)** Reviewers will complete the Mishap Quality Control Checklist completed by the SIB and forward to the next level reviewer via e-mail or AFSAS file share. **(T-1)**

10.2.2. If any portion of the safety report, particularly the narrative, findings, causes, DoD Human Factors Analysis and Classification System codes, recommendations, and OPR and OCR responsibility assignments do not satisfy established requirements, safety offices shall return the safety report and work with the SIB to revise it until it meets established requirements. **(T-1)**

10.3. AFSEC Quality Control Review. AFSEC conducts a quality control review following the submission of a safety report.

10.3.1. The AFSEC review process will be accomplished within 10 business days of the submission of the safety report. **(T-1)**

10.3.2. Non-compliance items will be addressed by the SIB. **(T-1)** Once corrections are made the SIB will resubmit the final message. **(T-1)**

10.3.3. The Convening Authority will ensure the SIB addresses the results of the AFSEC review within 10 business days after the review is posted in AFSAS. **(T-1)**

10.4. Briefing the Convening Authority. Board independence is critical to the integrity of the SIB process. Historically, SIB independence is a Congressional interest item, periodically reviewed by the Government Accountability Office and DoD Inspector General. Convening Authorities must ensure there is a clear and distinct delineation between the safety investigation process and any other investigation which may result from the event. **(T-1)**

10.4.1. For on-duty Class A and B mishaps and nuclear surety investigations (accidents and incidents), the Convening Authority briefing should be delivered not later than 15 days after completing the investigation. All SIB primary members should attend the Convening Authority out-brief.

10.4.1.1. **(Added-ANG)** Prior to arrival at NGB for the convening authority briefing preparation, the SIB will provide NGB/SE the Final Message for review, with all analysis, findings, and recommendations completed. Recommendation OPR/OCRs will be contacted prior to outbrief to coordinate and validate mishap recommendations and OPR contact information.

10.4.2. A read-ahead copy of the briefing may be forwarded directly to the Convening Authority and the Convening Authority safety office; however, no further distribution of any type of informational material may occur prior to the briefing except when participants will be attending via audio and/or video teleconferencing means as described in **paragraph 10.4.5.2**. **(T-1)**

10.4.3. To preserve SIB independence, personnel who attend the briefing will not communicate privileged safety information directly or indirectly with any other non-safety investigation or board related to the mishap. **(T-0)**

10.4.4. To preserve SIB independence and protect the safety privilege, if the Convening Authority has determined a legitimate mishap prevention purpose for the Staff Judge Advocate to attend the out-brief, the Staff Judge Advocate's knowledge of privileged safety information will only be used to ensure the SIB does not provide privileged safety information to any other non-safety investigation or board related to the mishap. **(T-1)**

10.4.5. To preserve independence of the board and to protect privileged safety information when the briefing is accomplished via audio and/or video teleconferencing means the Convening Authority/MAJCOM/FC/NAF Director/Chief of Safety will:

10.4.5.1. Arrange for an appropriate safety professional to be present at each location to ensure attendance is limited to those directed by the Convening Authority. **(T-1)**

10.4.5.2. Electronically distribute one copy of the briefing to the safety professional described in **paragraph 10.4.5.1**. **(T-1)** This copy will NOT be used as a read-ahead. **(T-1.)**

10.4.5.3. Ensure all attendees have been properly briefed on the limited-use nature of the information being provided and responsibilities and obligations of those personnel who receive privileged safety information. **(T-1)**

10.4.5.4. Ensure the electronically distributed copy of the briefing is deleted and any printed copies are shredded after the conclusion of the brief. **(T-1)**

10.4.6. Class A-E mishap safety and nuclear surety investigation briefings in their entirety, including all ensuing discussions during the briefing, are privileged safety information in accordance with DoDI 6055.07. Therefore, the Convening Authority will limit and control attendance to personnel who require access to privileged safety information to perform clear and specific mishap prevention duties or with a specific mishap prevention purpose. **(T-0)** This includes controlling attendance via audio and video-teleconferencing means. **(T-1)** Regardless of assignment of Convening Authority, appropriate personnel from MAJCOM/FCs owning assets (personnel or property) involved in that event and incurred damage or loss may be invited to the briefing. **(T-1)** The MAJCOM/FC/NAF Director/Chief of Safety will ensure attendance is limited and will brief the Convening Authority on rules set forth in paragraphs **4.8** and **10.4**. **(T-1)**

10.4.7. When the MAJCOM/FC commander who is the Convening Authority approves, the SIB may brief the NAF commander (or equivalent) and the affected COMAFFOR for a contingency event, for INFORMATIONAL PURPOSES ONLY, prior to briefing the MAJCOM/FC commander. All other investigation briefings and disclosures of the safety report content to the affected squadron, group, or wing/delta are prohibited and cannot be waived by the MAJCOM/FC commander. Prior to this briefing, the NAF Director/Chief of Safety will brief the NAF commander on rules set forth in paragraphs **4.8** and **10.4**. **(T-1)**

10.4.7.1. The NAF commander (and COMAFFOR) and those invited per this instruction to the informational briefing will not direct changes to the investigation report or direct further investigation. The briefing must be free from the appearance of undue command influence that advice and directions can sometimes create.

10.4.7.2. The only personnel authorized to attend the informational NAF commander briefing are the NAF commander, NAF vice commander, and with NAF commander concurrence, the NAF Director/Chief of Safety, MAJCOM/FC Director/Chief of Safety, and the mishap wing/delta commander. In the case of an ANG event, in addition to the above authorized attendees, the Director of the ANG, and the event unit's state Adjutant General may attend. For COMAFFOR information briefings, authorized attendees are the COMAFFOR, and with COMAFFOR concurrence, the AFFOR Director/Chief of Safety, and the event air expeditionary wing/delta commander.

10.4.7.3. In instances where the Convening Authority has been delegated, there will be no intermediate or informational briefings prior to briefing the Convening Authority. **(T-1)**

10.5. Convening Authority Options. The Convening Authority has three options after receiving the results of a safety investigation:

10.5.1. Option 1. Accept the investigation. The SIB's report is an independent body of work and shall remain free of any external influence; therefore, do not staff the safety report prior to release. Release the safety report in accordance with **paragraph 9.2.2.3**.

10.5.2. Option 2. Direct the SIB to conduct additional investigation. The Convening Authority will provide feedback and additional guidance to the SIB to ensure the investigation fulfills the purpose, intent, and requirements of the DAF Mishap Prevention Program. After the SIB investigates areas identified by the Convening Authority and completes their investigation, the Convening Authority will have the same three options.

10.5.3. Option 3. Release the SIB from their duties without accepting their investigation and convene a new SIB.

10.5.4. Other issues not directly related to the mishap do not require a SIB to reconvene or be incorporated into the SIB's report. The Convening Authority's staff may be directed to research them independently by the Convening Authority.

10.6. Notifying Individual(s) Found Causal. When a DAF military member or DAF civilian employee has been found causal in an on-duty Class A or Class B mishap, or nuclear surety investigation, that individual (i.e., causal individual) will be given an opportunity to respond. **(T-1)** Individuals found causal in other mishap investigations may also be given an opportunity to respond.

10.6.1. **Non-AF personnel.** Non-DAF personnel are not offered the opportunity to review the final message or submit a responding statement. This includes DAF personnel assigned to billets outside the DAF, such as with the Defense Logistics Agency or NATO. **Exception:** Non-DAF personnel assigned to fly DAF aircraft and afforded safety privilege in accordance with **paragraph 4.5** are authorized to submit a statement as long as they still meet the previously mentioned criteria.

10.6.2. **SIB's role.** The SIB shall draft a notification memorandum for each individual found causal. **(T-1)** Use the templates located in the SIB Go Package. **(T-1)** Do not provide a copy of the letter to the causal individual or have the causal individual sign a copy before the Convening Authority briefing; this will be accomplished by the Convening Authority safety staff following the briefing.

10.6.3. **Convening Authority safety staff's role.** After the Convening Authority accepts the investigation, the SIB provides all memoranda to the Convening Authority safety staff. The Convening Authority safety staff will distribute all memoranda after the final message is released in AFSAS. For each causal individual attached or assigned to another MAJCOM/FC, the Convening Authority safety staff will send the memorandum to that MAJCOM/FC safety office. The MAJCOM/FC safety office will then forward it to the individual's unit Chief of Safety. For all other causal individuals, the Convening Authority safety staff will forward the memorandum to the individual's unit Chief of Safety.

10.6.4. **Unit safety staff's role.** The Chief of Safety will notify the causal individual's leadership and the causal individual. **(T-1)** The causal individual will be given the opportunity to review the final or final supplemental message. **(T-1)** Causal individuals will not access any exhibits or the Convening Authority briefing. **(T-1)** Additionally, causal individuals will not retain, copy, transcribe, or photograph the final message in whole or in part. **(T-1)** Within 5 business days the safety staff will have the causal individual sign the notification memorandum indicating receipt and indicate their intention to either decline comment or provide a responding statement. **(T-1)**

10.6.4.1. The safety staff will upload the causal individual's signed notification memorandum in AFSAS using the file share option. **(T-1)** The memorandum shall be file shared with the appropriate AFSEC discipline. **(T-1)**

10.6.4.2. If the causal individual provides a response then the safety staff will upload the statement in AFSAS using the file share option. **(T-1)** The statement shall be file shared with the appropriate AFSEC discipline. **(T-1)**

10.6.5. **Causal Individual's role.** The responding statement must be completed and given to the unit safety office within 15 calendar days of being notified. **(T-1)** The statement is privileged safety information and will be marked, protected, and handled accordingly. **(T-0)** Submissions provided by ARC members outside of the 15 calendar-day period will be considered on a case by case basis by AFSEC but will not exceed the 45-day period allocated for Memorandum of Final Evaluation inputs. **(T-1)**

Chapter 11

FOLLOW-UP ACTIONS

11.1. General Information. Follow-up actions conducted by reviewing authorities, Convening Authorities, and AFSEC are required to ensure program compliance, hazard mitigation, and trending validity. Safety staffs will use AFSAS to monitor mishaps requiring Memorandum of Final Evaluation comments, to manage open recommendations, and to prepare for Hazard Review Boards. **(T-1)**

11.2. Memorandum of Final Evaluation Message. The Memorandum of Final Evaluation message is the AF/SE's independent final evaluation and position on causes, findings, recommendations, and DoD Human Factors Analysis and Classification System codes. This is the official position on findings, recommendations, and DoD Human Factors Analysis and Classification System codes for the DAF. It is published in AFSAS with other messages related to the mishap and does not replace the SIB's final message or final supplemental message. The SIB's safety report remains available in AFSAS as part of the official record.

11.2.1. AFSEC will publish a Memorandum of Final Evaluation for all on-duty Class A and B mishaps and nuclear surety investigations (accidents and incidents) within 90 days after release of the safety report. **(T-0)** AFSEC may publish a Memorandum of Final Evaluation for other mishaps if requested by the AFSEC Division Chief and approved by the AFSEC/CV.

11.2.2. The following individuals/organizations will review Class A and B mishap safety reports and input their comments, if applicable, into AFSAS within 45 calendar days after a safety report is released. If no comments are received, AFSEC will assume those eligible to comment concur with the results of the investigation. The Convening Authority staff should provide comments even if "concur as written" is the only applicable evaluation. All comments for the Memorandum of Final Evaluation will be accomplished using the template located in the SIB Go Package in the "QC & MOFE" folder. **(T-1)**

11.2.2.1. Convening Authority.

11.2.2.1.1. **(Added-ANG)** NGB/SE will coordinate with each appropriate functional area (e.g., A3, A4, SG) to ensure they review applicable final messages or formal reports. These functional areas will provide comments to NGB/SE for inclusion in an ANG Memorandum of Final Evaluation (MOFE) comments message report, as required.

11.2.2.2. Lead command of weapons system.

11.2.2.3. Air component commanders of unified commands when the mishap occurred during contingency operations. The unified command staff offices must agree to safeguard the information according to rules contained in this instruction.

11.2.2.4. AFRC or ANG for all events that involve their personnel, property, or equipment.

11.2.2.5. Designated action agencies.

11.2.2.6. Commander of the event wing/delta.

11.2.2.7. Individual(s) found causal.

11.2.2.8. DAF agencies outside the investigating command if their functions were involved in the event (e.g., AFFSA/XA for air traffic services and airfield management).

11.2.2.9. Unsolicited comments. Agencies and organizations reviewing the final message report may comment on the findings, human factors, and recommendations even though they are neither in the chain of command nor a designated action agency.

11.2.3. If during the review process the Convening Authority, or higher reviewing commander (e.g., MAJCOM/CC for a Class B mishap where the NAF/CC is the Convening Authority), learns facts that were not available to safety investigators or that shed new light on the published findings, causes, and recommendations, he or she may do one of the following:

11.2.3.1. Reopen the safety investigation.

11.2.3.2. Include the new facts as a "Comments for MOFE" message submitted by safety staffs by selecting the "Provide Comments for MOFE" link on the mishap of interest in AFSAS.

11.2.4. The comment period is open for 45 calendar days after the safety report is released. Comments received after the 45-calendar-day deadline cannot be entered into AFSAS. Memorandum of Final Evaluation comments may be submitted via e-mail to the appropriate AFSEC discipline outside the 45-calendar-day timeline, but will not be used during the Memorandum of Final Evaluation deliberation without AFSEC/CV approval.

11.2.5. Memorandum of Final Evaluation comments will only address findings, recommendations, other findings of significance, other recommendations of significance, OPRs and OCR responsibilities, and DoD Human Factors Analysis and Classification System coding.

11.2.5.1. Provide comments about findings to address procedural errors, changes to causal/not causal, additions/deletions, or to add information not available to the SIB. Provide specific information to support the requested changes.

11.2.5.2. Provide comments about recommendations to address procedural errors, changes to OPRs and OCRs, or to make additions/deletions. If changes to OPRs and/or OCRs are required, provide contact information for the new OPR and/or OCR, to include the name, rank/GS grade, office symbol, DSN or commercial phone number, and government e-mail address. **(T-1)** Additionally, comments may address the recommendation narrative to clarify intent or correct errors. If the actions directed in the recommendation have already been accomplished, provide documentation of actions taken (see **paragraph 11.3.3**), and the AF/SE or AFSEC/CV may close the recommendation during the Memorandum of Final Evaluation process. Provide specific information to support the requested changes.

11.2.6. If the Memorandum of Final Evaluation adds a person to a causal finding or significantly changes an individual's role in the findings, the AFSEC division's process owner will get approval from the Memorandum of Final Evaluation releasing authority and then prepare a notification memorandum for the respective division chief's signature. The division's process owner will notify the Convening Authority safety office, who in turn will notify the event unit (wing/delta or equivalent) Chief of Safety and must provide the individual an opportunity to submit comments, following the procedures in **paragraph 10.6**. In addition to these procedures, a draft Memorandum of Final Evaluation will also be provided solely for the

individual to review (not for further comments by reviewing authorities). The Memorandum of Final Evaluation will not be released by AFSEC until after the individual has had an opportunity to respond but no later than 15 calendar days after the MAJCOM/FC has been notified unless a delay is requested and approved.

11.2.7. AF/SE is the releasing authority for Class A Memorandums of Final Evaluation. AFSEC/CV is the releasing authority for Class B Memorandums of Final Evaluation. AFSEC will release the Memorandum of Final Evaluation via AFSAS.

11.3. Managing Recommendations. Open recommendations represent known hazards and commanders must address and manage them until their associated hazards are either eliminated or mitigated to an acceptable level.

11.3.1. Safety offices will use AFSAS to manage, update, and close recommendations. **(T-1)** They may socialize them with their organization via encrypted e-mail. Do not use shared electronic workspaces that have not been granted an Authority to Operate for Impact Level 4 (or higher) data as directed in the Defense Information Systems Agency Cloud Computing Security Requirements Guide. **(T-1)**

11.3.1.1. **(Added-ANG)** When an ANG Unit agency is designated as an OPR or OCR for a mishap recommendation, the unit Safety staff will assist their unit agency with the recommendation notification, updates, and closure. The unit Safety staff is responsible for ensuring all updates, closing actions, and supporting documentation are in accordance with section 11.3. The unit Safety staff will accomplish all AFSAS actions on behalf of the unit OPR or OCR.

11.3.2. The OPR must provide recommendation updates in AFSAS every six months until closed. **(T-1)** Some recommendation OPRs, especially at or below the wing/delta level, do not have AFSAS accounts and cannot make semi-annual updates or request recommendation closures. In these cases, it is the responsibility of the accountable MAJCOM/FC/NAF/wing/delta Director/Chief of Safety to accomplish these actions. **(T-1)** For recommendations where the HAF is the OPR, HQ AF/SEI will facilitate updates and closure actions. Elements of an acceptable recommendation update include:

11.3.2.1. Actions planned or taken.

11.3.2.2. Results of development or testing.

11.3.2.3. Significant problems encountered.

11.3.2.4. Delays experienced.

11.3.2.5. Rationale and any supporting risk assessment and acceptance to justify decisions made.

11.3.2.6. Concurrence and non-concurrence by other agencies.

11.3.2.7. Percentage of aircraft, equipment, etc., modified.

11.3.3. Requests to close recommendations can be accomplished when the one of the following has occurred: (1) completion of the recommended actions, (2) completion of alternate actions with a risk assessment completed and accepted by the appropriate risk acceptance authority, (3) no action was taken with a risk assessment completed and accepted by the appropriate risk acceptance authority, (4) when a system or item (including publications)

is removed or retired from service, or (5) a duplicate open recommendation already exists. **(T-1)**

11.3.3.1. When requesting recommendation closure for completed recommendation actions, the OPR must upload documentation in AFSAS to support the closure action. **(T-1)** AFSAS is the program of record for mishaps, recommendations, and mitigating actions. Documents supporting mitigation decisions must be uploaded to AFSAS to support systemic review of mishap prevention actions and support sound safety policy for the future. The following are acceptable closing actions with proper documentation in AFSAS:

11.3.3.1.1. Recommended changes to all applicable publications have been published. **(T-1)** The OPR must ensure corrective action annotations in AFSAS include, as a minimum, the name and/or designation of the publication changed, the date of the publication, and the affected page numbers. **(T-1)** The OPR must upload affected pages from the publication. **(T-1)**

11.3.3.1.2. Recommended modifications or inspections to all applicable systems or items are complete. **(T-1)** Upload the time compliance technical order (or equivalent) and documentation showing its completion (e.g., Reliability and Maintainability Information System data). **(T-1)**

11.3.3.1.3. Recommended studies or evaluations were completed, conclusions were validated, and actions on all validated requirements were completed. **(T-1)** In these cases, the OPR will upload documentation with detailed rationale to support their conclusions. **(T-1)**

11.3.3.1.4. Recommended changes to training were completed. **(T-1)** If the training changes were captured in a publication (e.g., syllabus), see **paragraph 11.3.3.1.1**. Otherwise, corrective action annotations must include, as a minimum, the implementation method of the new training, the date implemented, and the currency requirement for the training. **(T-1)** Upload affected pages from the training product or if a new product, the entire product. **(T-1)**

11.3.3.2. To request closure of recommendations where the recommendation has not been implemented, a risk assessment and risk acceptance must be accomplished. **(T-1)** AFSAS is the program of record for mishaps, recommendations, and mitigating actions. Documents supporting mitigation decisions must be uploaded to AFSAS to support systemic review of mishap prevention actions and support sound safety policy for the future. **(T-1)** Supporting documents typically include the Hazard Review Board memorandum for record and risk acceptance documents (e.g., Hazard Review Board briefing slides).

11.3.3.2.1. The risk acceptance authority for recommendations is as follows:

11.3.3.2.1.1. For Class A and B mishap and nuclear surety investigation (accidents and incidents) recommendations, the OPR's MAJCOM/FC commander or vice commander (or Hazard Review Board Chair/Program Executive Officer or Center commander/vice commander in AFMC) is the risk acceptance authority. **(T-1)** This risk acceptance is normally obtained through the Hazard Review Board staffing process. If the lead MAJCOM/FC is not the OPR, the current OPR will coordinate and reassign the recommendation to the lead MAJCOM with an appropriate risk assessment and recommendation to allow the lead MAJCOM/FC Director/Chief of

Safety office to brief the commander and gain risk acceptance. **(T-1)** If there is no lead MAJCOM/FC, the OPR will coordinate the risk analysis and recommendation through HQ AF/SEI to obtain documented AFSEC concurrence. **(T-1)**

11.3.3.2.1.2. For Class A and B mishap and nuclear surety investigation (accidents and incidents) recommendations, risk acceptance is determined as follows:

11.3.3.2.1.2.1. If a System Safety Risk Assessment is warranted in accordance with AFI 91-202, then risk acceptance authorities will be in accordance with AFI 91-202. **(T-1)**

11.3.3.2.1.2.2. In all other cases, if the lead MAJCOM/FC is not the OPR, the current OPR will coordinate and reassign the recommendation to the lead MAJCOM/FC with an appropriate risk analysis and recommendation. **(T-1)** The lead MAJCOM/FC Director/Chief of Safety will brief the risk analysis to the MAJCOM/FC's commander or vice commander (or Hazard Review Board Chair/Program Executive Officer or Center commander/vice commander in AFMC), as the risk acceptance authority, and gain risk acceptance. If there is no lead MAJCOM/FC, the OPR will coordinate the risk analysis and recommendation through HQ AF/SEI to obtain documented AFSEC concurrence. **(T-1)**

11.3.3.2.1.3. For recommendations where the OPR is the HAF, regardless of the mishap class or event, the chairman of the HAF Hazard Review Board is the risk acceptance authority.

11.3.3.2.1.4. For Class C-E mishaps, incident and hazard reports, and safety studies where the recommendation OPR is not the HAF, the OPR's commander (or 2-letter director for recommendations at MAJCOM/FC/NAF/Field Operating Agency/Direct Reporting Unit level) is the risk acceptance authority. **(T-1)** Examples: If the OPR for a Class C recommendation is ACC/A4M, then the ACC/A4 must concur with the risk assessment, accept the risk, and approve the closure request. **(T-1)** If the OPR is in the Maintenance Group, the Wing/Delta Commander must concur with the risk assessment, accept the risk, and approve the closure request. **(T-1)**

11.3.3.2.2. When an alternate action is taken, a risk assessment must be accomplished and accepted by the appropriate risk acceptance authority. The alternate action must be completed prior to closure. **(T-1)** Once complete the OPR uploads the risk acceptance documents, and documentation of alternate action completion, and requests closure in AFSAS. The risk acceptance documents are typically the Hazard Review Board briefing slides and signed Hazard Review Board memorandum for record (see **paragraph 11.3.6.3**.). Example: "The MAJCOM Vice Commander accepted the risk of updating emergency procedures in the -1 technical order in lieu of updating software during the Hazard Review Board on 10 Apr 20. See the attached risk acceptance documents under "attached files" for supporting details."

11.3.3.2.3. When no action is taken, a risk assessment must be accomplished and accepted by the appropriate risk acceptance authority prior to closure. **(T-1)** Once complete the OPR uploads the acceptance documents and requests closure in AFSAS.

The risk acceptance documents are typically the Hazard Review Board briefing slides and signed Hazard Review Board memorandum for record (see **paragraph 11.3.6.3**.). Example: "The MAJCOM commander/vice commander accepted the risk of not implementing this recommendation during the Hazard Review Board on 10 Apr 20. See the attached risk acceptance documents under "attached files" for supporting details."

11.3.3.3. If the recommendation is not implemented due to a completed programmed removal or retirement of the system or item (including publications) from service, then the completion date of the removal or retirement must be annotated. **(T-1)** If the system is not completely removed from service at the time of the closure request then a risk assessment and risk acceptance is required. **(T-1)** Upload documentation showing the removal or retirement of the system or item (e.g., Reliability and Maintainability Information System data). **(T-1)**

11.3.3.4. Normally request closure of a duplicate recommendation to the open recommendation associated with a higher class mishap, then to the oldest mishap.

11.3.4. OPRs will use AFSAS to request recommendation closure from the recommendation's Closure Approval Authority. **(T-1)** Use **Table 11.1** to determine the proper authority. AFSAS electronically routes the recommendation to them for review and determination if the closing action is acceptable. HQ AF/SEI may request closure through AFSAS on behalf of a HAF OPR. Other safety offices are afforded the opportunity in AFSAS to coordinate on a recommendation's closing action. Coordination must occur within 30 calendar days of the OPR requesting closure. **(T-1)** The approval authority will approve closure only after all actions have been properly annotated in AFSAS. **(T-1)**

11.3.5. The closure approval authority closes recommendations for one of five reasons: (1) completion of the recommended actions, (2) completion of alternate actions with a risk assessment completed and accepted by the appropriate risk acceptance authority, (3) no action was taken with a risk assessment completed and accepted by the appropriate risk acceptance authority, (4) when a system or item (including publications) is removed or retired from service or (5) a recommendation is a duplicate of another open recommendation.

Table 11.1. Closure Approval Authority for Recommendations.

<table>
<tr><td colspan="2"></td><td colspan="7">If the OPR is:</td></tr>
<tr><td colspan="2"></td><td>HAF</td><td>FOA/DRU</td><td>MAJCOM/FC</td><td>NAF</td><td>Wing/Delta</td><td>Group</td><td>Sqdn</td></tr>
<tr><td colspan="2">Event Type</td><td colspan="7">Closure Approval Authority is:</td></tr>
<tr><td rowspan="5">Mishap Class</td><td>A</td><td rowspan="5">AFSEC/CV</td><td>AFSEC/CV</td><td colspan="5">AFSEC/CV if On-Duty Mishap
MAJCOM/FC/CV if Off-Duty Mishap</td></tr>
<tr><td>B</td></tr>
<tr><td>C</td><td rowspan="3">FOA/DRU/SE</td><td rowspan="3">MAJCOM/FC /SE</td><td rowspan="3">NAF/SE</td><td colspan="3" rowspan="3">Wing/Delta/SE</td></tr>
<tr><td>D</td></tr>
<tr><td>E</td></tr>
</table>

Incident, Hazard, & Safety Study					
Nuclear		AFSEC/CV			

11.3.6. Each MAJCOM/FC, and HQ AF/SEI on behalf of the HAF, will establish a Hazard Review Board. The purpose of a Hazard Review Board is to address hazards throughout the command regardless of the organizational level of the OPR. **Exception:** AFMC is exempt from conducting a Hazard Review Board at the MAJCOM/FC level. Centers under AFMC shall provide Hazard Review Board results to the AFMC Director of Safety not later than 1 April and 1 October every year. The AFMC Director of Safety will provide a brief and summary of Centers' Hazard Review Board results to the AFMC Commander at least twice annually.

11.3.6.1. The Hazard Review Board will meet no less than once every six months.

11.3.6.2. At a minimum, the MAJCOM/FC Director/Chief of Safety will provide the commander or vice commander the following information through the Hazard Review Board process:

11.3.6.2.1. All open Class A and B mishap and nuclear surety investigation (accidents and incidents) recommendations to include latest status updates and changes since previous Hazard Review Board. The Hazard Review Board should also include recommendations from mishaps that have not yet been through the Memorandum of Final Evaluation process and recommendations from non-mishap events such as safety studies like Line Operations Safety Audit's as determined by the Convening Authority or the Convening Authority's safety staff.

11.3.6.2.2. A risk assessment for recommendations requiring a risk acceptance by the commander or vice commander.

11.3.6.2.3. Identification of recommendations open over two years with rationale.

11.3.6.3. The MAJCOM/FC will create and maintain a memorandum for record signed by the MAJCOM/FC Director/Chief of Safety after every Hazard Review Board. This memorandum for record will be maintained by the MAJCOM/FC safety office. The memorandum will contain:

11.3.6.3.1. Number of recommendations closed since the last Hazard Review Board.

11.3.6.3.2. Number of open recommendations.

11.3.6.3.3. Number of recommendations open for longer than two years.

11.3.6.3.4. A list of recommendation identification numbers for closure request grouped by 1) actions completed, 2) alternate actions completed with risk acceptance,

3) actions not competed with risk acceptance, 4) system or item removed from service, and (5) a recommendation is closed to a duplicate open recommendation.

11.3.6.4. NAF and wing/delta safety staffs are encouraged to establish a similar Hazard Review Board process to close recommendations from Class C-E mishaps, incident and hazard reports, and safety studies.

JOHN T. RAUCH, Major General, USAF
Chief of Safety

(ANG)

TILMOTHY T. MARTIN, Col, USAF
Deputy Commander, Air National Guard Readiness Center

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 10-220, DCMA INST 8210.1/AFI 10-220_IP/AR 95-20/NAVAIRINST 3710.1F, COMDTINST M13020.3A, *Contractor's Flight and Ground Operations*, 21 August 2013

AFI 10-2501, *Emergency Management Program*¸ 10 March 2020

AFI 11-215, *Flight Manuals Program*, 25 March 2019

AFI 20-110, *Nuclear Weapons-Related Materiel Management*, 19 June 2020

AFI 21-103, *Equipment Inventory, Status and Utilization Reporting*, 30 April 2020

AFI 23-111, *Management of Government Property in Possession of the Air Force,* 19 November 2018

AFI 31-117, *Arming and Use of Force by Air Force Personnel*, 5 August 2020

AFI 32-2001, *Fire and Emergency Services Program,* 28 September 2018

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020

AFI 35-101, *Public Affairs Operations,* 20 November 2020

AFI 36-3002, *Casualty Services,* 20 June 2017

AFI 48-151, *Thermal Injury Prevention Program*, 7 April 2016

AFI 51-307, *Aerospace and Ground Accident Investigations*, 18 March 2019

AFI 62-601, *USAF Airworthiness*, 11 June 2010

AFI 63-101/20-101, *Integrated Life Cycle Management,* 30 June 2020

AFI 65-503, *US Air Force Cost and Planning Factors,* 13 July 2018

AFI 65-601 Volume 2, *Budget Management for Operations*, 14 July 2017

AFI 90-802, *Risk Management,* 1 April 2019

AFI 91-202, *The US Air Force Mishap Prevention Program*, 12 March 2020

AFMAN 10-206, *Operational Reporting (OPREP),* 18 June 2018

AFMAN 10-2502, *Air Force Incident Management System (AFIMS) Standards and Procedures,* 13 September 2018

AFMAN 41-210, *Tricare Operations and Patient Administration,* 10 September 2019

AFMAN 44-198, *Air Force Civilian Drug Demand Reduction Program,* 24 January 2019

AFMAN 91-221, *Weapons Safety Investigations and Reports*, 26 March 2020

AFMAN 91-222, *Space Safety Investigations and Reports*, 17 June 2019

AFMAN 91-223, *Aviation Safety Investigations and Reports*, 14 September 2018

AFMAN 91-224, *Ground Safety Investigation and Hazard Reporting*, 29 March 2019

AFMAN 99-151, *Air Launched Munition Analysis Group (ALMAG)*, 14 August 2019

AF Mission Directive 1, *Headquarters Air Force (HAF)*, 5 August 2016

AFPAM 91-206, *Participation in Military or Civil Aircraft or Space Safety Investigations*, 26 April 2019

AFPD 10-9, *Lead Command Designation and Responsibilities for Weapons Systems*, 8 March 2007

AFPD 91-2, *Safety Programs*, 3 September 2019

DAFI 33-360, *Publications and Forms Management*, 1 December 2015

DAFI 91-225, *Aviation Safety Programs*, 20 September 2019

DoD 1400.25-M, *Department of Defense Civilian Personnel Manual (CPM)*, 1 December 1996

DoD 7000.14-R, *Department of Defense Financial Management Regulation, Volume 5*, October 2019

DoDI 5200.48, *Controlled Unclassified Information (CUI)* 6 March 2020

DoDI 5400.11, *DoD Privacy and Civil Liberties Programs*, 29 January 2019

DoDI 5530.03, *International Agreements*, 4 December 2019

DoDI 6055.01, *DoD Safety and Occupational Health (SOH) Program*, 14 October 2014

DoDI 6055.04, *DoD Traffic Safety Program*, 20 April 2009

DoDI 6055.07, *Mishap Notification, Investigation, Reporting, and Record Keeping*, 6 June 2011

DoDM 5400.07, *DoD Freedom of Information Act (FOIA) Program*, 25 January 2017

DoDM 6025.18, *Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DoD Health Care Programs*, 13 March 2019

Executive Order 12196, *Occupational Safety and Health Program for Federal Employees*, 26 February 1980

FAA Advisory Circular 00-1.1B, *Public Aircraft Operations-Manned and Unmanned*, 21 September 2018

HAF Mission Directive 1-46, *Chief of Safety*, 10 December 2013

NATO Standardized Agreement 3101, *Exchange of Flight Safety Information*, 3 November 2016

NATO Standardized Agreement 3531, *Safety Investigation and Reporting of Accidents/Incidents Involving Military Aircraft, Missiles, And/Or UASs*, 8 April 2013

Public Law 104-191, *Health Insurance Portability and Accountability Act*

Technical Order 00-5-1, *AF Technical Order System*, 15 February 2019

Technical Order 00-35D-54, *USAF Deficiency Reporting, Investigation, and Resolution*, 1 September 2015

Title 29 CFR Part 1904, *Recording and Reporting Occupational Injuries and Illnesses*

Title 29 CFR Part 1960, *Basic Program Elements for Federal Employee Occupational Safety and Health Programs and Related Matters*

10 USC § 2254, *Treatment of Reports of Aircraft Accident Investigations*

22 USC § 2751, *Arms Export Control Act*

50 USC § 1701-1706, *International Emergency Economic Powers Act*

50 USC § 2401-2420, *Export Administration Act*

Prescribed Forms

AF Form 978, *Supervisor Mishap Report*

AF Visual Aid 91-218, *Privileged Safety Information (PSI) Cover Sheet*

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

AF Form 942, *Record of Evaluation*

AFTO Form 781A, *Maintenance Discrepancy and Work Document*

AFTO Form 781H, *Aerospace Vehicle Flight Status and Maintenance*

AFTO Form 781J, *Aerospace Vehicle-Engine Flight Document*

AFTO Form 781K, *Aerospace Vehicle Inspection, Engine Data, Calendar Inspection and Delayed Discrepancy Document*

DD Form 175, *Military Flight Plan*

DD Form 250, *Material Inspection and Receiving Report*

DD Form 365-3, *Weight and Balance Record, Chart C-Basic*

DD Form 365-4, *Weight and Balance Clearance Form F – Transport/Tactical*

DD Form 1801, *DoD International Flight Plan*

OSHA Form 300, *Log of Work-Related Injuries and Illnesses*

OSHA Form 300A, *Summary of Work-Related Injuries and Illnesses*

OSHA Form 301, *Injuries and Illnesses Incident Report*

US Department of Labor Form LS-1, *Request for Examination and/or Treatment*

US Department of Labor Form LS-201, *Notice of Employee's Injury or Death*

US Department of Labor Form LS-202, *Employer's First Report of Injury or Occupational Illness*

Abbreviations and Acronyms

ACC—Air Combat Command

AETC—Air Education and Training Command

AF—Air Force

AF/A3—Air Force Chief of Operations, Plans, and Requirements

AFI—Air Force Instruction

AFIMSC—Air Force Installation Mission Support Center

AFMAN—Air Force Manual

AFMC—Air Force Materiel Command

AFPD—Air Force Policy Directive

AFPAM—Air Force Pamphlet

AFR—Air Force Reserve

AFRC—Air Force Reserve Command

AFSAS—Air Force Safety Automated System

AF/SE—Air Force Chief of Safety

AFSEC—Air Force Safety Center

AFSEC/CC—Air Force Safety Center Commander

AFSEC/CV—Air Force Safety Center Vice Commander

AFSEC/SEF—Air Force Safety Center Flight Safety Division

AFSEC/SEG—Air Force Safety Center Occupational Safety Division

AFSEC/SEH—Air Force Safety Center Human Factors Division

AFSEC/JA—Air Force Safety Center Judge Advocate

ANG—Air National Guard

ARC—Air Reserve Component

CFR—Code of Federal Regulations

COMAFFOR—Commander, Air Force Forces

CSAF—Air Force Chief of Staff

CUI—Controlled Unclassified Information

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAF/JAOA—Department of the Air Force Operational Law Division’s Aviation Law Branch

DOD—Department of Defense

DODI—Department of Defense Instruction

DODM—Department of Defense Manual

EAL—Entry Access List

FAA—Federal Aviation Administration

FC—Field CommandFES- Fire Emergency Services

FOIA—Freedom of Information Act

GSU—Geographically Separated Unit

HAF—Headquarters Air Force

HQ AF/SEI—Issues Division of the Office of the Chief of Safety

IC—Incident Commander

ISB—Interim Safety Board

MAJCOM—Major Command

MOA—Memorandum of Agreement

MOU—Memorandum of Understanding

NAF—Numbered Air Force

NATO—North Atlantic Treaty Organization

NGB—National Guard Bureau

OCR—Office of Collateral Responsibility

OPR—Office of Primary Responsibility

OSHA—Occupational Safety and Health Administration

PACAF—Pacific Air Forces

PEW—Physiological Event Worksheet

ROC—Recovery Operations Chief

SECAF—Secretary of the Air Force

SIB—Safety Investigation Board

SIO—Single Investigating Officer

SIPRNET—Secret Internet Protocol Router Network

TDY—Temporary Duty

UAS—Unmanned Aircraft System

UAV—Unmanned Aerial Vehicle

UCMJ—Uniform Code of Military Justice

US—United States

USAF—United States Air Force

USSF—United States Space Force

Terms

Aero Club Aircraft—All aircraft assigned to an Aero Club. The Aero Club through purchase, lease, or loan from the government may have acquired these aircraft.

Attributes—A type of label (e.g., Freedom of Information Act, Privileged Safety Information) that characterizes the contents of the document, describes the release limitations and/or restrictions of the information, and how the information was obtained/developed. Attributes act as a key in identifying properties to aid the AFSAS in database storage, retrieval, and proper handling.

Chemical Agents—A chemical compound intended for use in military operations to kill, seriously injure, or incapacitate persons through its chemical properties. Excluded are riot control agents, chemical herbicides, smoke, and flame producing devices. Pesticides, insecticides, and industrial chemicals, unless selected by the DoD Components for chemical warfare purposes, are also excluded.

Class A Mishap—In addition to the definition in DoDI 6055.07, a mishap resulting in permanent loss of primary mission capability of a DAF space vehicle.

Class B Mishap—In addition to the definition in DoDI 6055.07, a mishap resulting in permanent degradation of primary or secondary mission capability of a DAF space vehicle or the permanent loss of secondary mission capability of a DAF space vehicle.

Class C Mishap—In addition to the definition in DoDI 6055.07, a mishap resulting in one or more of the following:(1) When determining if the mishap is a Lost Time Case, count the number of days the employee was unable to work as a result of the injury or illness, regardless of whether the person was scheduled to work on those days. Weekend days, holidays, vacation days, or other days off are included in the total number of days, if the employee would not have been able to work on those days.

(2) An occupational injury or illness resulting in permanent change of job.
(3) Permanent loss or degradation of tertiary mission capability of a space vehicle.

Class D Mishap—In addition to the definition in DoDI 6055.07, any work-related mishap resulting in a recordable injury or illness not otherwise classified as a Class A, B, or C mishap. These are cases where, because of injury or occupational illness, the employee only works partial days, has restricted duties or was transferred to another job, required medical treatment greater than first aid, or experienced loss of consciousness (does not include G-loss of consciousness). In addition, a significant injury (e.g., fractured/cracked bone, punctured eardrum, any laser eye injury) or occupational illness (e.g., occupational cancer (mesothelioma), chronic irreversible disease (beryllium disease)) diagnosed by a physician or other licensed health care professional must be reported even if it does not result in death, days away from work, restricted work, job transfer, medical treatment greater than first aid, or loss of consciousness.

Class E Mishap—A work-related mishap that falls below Class D criteria. Most Class E mishap reporting is voluntary; however see discipline-specific safety manuals for a list of events requiring mandatory reporting.

Command—Directed - An event that is a superior-directed place, time, and activity.

Commodity—For purposes of this instruction, a vehicle being transported by means other than under its own power (e.g., a UAV inside a shipping container or a truck being transported inside a cargo aircraft). Additionally, aircraft in depot status will be considered a commodity while entered

into an "In-Dock Maintenance Phase" or equivalent and have depot work control documents or equivalent in lieu of standard aircraft maintenance forms.

Competent Medical Authority—A licensed healthcare provider awarded with regular clinical privileges for independent practice within the scope of their practice by the healthcare facility responsible for the provider's place of duty. Competent medical authority also includes nurse practitioners and physician assistants under supervision of licensed medical practitioners.

Contractor Mishap—In addition to the definition in DoDI 6055.07, when determining if a contractor employee's injury or illness requires reporting for recordkeeping requirements under 29 CFR 1904 refer to **Chapter 1** of this instruction.

Covered Entity—A health plan, a health care clearinghouse, or a health care provider.

Critical Profile—A mission profile exceeding system limitations based on system specifications or other program documentation.

Days Away From Work—See 29 CFR 1904.7(b)(3)(iv)

Deficiency—A characteristic or condition that fails to meet a standard, or is not in compliance with a requirement, specification, instruction, or manual.

DoD Aircraft—In addition to the definition of an aircraft in DoDI 6055.07, all manned and unmanned weight-carrying devices supported in flight by buoyancy or dynamic action and are owned or leased by the DoD Components (including the AFRC). When a Full Scale Aerial Target unmanned vehicle is carrying a person, it is a DoD aircraft, not a UAV/UAS.

DoD Civilian Personnel—In addition to the definition in DoDI 6055.07, DoD Civil Service System employees (including Reserve component military technicians (dual status), unless in a military duty status), non-dual status technicians, and non-appropriated fund employees. To avoid dual reporting this excludes military personnel working part-time DoD civilian jobs; Corps of Engineers Civil Works employees; Youth or Student Assistance Program employees; foreign nationals employed by the DoD Components; and Army-Air Force Exchange Service employees. Foreign national employees fall into two categories: 1) Direct Hire – Under the direct hire system, the US Forces are the legal employer of the foreign national and assumes responsibility for all administrative and management functions with foreign national employment; 2) Indirect Hire – The host government serves as the legal employer of US Forces' foreign nationals. Although the host government is the official employer for the foreign national personnel, it grants operational control to the US Forces for the day-to-day management of such personnel. See DoD 1400.25-M, *Department of Defense Civilian Personnel Manual (CPM)* Sub-Chapter 1231 for additional information.

DoD Military Personnel—In addition to the definition in DoDI 6055.07, all US military personnel on active duty or Reserve status under the provisions of Title 10 of the US Code; National Guard personnel under the provisions of Title 32 of the US Code; Service Academy cadets; Reserve Officer Training Corps cadets when engaged in directed training activities; foreign national military personnel assigned to the DoD Components.

Destroyed Aircraft—A damaged DoD aircraft that cannot be repaired and returned to service.

Directed Energy—An umbrella term covering technologies that relate to the production of a beam of concentrated electromagnetic energy or atomic or subatomic particles.

Directed Energy Device—A system using directed energy primarily for a purpose other than as a weapon.

Directed Energy Weapon—A device that uses directed energy and is designed to kill, injure, disable or temporarily incapacitate people or destroy, damage, disable or temporarily incapacitate property or materiel.

Disability—See definition of Permanent Partial Disability or Permanent Total Disability.

Engine—Thrust or torque producing machinery for manned and unmanned aerial vehicles to include cases, rotational and static hardware for turbo-machinery. The term "engine" also includes "internal combustion" reciprocating machinery. The "engine" includes attached gearboxes and accessories necessary for operation and control of the thrust or torque producing machinery and any thrust augmentation systems. The term "engine" does not include reduction gearboxes, propellers or propeller control devices.

Event—A broad term used to describe an occurrence, a series of occurrences, or a condition which has implications for the safety community. Events include mishap, nuclear surety, incident, hazard, and safety study.

Exhibits—A document or file (including photographs, videos, etc.) uploaded in AFSAS as supporting evidence for a safety report.

Explosives—See the definition in DoDI 6055.07.

Fire—Related Mishap - A mishap with reportable damage to real property or equipment or reportable injury to DAF personnel resulting from fire, but does not involve a DoD aircraft, or explosives. Fire mishaps are categorized as industrial mishaps and include non-DAF personnel when DAF property or equipment fires cause injury.

First Aid—See 29 CFR 1904.7(b)(5)(ii).

Friendly Fire—See the definition in DoDI 6055.07.

Government Motor Vehicle—In addition to the definition in DoDI 6055.04, examples of Government Motor Vehicles are sport utility vehicles and rental vehicles authorized by official travel orders, and General Service Administration vehicles leased on a long- or short-term basis.

Government Vehicle, Other—See the definition in DoDI 6055.04.

Greater Than First Aid—Any action in excess of First Aid as defined in 29 CFR 1904.7(b)(5)(ii).

Guided Missile—All missiles propelled through air or water, guided by internal or external systems, and self-propelled. This term includes individual major missile components such as stages, guidance and control sections, payloads other than nuclear reentry vehicles; system equipment required to place the missile in an operational status while at the launch or launch control facility or on the launching aircraft; and system equipment required to launch and control the missile. Examples are intercontinental ballistic missiles; surface-to-air, air-to-air, and air-to-surface guided missiles, and torpedoes. This term includes all missiles that are: owned in whole or in part by a DoD Component; operationally controlled by a DoD Component; on bailment or loan to a non-DoD Agency for modification, testing, or as an experimental project for a DoD Component; or under test by a DoD Component. Drones (e.g., target, decoy, surveillance), ballistic or semi ballistic vehicles, and artillery projectiles are not considered guided missiles.

Hazard—A real or potential condition that could lead to an unplanned event or series of events (i.e., mishap) resulting in death, injury, occupational illness, damage to or loss of equipment or property, or damage to the environment.

Human Factors Expert—Flight surgeon, aerospace physiologist, or psychologist who has completed either the Aircraft Mishap Investigation and Prevention workshop, Aircraft Mishap Investigation course, Mishap Investigation Non-Aviation course, Introduction to Mishap Investigation course or equivalent training from other DoD services.

Illness and/or Disease—See the definition in DoDI 6055.07.

Incident—A planned or unplanned occurrence or series of occurrences resulting in injury or damage that does not meet mishap or nuclear surety reporting criteria.

Injury—A traumatic wound or other condition of the body caused by external force or deprivation (e.g., fractures, lacerations, sprains, dislocations, concussions, compressions, drowning, suffocation, exposure, hot or cold injury, dehydration, hypobaric chamber related decompression sickness or illness, single-exposure/single-shift hearing loss), including stress or strain, which results from an unplanned event. The injury is identifiable as to the time and place of occurrence and member or function of the body affected, and is caused, or triggered, by a specific event or incident or series of events or incidents in a single day or work shift as classified in the OSHA Forms for Recording Work-Related Injuries and Illnesses booklet.

Intent for Flight—Intent for flight is considered to exist when aircraft brakes are released and/or takeoff power is applied for commencing an authorized flight. Intent for flight continues until either the fixed-wing aircraft taxies clear of the runway or, for helicopters and/or vertical takeoff and landing aircraft, the aircraft has alighted and the aircraft weight is supported by the landing gear. Clear of the runway means the entire aircraft is physically off the active runway. Hover taxi is considered flight.

Launch Vehicle—A space vehicle designed to propel or carry another space vehicle from the earth's surface or from orbit to a desired point and velocity in space. This term includes engines, rocket motors, upper stages, fuel tanks, and guidance and control sections.

Lost Time Case—(Class C) Any injury or occupational illness or disease that causes loss of one or more days away from work beyond the day or shift it occurred. When determining if the mishap is a Lost Time Case, count the number of days the employee was unable to work as a result of the injury or illness, regardless of whether or not the person was scheduled to work on those days. Weekend days, holidays, vacation days, or other days off are included in the total number of days, if the employee would not have been able to work on those days because of a work-related injury or illness. Do not count the day of the injury/illness or the day the individual returns to work

Mishap—In addition to the definition in DoDI 6055.07 (DoD Mishap), mishaps are classified by total direct mishap cost and the severity of injury/occupational illness.

Missile Support Equipment—Any component of ground launched missile systems used to handle or transport missiles or missile components. Missile Support Equipment includes, but is not limited to, system unique vehicles, such as, payload transporters, transporter-erectors, and all equipment below grade in the launch facility.

Mission Capability—This term encompasses the purpose and functions of the space system (sensors, transponders, etc.) throughout its intended system mean mission duration (the expected life of the spacecraft).

No Lost Time Case—(Class D) Any on-duty injury or occupational illness or disease that restricts work activities and does not meet the definition of "Lost Time". These are cases where, because of injury or occupational illness or disease, DAF personnel only worked partial days, were placed on restricted work, were transferred to another job, required medical treatment greater than first aid, lost consciousness, or were diagnosed with a significant injury or illness/disease by a physician or other licensed health care professional. Significant injuries or illnesses include those that do not result in death, days away from work, restricted work or job transfer, medical treatment greater than first aid, or loss of consciousness.

Non—Department of the AF Civilian Personnel - Persons employed by host-nation agencies, and doing work such as public works or general engineering on DAF installations, are not DAF employees. Their employer is the host-nation agency paying them, supervising them, and handling employee benefits. Indirect-hire employees are not the same persons as Department of the DAF civilian employees when a host government has supervisory control. This includes the host government's responsibility for insurance, compensation costs, and the like.

NUCFLASH—Includes accidental, unauthorized or unexplained occurrences that could create the risk of war meeting any of the following criteria: accidental, unauthorized, or unexplained actual or possible nuclear detonation by US forces or US-supported allied forces; accidental or unauthorized launch of a nuclear-armed or nuclear-capable missile by US forces or US-supported allied forces; or unauthorized flight or deviation from an approved flight plan by a nuclear-armed or nuclear-capable aircraft of US forces or US-supported allied forces that could be perceived as a hostile act.

Nuclear Surety—Material, personnel, and procedures that contribute to the safety, security, and reliability of nuclear weapons and to the assurance that there will be no nuclear weapon accidents, incidents, unauthorized weapon detonations, or degradation in performance at the target.

Nuclear Weapon—A complete assembly, in its intended ultimate configuration which, upon completion of the prescribed arming, fusing, and firing sequence, is capable of producing the intended nuclear reaction and release of energy. For the purpose of mishap categorization, also include unique support equipment associated with nuclear weapons.

Nuclear Weapon System—A nuclear weapon and a means for delivering it to the target, with associated specialized support equipment, facilities, procedures, personnel, and any vehicles peculiar to the system used for weapon transport.

Occupational Illness—Any reported condition that does not meet the definition of injury. Any abnormal physical condition or disorder, other than one resulting from an occupational injury, resulting in adverse consequences and caused by occupational factors associated with employment. Includes all confirmed cases of acute and chronic illnesses or diseases caused by inhalation, absorption, ingestion or direct contact with suspect substances.

Off-Duty—See the definition in DoDI 6055.07 (Duty Status Determination).

On—Duty - In addition to the definition in DoDI 6055.07 (Duty Status Determination), DoD personnel are on-duty when: their activities are work-related, i.e., an event or exposure in the work

environment either caused or contributed to the resulting condition or significantly aggravated a pre-existing injury or illness.

Permanent Partial Disability—(Class B) See the definition in DoDI 6055.07.

Permanent Total Disability—(Class A) See definition in DoDI 6055.07.

Private Motor Vehicle—A non-commercial vehicle that is neither a government motor vehicle nor government vehicle, other. A vehicle normally registered for highway use.

Privilege—A common law doctrine or statutory rule of evidence that protects certain communications and products from being used as evidence in court or otherwise released.

Privileged Safety Information—Information that is reflective of a deliberative process in a mishap investigation or given to a safety investigator pursuant to a promise of confidentiality, which the safety privilege protects from being released outside safety channels or from being used for any purpose except mishap prevention. For those types of investigations (Class A-E mishaps, nuclear surety, certain safety studies that used privileged source information) it includes products such as draft and final findings, evaluations, opinions, preliminary discussions, conclusions, mishap causes, recommendations, analyses, and other material that would reveal the deliberations of safety investigators, including reviews and endorsements. It also includes information given to a safety investigator pursuant to a promise of confidentiality and any information derived from that information or direct or indirect references to that information.

Program Manager—The designated individual with the responsibility for and authority to accomplish program objectives for development, production, and sustainment to meet the user's operational needs. The Program Manager shall be accountable for credible cost, schedule, and performance reporting and analysis to the milestone decision authority, and have responsibility and authority to accomplish objectives for the total life cycle of the program.

Property Damage—In addition to the definition in DoDI 6055.07, mishaps/incidents involving property damage will be considered and reported as on-duty. This includes public and private property damage caused by DAF operations. **Exception:** Replacement of component parts due to normal wear and tear, which is beyond the scope or definition of the affected time between overhaul of component, and when any associated damage is confined to the component part. This exemption only applies to items that are normally used until they fail or until predetermined wear limits are reached. The need for replacement may not be evident until malfunction or failure of the part. Resultant damage to other components is reportable. If investigation determines damage is due to normal wear and tear or aging, the event is not reportable.

Protected Health Information—Any individually identifiable health information that is maintained or transmitted in any form or medium (paper, electronic, etc.), as specified in DoDM 6025.18.

Recordable Injury Or Illness—See the definition in DoDI 6055.07.

Recovery Operations Chief—Individual in charge of recovering mishap wreckage.

Restricted Work—In addition to the definition in DoDI 6055.07, for military members, assignment of a Physical Training Waiver does not constitute restricted work unless it directly impacts one or more of the routine functions of their job.

Safety Investigation—A thorough assessment of the hazards, cause(s), and outcome of circumstances leading to a mishap or event.

Safety Investigator—An individual authorized and qualified to investigate a safety mishap or event. Examples include members of an ISB, SIB, or SIO, and members of a safety staff.

Safety Privilege—Term the DAF uses to describe privileges recognized by the courts that protect safety information from release. It is an executive privilege afforded a head of an agency to protect information from release that would hamper the efficient operation of an important Government program and perhaps impair the national defense or security.

Safety Report—Safety reports include message reports (preliminary, status, final, and final supplemental), and injury and occupational illness forms and logs.

Significant Injury or Illness—Work related cases involving conditions such as cancer, chronic irreversible disease, a fractured or cracked bone, or a punctured eardrum, among others. Severity is determined by a competent medical authority.

Space Systems—See the definition in DoDI 6055.07.

Space Vehicle—See the definition in DoDI 6055.07.

Spacecraft—A space vehicle designed to operate in space and launched by a launch vehicle. The term includes satellites (small satellites), orbiters, and payloads and their associated subsystems.

Sports, Recreation, And Individual Fitness—A mishap associated with an activity that requires physical exertion and skill that is governed by a set of rules or customs and often undertaken competitively and/or refreshes one's mind or body through activity that amuses or stimulates. Involves the activity of exerting muscles in various ways to keep fit through the performance of exercise. This includes all fitness activities that do not meet the criteria for command-directed or organized fitness programs. A mishap involving privately-owned recreational vehicles or aircraft that are primarily being used as transportation at the time of a mishap rather than for sport or recreational purposes will be categorized as a Miscellaneous mishap.

Technical Expert—An individual authorized and qualified to investigate a safety occurrence for a specific aircraft, system, or process for which they possesses unique knowledge or skills. Examples include government and contractor engineers, investigators, and equipment specialists.

Unique Space Support Equipment—Systems, equipment and facilities required for processing, handling or transporting space systems and their components. Space support equipment examples include space-unique support vehicles, payload or launch vehicle ground transporters, vehicle assembly equipment, launch pad facility and its associated equipment, equipment required for test and checkout, and equipment for space system recovery. Components or equipment commonly used in non-space applications, and not specifically configured for space related use, are not considered space support equipment.

Unmanned Aircraft System (UAS)—See the definition in DoDI 6055.07.

Unmanned Aerial Vehicle (UAV)—See the definition in DoDI 6055.07.

USAF at Large—An accounting code used for recording losses in the AF Safety Automated System, not a determination of investigative responsibility. Events involving exchange students, prior service personnel on leave before reporting to initial permanent duty assignment, etc., are recorded to the "USAF At Large." Also used for recording losses of non-accepted AF aerospace

vehicles, engine-confined non-foreign object damage mishaps, and aerospace vehicles leased to a non-DoD organization for modification, maintenance, repair, test, contract training, or experimental ground mishaps.

Work Environment—The establishment and other locations where one or more employees are working or are present as a condition of their employment. The work environment includes not only physical locations, but also the equipment or materials used by the employee during the course of his or her work.

Workplace Violence—Any act or threat of physical violence, harassment, intimidation, or other threatening disruptive behavior that occurs at the work site. It ranges from threats and verbal abuse to physical assaults and even homicide.

Work—**Relatedness -** See definition of On-Duty.

Attachment 2

ORGANIZATION CONTACT INFORMATION

Table A2.1. Contact Information within AFSEC.

Organization	Address	Contact Information
AFSEC/JA (Staff Judge Advocate)	9700 G Avenue SE Kirtland AFB NM 87117-5670	DSN 246-0624/1559 or (505) 846-0624/1559 FAX DSN 263-0565 or (505) 853-0565
AFSEC/SEF (Flight Safety) Technical Assistance	9700 G Avenue SE Kirtland AFB NM 87117-5670	DSN 246-5867 or (505)-846-5867 After hours (505) 220-0183 Alternatively, call the Kirtland AFB operator at: 877-809-6989 (toll free), ask to be connected to the Command Post and then ask for the AFSEC Technical Assistance Duty Officer.
AFSEC/SEF (Flight Safety) Duty Officer	9700 G Avenue SE Kirtland AFB NM 87117-5670	DSN: (312) 263-6175 or (505) 853-6175 After hours (505) 269-9583
AFSEC/SEH (Human Factors)	9700 G Avenue SE Kirtland AFB NM 87117-5670	DSN 246-1753 or (505) 846-1753

Table A2.2. Contact Information outside AFSEC.

Organization	Address	Contact Information
DAF/JAOA (DAF/JAO-Aviation and Admiralty Torts Division)	1500 West Perimeter Road, Suite 1700, Joint Base Andrews, MD 20762	DSN 612-4620 or (240) 612-4620 FAX DSN 612-5059 or (240) 612-5059 af.jaoa.workflow@us.af.mil
Armed Forces Medical Examiner System Office		DSN: 366-8648 or (302) 346-8648. Fax: (302) 346-8819 http://www.health.mil/afmes/
AF Nuclear Weapons Center	1551 Wyoming Blvd SE Kirtland AFB, NM 87117	DSN 246-6567 or (505) 846-6567 afnwcseworkflow@us.af.mil
Defense Threat Reduction Agency Nuclear Surety Office	1680 Texas St SE Kirtland AFB, NM 87118	(505) 846-8436
FAA Combined Operations Center		(202) 267-3333

Organization	**Address**	**Contact Information**
Military Surface Deployment and Distribution Command		DSN 770-5035 or (618) 220-5035 Hotline: 1-800-826-0794 sddc.safety@sddc.army.mil
OSHA		24-hour toll-free hotline 1-800-321-OSHA (1-800-321-6742)
SAF/FMC (AF Cost Analysis Agency)		DSN 612-5565 or (240) 612-5565 usaf.pentagon.saf-fm.mbx.afcaa-fma-workflow@mail.mil
51 CBCS (ACC's Hammer Adaptive Communications Element)		During Duty hours (0730-1630) contact Hammer ACE directly at DSN 472-5785 Or (478) 222-5785 Emergency Support & after duty hours: Contact Robins Command Post: DSN 497-2612 or (478) 327-2612